ADDENDUM TO LEASE – FREE RENT (AMORTIZED)

This Free Rent Addendum ("Free Rent Addendum") is attached to any made part of the Lease between Landlord and Resident signing below.

Resident(s): Andrew Giordano, David Voychuk and Ashay Grover
Building: DVORA 175
Apartment: 0603

In consideration for Resident entering into the Lease and complying with the terms thereof, Landlord agrees to give Resident a monthly credit in the amount of **$457.00** ("Free Rent Credit") that shall be applied each month to reduce the Monthly Base Rent. This credit is only valid for the duration of the initial term of this Lease.

The Free Rent Credit shall not include any Additional Rent, including but not limited to rentable items, pet rent, fees, etc., or any other amounts due pursuant to any other Addendum to this Lease. Therefore, Resident agrees to pay any and all Additional Rent when and as due under the Lease. This discount is only good for the duration of the initial term of this Lease.

If the Resident vacates the Apartment at any time other than at the expiration of the Lease Term, or commits an Event of Default, as such term is defined in the Lease, Resident shall be required to reimburse Landlord the Free Rent Credit, which amount shall be deemed Additional Rent under the Lease, and which shall be due in one lump sum payment upon the sooner of: (a) Resident vacating the Apartment, (b) fifteen (15) days after Resident has committed an Event of Default, and/or (c) ten (10) days after Resident provides notice to Landlord of his/her intent to vacate the Premises prior to the expiration of the Lease (whether or not such vacation of the Premises is permissible under the Lease).

By signing below, Resident hereby acknowledges that he/she has read each and every condition, and fully understands the terms of, this Free Rent Addendum.

Resident Signature: _____ Date _____

Resident Signature: _____ Date _____

Resident Signature: _____ Date _____

Resident Signature: _____ Date _____

Resident Signature: _____ Date _____

Resident Signature: _____ Date _____

Landlord Signature:

Date:

DVORA™

DVORA 175

RESIDENTIAL LEASE AGREEMENT

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TABLE OF CONTENTS

1. CONDOMINIUM RIGHT OF TERMINATION…….....1
2. PROPERTY……....1
3. USE OF APARTMENT……1
4. TERM……...……..2
5. MONTHLY BASE RENT……..……...……...…….…..2
6. SECURITY DEPOSIT…….....2
7. ASSIGNMENT OR SUBLEASE……...4
8. EVENT OF DEFAULT, VIOLATION, EVICTION and RE-ENTRY…….…4
9. DRUG RELATED CRIMES……...5
10. DAMAGES AND ATTORNEY'S FEES……...5
11. HOUSING CODE VIOLATIONS……..5
12. QUIET ENJOYMENT……5
13. UTILITIES…….....5
14. CARE AND CONDITION OF APARTMENT……..…6
15. LANDLORD'S REPAIRS……..…7
16. HAZARDOUS USE……....7
17. ACCESS TO APARTMENT……..…7
18. CHANGES, ADDITIONS OR ALTERATIONS……..…….……8
19. SUBORDINATION…….....8
20. ESTOPPEL LETTER…….……8
21. FIRE AND CASAULTY…….. .9
22. INSURANCE……...……..9
23. NO PERSONAL LIABILITY……..…11
24. INDEMNIFICATION……11
25. INJURY OR DAMAGE…….....11
26. WAIVER……11
27. NOTICES…….....11
28. NOTICE REQUIREMENTS FOR RENEWAL OR VACATING THE APARTMENT….....11
29. PETS…… 12
30. SIGNS……12
31. INFESTATION/DISEASE……...…..12
32. WINDOW GUARDS……....12
33. MEGAN'S LAW……. .12
34. ALARMS……...…...12
35. EMINENT DOMAIN……13
36. SEVERABILITY……13
37. ADDITIONAL RENT……13
38. ATTORNEYS' FEES AND ADDITIONAL COSTS/FEES……..……14
39. BUILDING RULES AND REGULATIONS……14
40. AMENITIES ……..14
41. RESIDENT'S HOLD OVER……..……15
42. PARKING SPACE……..15
43. URBAN AREA DISCLOSURE……..15
44. APARTMENT DISCLOSURE……15
45. DEED NOTICE……15
46. ABANDONMENT……..16
47. ADDITIONAL GROUNDS FOR TERMINATION……...16
48. KEYS AND LOCKS……...16
49. BINDING……..…16
50. ENTIRE AGREEMENT…… .16
51. RENT CONTROL …… .17
52. ATTACHMENTS TO THE AGREEMENT…….....17
53. NO SMOKING……17
54. CONSUMER INFORMATION STATEMENT ACKNOWLEDGEMENT……..17
55. MISCELLANEOUS……17
56. PHOTO AND VIDEO RELEASE……...17
57. DISCLOSURES……..……..18
58. SIGNATURES……..18

EXHIBITS:

EXHIBIT A TO LEASE – BUILDING RULES AND REGULATIONS
- Exhibit A-1 to Lease – Lobby / Common Area Rules (Non-Amenity Space)
- Exhibit A-2 to Lease - In Apartment Rules
- Exhibit A-3 to Lease – Balcony, Terrace, Garden, Roof and Window Rules
- Exhibit A-4 to Lease - Garbage and Sanitary Rules
- Exhibit A-5 to Lease – Violations of Building Rules

EXHIBIT B TO LEASE – ESTIMATED DAMAGES AND REPAIR SCHEDULE
EXHIBIT C TO LEASE – MOVING COMPANY INSURANCE REQUIREMENTS
EXHIBIT D TO LEASE – MOVE IN/MOVE OUT AGREEMENT
EXHIBIT E TO LEASE – WINDOW GUARD
EXHIBIT F TO LEASE – GARBAGE DISPOSAL AND RECYCLING
EXHIBIT G TO LEASE – CONTACT INFORMATION
EXHIBIT H TO LEASE – UTILITIES, PHONE AND INTERNET SERVICE
EXHIBIT I – ADDITIONAL BUILDING TERMS

LEASE SUMMARY INFORMATION

Landlord: 175 Second Street LLC 155 2nd Street, Jersey City, NJ 07302
Resident: Andrew Giordano, David Voychuk and Ashay Grover 4 Peter Cooper Road, Apt 13C, New York, NY 10010; 200 Johnston Dr, Watchung, NJ 07069; 514 Cardinal Lane, Green Brook, NJ 08812 andrew.giordano@merck.com, david.voychuk1@gmail.com, agrover@its.jnj.com 6462460286,6462460286
Lease Term: Start: February 26, 2021 End: April 25, 2022
Unit: 0603

Monthly Base Rent:	$4,890.00
Net Effective Rent:	$3,799.71

Security Deposit:	$3,000.00

Bank Info: M&T Bank , 45 Eisenhower Drive 4th Floor / Paramus, NJ 07652

Lease Version: 111120

LEASE AGREEMENT

This **LEASE** is made and entered on February 15, 2021

Between the resident Andrew Giordano, David Voychuk and Ashay Grover, whose address shall be 175 2nd Street, Apt. 0603, Jersey City, NJ, 07302 (individually and collectively, the "Resident") and the Landlord, 175 Second Street LLC, whose address is 155 2nd Street, Jersey City, NJ 07302 ("Landlord").

In entering into this Lease with Resident, Landlord has explicitly relied upon the accuracy and truthfulness of the representations and warranties made by Resident in its application to be a tenant/resident at the Apartment (as defined below), and without which, Landlord would not have entered into this Lease. Therefore, it will be a material breach of this Lease and an Event of Default (as further defined in Section 8 below) by Resident if any of Resident's representations or warranties in this Lease or in Resident's application to be a resident in the Apartment are false or misleading, and Landlord shall thereafter have all rights and remedies against Resident for such Event of Default as set forth in this Lease and as permitted by applicable law, including but not limited to, the right (but not the obligation) to terminate this Lease and evict Resident.

This Lease shall include all Exhibits, and all Addendums signed in connection therewith (whether attached hereto or not).

1. CONDOMINIUM RIGHT OF TERMINATION: This building, located at 175 2nd Street, Jersey City, NJ, 07302 (the "Building"), is or may in the future be converted to a condominium. In such an event, your tenancy and rights under this Lease can be terminated upon 60 days' notice if the Apartment subject to this Lease is sold to a buyer who seeks to personally occupy it. If you move out of the Apartment as a result of receiving such a notice, and the Landlord arbitrarily fails to complete the sale, the Landlord shall be liable for treble damages and court costs to the extent required by law.

2. Property. The Resident agrees to rent from the Landlord and the Landlord agrees to lease to the Resident apartment **0603**, (the "Apartment"), located at the Building pursuant to the terms and conditions set forth in this Lease.

3. Use of Apartment. The Resident may use the Apartment only as private residence for himself/herself, Resident's immediate family, consisting of 0 and the following individuals: Andrew Giordano, David Voychuk and Ashay Grover. There shall be an Event of Default by Resident under the Lease if any other person is residing or resides in the Apartment without first obtaining Landlord's written consent, which consent may be withheld in Landlord's sole discretion.

Promptly upon obtaining same, Resident shall notify Landlord of his/her telephone number for the Apartment (or cellular telephone number if Resident does not have a hard line in the Apartment) and emergency contact information for Resident.

Resident shall occupy the Apartment only as a private residence, and will not use the Apartment for any business, trade or profession. The Apartment shall not be allowed to be vacant for any extended period of time, which shall be deemed more than one week. If Resident plans to be away for a period beyond one (1) week, Resident shall notify Landlord in writing as to the dates Resident will be away. Resident shall be responsible for its obligations under this Lease in his/her/their absence.

Under no circumstance shall the occupancy of the Apartment exceed 2 people for a studio or one (1) bedroom unit, four (4) people for a two (2) bedroom unit or five (5) people for a three (3) bedroom

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unit. Resident shall comply with any and all laws, ordinances, rules and orders of any and all governmental or quasi-governmental authorities affecting the cleanliness, use, occupancy and preservation of the Apartment.

4. Term. Landlord leases to Resident and Resident leases from Landlord the Apartment together with any and all appurtenances thereto, for a term of 14 months starting on February 26, 2021, and ending on April 25, 2022 (the "Term") pursuant to the terms and conditions set forth in this Lease. If the Landlord is unable to provide possession of the Apartment to the Resident at the start of this Lease, the Resident shall only be charged Rent (as defined in Section 5 below) from the date on which possession of the Apartment is made available to the Resident. If the Landlord is unable to provide possession of the Apartment to the Resident within thirty (30) days after the starting date set forth above, the Resident may cancel this Lease by giving written notice to Landlord prior to Landlord providing possession of the Apartment to Resident. Resident shall have no other remedy against Landlord in the event Landlord is unable to provide possession of the Apartment to Resident at the start of the Term or otherwise.

5. Monthly Base Rent. The monthly base rent ("Monthly Base Rent") for the Term of this Lease is: $4,890.00 per month, which is due in advance, and without set-off or deduction of any kind for any reason, on the first of each month, except that Monthly Base Rent in the amount of $4,890.00 (representing payment for the first full month of the Term) shall be paid in full via certified check, bank check or money order upon the signing of this Lease by the Resident. In the event the first day of Resident's possession of the Apartment is on other than the first of the month, then the first month's rent shall be pro-rated for that month and any balance of the first full month's Monthly Base Rent which was paid in advance by Resident shall be credited towards the second month of Monthly Base Rent. Monthly Base Rent, and all Additional Rent, as described in this Lease shall collectively be the "Rent" for purposes of this Lease. All Rent shall be made payable to 175 Second Street LLC at Landlord's address as set forth in the preamble of this Lease on or before the due date and without notice or demand.

6. Security Deposit.

(a) Security Deposit. Upon execution of this Lease, Resident shall deposit with Landlord the sum of $3,000.00 (the "Security Deposit") payable via certified check, bank check or money order only, receipt of which is hereby acknowledged by Landlord, as security and assurance that Resident performs all of Resident's obligations under this Lease during the Term thereof.

The Landlord may deduct from the Security Deposit any costs resulting from Resident's failure to comply with any of the terms or conditions of this Lease, or any damages suffered by Landlord as a result thereof. If Landlord makes any such deduction then, upon demand of Resident, Resident shall restore within ten (10) days of Landlord's demand, the Security Deposit to an amount equivalent to 1.5 times the monthly Base Rent. Any amounts owed by Resident to replenish the Security Deposit or any deficit to the Security Deposit shall be deemed Additional Rent.

Landlord will hold the Security Deposit for the period Resident occupies the Apartment in accordance with New Jersey "Security Deposit Law," as amended. Landlord shall put the Security Deposit in an interest-bearing account in M&T Bank, 45 Eisenhower Drive 4th Floor / Paramus, NJ 07652. The current rate of interest which is being earned on the Security Deposit is .30%. Resident acknowledges that this Lease constitutes notice under N.J.S.A. Section 46:8-19 et seq. of where the Landlord has deposited the Security Deposit.

(b) No Rent Security for Payment of Rent. At no time will Resident be allowed to use the Security Deposit for the payment of Rent.

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(c) Disposition of Security Deposit. Within thirty (30) days after end of the Term, Landlord will return Resident's Security Deposit to Resident, less any allowed deductions, to Resident by certified mail to the address provided to Landlord by Resident in advance. Any deductions to the Security Deposit will be itemized in a statement in accordance with the following protocol:

(i) Landlord will inspect the Apartment after Resident vacates the Apartment. Landlord will use reasonable efforts to permit Resident to participate in the inspection upon Resident's prior written request. Resident shall be charged, and Landlord shall deduct from the Security Deposit for any damage in or to the Apartment or the Building, as a result of Resident's use or occupancy of the Apartment or the Building, beyond reasonable wear and tear, in accordance with the Estimated Damages and Repair Schedule attached as **Exhibit B**.

(ii) Landlord will inspect the Apartment for cleanliness and if the Apartment is not restored to the same condition as it was received by Resident at the inception of this Agreement, reasonable wear and tear excepted, cleaning and restoration costs will be charged to Resident and deducted from the Security Deposit in accordance with the Estimated Damages and Repair Schedule attached as **Exhibit B**.

(iii) Upon Resident vacating the Apartment pursuant to the terms of this Lease, Landlord shall accept the return of (i) keys and (ii) access devices/fobs and shall charge Resident and deduct from the Security Deposit, in accordance with the Estimated Damages and Repair Schedule attached as **Exhibit B**, for any unreturned (i) keys and (ii) access devices/fobs.

To the extent the Security Deposit is insufficient to cover amounts due and owing from Resident under this Lease, Landlord shall charge and Resident shall, within ten (10) days of Landlord's demand, pay to Landlord all such amounts due from Resident, which amounts shall be deemed Rent.

(d) Guaranty. If Resident is a business entity or Resident does not meet the credit obligations of the Landlord, Resident will be required to provide an individual guarantor for payment of Rent who meets the Landlord's requirements for Tenancy and Guarantor will be required to sign the Guaranty Addendum attached to this Agreement.

(e) Transfer of Security Deposit. If the Landlord sells or transfers the Building or Apartment during the Term of this Lease and same does not result in the termination of this Lease pursuant to Section 1 hereof, the Landlord will transfer the Security Deposit plus any undistributed interest to the new owner. In such event, Resident shall be provided notice of such transfer as well as the name and address of the new owner. Thereafter, the new owner shall have all responsibility concerning the Security Deposit, and Resident shall look solely to the new owner for the return of the Security Deposit and/or any rights or obligations in connection with the Security Deposit.

7. Assignment or Sublease. The Resident shall NOT do any of the following: (a) assign or transfer this Lease; (b) sublet all or any part of the Apartment, or (c) permit any person other than those named in paragraph 3 above to use the Apartment, except as a temporary guest, which shall not be for more than seven (7) days in any one month period. The foregoing shall explicitly prohibit Resident, under any circumstances (whether for payment or not), from allowing anyone to occupy the Apartment pursuant to any online or other rental or lease service or marketplace, including but not limited to, Airbnb, VRBO, HomeAway, HouseTrip, Tripping.com, FlipKey, VayStays, etc.

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8. Event of Default, Violation, Eviction and Re-entry.

(a) Event of Default. In addition to any other Events of Default as set forth in this Lease, each of the following shall be deemed an "Event of Default" by Resident under this Lease: (1) Resident fails, within five (5) days of Landlord's written notice of such failure, to comply with (i) any of the material provisions of this Lease other than the covenant to pay Rent, or (ii) any of the then current Building Rules and Regulations prescribed by Landlord, or (iii) to comply with any duties imposed on Resident by statute, regulations, ordinances or other applicable directives and mandates with respect to Resident's use or occupancy of the Apartment or Building; (2) Resident fails to comply with any of the foregoing (i.e., items (a)(i)-(iii) above) more than two (2) times during any twelve (12) month period regardless of whether same is cured by Resident thereafter; (3) notwithstanding anything to the contrary contained herein, Resident fails or refuses to comply with the Building Rules and Regulations in a manner which creates an unlawful condition or a condition which harms or potentially harms the health, safety or welfare of the Building, the Apartment, Resident, Landlord, Landlord's agents, any other residents or residents of the Building, or members of the public; (4) Resident fails to make a payment of Rent or any other amounts due to Landlord under this Lease when and as due; or (5) Resident does anything, takes any action, or fails to take any action which, pursuant to applicable law, allows Landlord to evict or commence eviction proceedings against Resident.

(b) Landlord's Remedies. In case of an Event of Default and except to the extent prohibited by law, Landlord may: (1) terminate this Lease upon written notice to Resident specifying the basis for the Event of Default; (2) re-enter the Apartment, if vacant; (3) commence eviction proceedings or otherwise remove or have Resident removed from the Apartment pursuant to applicable law; and/or (4) recover from Resident any and all damages or amounts permitted by this Lease, including but not limited to those set forth in Section 10 hereof, or any applicable law. In addition to all other amounts set forth herein, in case of an Event of Default, Landlord shall also be entitled to an award of its reasonable attorneys' fees and costs of suit in enforcing any of Landlord's rights under this Lease, including in connection with the filing of an eviction proceeding or lawsuit.

Upon the termination or expiration of this Lease for any reason, all Addendums in connection with this Lease shall also simultaneously terminate, except for those provisions regarding Resident's continued obligations (i.e., the obligation to pay all amounts owed as of the date of termination or as otherwise required by this Lease or any Addendum).

(c) Eviction and Re-Entry. Landlord reserves the right of re-entry. This means that if Resident commits an Event of Default, the Landlord may, in addition to any other remedies permitted hereunder, regain possession of the Apartment. This is done by a court proceeding known as eviction. Eviction is a court procedure started by the filing of a complaint in court and the service of a summons on a tenant/resident to appear in court. After a court order of eviction and compliance with the warrant of removal, the Landlord may re-enter and take back possession of the Apartment. If the cause for eviction is nonpayment of Rent, notice does not have to be given to the resident before the Landlord files a complaint. If there is any other cause to evict, the Landlord must give to the resident the notice required by law before the Landlord files a complaint.

9. Drug Related Crimes. Engaging in distribution, possession, or use of controlled substances C.D.S. (N.J.S.A. 24:21, et seq.) in the Apartment or the Building or property in which it is located shall be deemed conclusively to impair the physical and social environment of the Apartment and the Building and is a substantial violation of the Resident's obligation to use the Apartment "solely for residence by the family." It is also a violation of New Jersey Housing Law. Such a violation shall be an Event of Default,

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and in addition to any other remedies Landlord may have under this Lease, upon three (3) days' notice, Landlord may evict Resident pursuant to N.J.S.A. 2A:18-61.1p.

10. Damages and Attorney's Fees. Resident is liable for, and shall pay to Landlord upon demand, all damages, including but not limited to Landlord's reasonable attorney's fees and costs, caused by the Resident's violation of any agreement in this Lease. Such damages may include, and in the case of an Event of Default Landlord shall be entitled to recovery from Resident, loss of Rent, the cost of preparing the Apartment for re-renting, brokerage commissions incurred by Landlord in finding a new resident or tenant for the Apartment, and all other amounts permitted by this Lease or applicable law. The loss of Rent for which Resident is liable in the case of an Event of Default shall be the Rent for the lesser of the balance of the Term (had the Term not been terminated or ended early due to the Event of Default) or until the Landlord rents the Apartment to someone else. If the Landlord rents the Apartment for less than the Resident's Rent, the Resident must also pay the difference until the end of the Term. If the Landlord rents the Apartment for more than the Resident's Rent, the Resident is not entitled to the excess nor to a credit for the excess as against other damages Resident may owe to Landlord hereunder.

11. Housing Code Violations. In the event Landlord is assessed fines or penalties for a violation of any housing code ordinance or law which is attributable to the acts or omissions of Resident, Resident shall be liable to Landlord for the actual costs and expenses incurred by Landlord, including but not limited to Landlord's reasonable attorney's fees and costs, and same shall be considered as Additional Rent and due with Resident's following monthly Rent payment.

12. Quiet Enjoyment. Provided Resident complies with, and is in compliance with, all of his/her obligations under this Lease, Resident shall have the right to the quiet enjoyment and use of the Apartment in accordance with all applicable laws.

13. Utilities. The Resident shall arrange to have the electric utility serving the Apartment transferred into Resident's name prior to Resident's occupancy of the Apartment and provide written verification of same to Landlord. Resident shall be responsible for paying the following utility services for the Apartment:

[ ] hot water	[X] electricity	[ ] sewer
[X] heat	[X] air Conditioning	[ ] gas
		[ ] cold water

The Landlord will pay for the following utilities:

[X] hot water	[ ] electricity	[X] sewer
[ ] heat	[ ] air conditioning	[X] gas
		[X] cold water

Resident shall promptly pay all utility bills for service to the Apartment so as to avoid a discontinuance of service. Resident shall keep all utilities operable until possession of the Apartment is returned to the Landlord.

14. Care and Condition of the Apartment.

(a) Except as noted by Resident in the Move-In Inspection Report, Resident stipulates, represents and warrants that Resident has examined and inspected the Apartment, and that the Apartment is in good order, repair, and in a safe, clean and tenantable condition as of the time Resident takes possession of

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same. Except as noted by Resident in the Move-In Inspection Report, Resident stipulates, represents and warrants that the all appliances and equipment are in good working order. Subject to the Move-In Inspection Report, Resident accepts the Apartment "as is" with no representations or warranties, express or implied, of any kind. Resident acknowledges that upon expiration of the Term, Resident is responsible to return the Apartment to the Landlord in the condition that it was received.

(b) Resident shall:

(1) Pay for all repairs, replacements and damages caused by the act or neglect of the Resident, the Resident's pets, family, domestic employees, guests or visitors, which includes but is not limited to the plumbing system and pipes (including the freezing of same), electrical and plumbing drainage problems caused by the Resident, all fixtures, floor coverings and appliances, and keep same in the condition in which they were in as to the start date of the Lease, reasonable wear and tear excepted.
(2) Keep and maintain the Apartment, and to the extent used by Resident, the Building and the property on which it is located, in a neat, clean, safe and sanitary condition.
(3) Drive and park vehicles only in designated areas, if any.
(4) Take good care of the Apartment and all equipment, fixtures, floor covering and appliances located in it.
(5) Keep nothing in the Apartment which is flammable, dangerous or which might increase the danger of fire or other casualty.
(6) Promptly notify the Landlord of any condition which requires repairs to be done.
(7) Use the electric, plumbing and other systems and facilities in a safe manner.
(8) Promptly remove all garbage and recyclables from the Apartment and dispose of same pursuant to Building Rules and Regulations.
(9) Not engage in any activity which may cause a cancellation or an increase in the cost of the Landlord's insurance coverages.
(10) Use no more electricity than the receptacles, wiring or feeders to the Apartment can safely carry.
(11) Do nothing to destroy, deface or damage any part of the Apartment or Building.
(12) Promptly comply with all orders and rules of the Board of Health or any other governmental authority which are directed to the Resident.
(13) Do nothing which interferes with the use and enjoyment of neighboring properties or any other residents of the Building.
(14) Pay as Additional Rent all amounts incurred by Landlord to complete or comply with any of the above obligations if Resident fails to do so, notwithstanding that Landlord shall not be required to so cure Resident's breach of any such obligations.
(15) Shall not, at any time, reduce the temperature of the apartment below fifty-five (55) degrees. This may not be done either through the opening of windows or through the reduction of the setting on the thermostats of the HVAC equipment.

(16) Shall not, at any time, maintain a unit temperature of eighty (80) degrees or higher.

(c) Prior to making any repairs (except in the case of an emergency), Resident must notify Landlord in writing for its approval. The Landlord will have a reasonable amount of time within which to make the repairs or to approve Resident's own repairs. In the event Resident must make any repairs due to an emergency before providing such notice to Landlord, Resident must provide such notice to Landlord as soon as possible thereafter, and only complete so much of such repair as is necessary to avoid or eliminate the emergency before otherwise providing Landlord with the notice and option as set forth in this section.

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(d) In connection with Resident's care of the Apartment and its contents, Resident shall pay for all minor repairs and replacements, whatever the cause. Further, the Resident must pay for all major repairs, replacements and damages caused by the act or neglect of the Resident, the Resident's household members, their visitors, invitees, contractors, agents, assigns and/or movers.

(e) Resident shall remove from the Apartment all of the Resident's property upon the expiration or earlier termination of this Lease. Any property that is left in the Apartment beyond the expiration or termination of this Lease shall be deemed abandoned, of no value, and may be removed and/or disposed of by Landlord at the Resident's expense. All of Landlord's expenses relating to such removal and/or disposal shall be considered Additional Rent and shall be deducted from Resident's Security Deposit pursuant to the charges specified in **Exhibit B** and shall otherwise be due from Resident to Landlord whether or not there is sufficient Security Deposit to cover said expense. Any proceeds received by Landlord in connection with such disposal, if any, shall belong solely to Landlord and Resident shall receive no part thereof, nor any credit in connection therewith.

15. Landlord's Repairs. The Landlord shall repair damage to the Apartment and vital facilities caused by ordinary wear and tear within a reasonable time after notice by the Resident. This obligation shall not include painting. The Resident may be liable for the cost of such repairs and replacements pursuant to Section 14 above. The Landlord shall not be liable for interruption of services or inconvenience resulting from delays in making repairs or replacements if due to circumstances beyond Landlord's reasonable control.

16. Hazardous Use. The Resident will not keep anything in the Apartment that is considered dangerous, flammable, and explosive or might increase the danger of fire or any other hazard. The Resident will clean-up any such materials and indemnify, defend and hold harmless Landlord, its officers, shareholders, employees and affiliates from any and all liabilities, claims, damages, costs, expenses, fees, judgments, fines, penalties or payments of any kind or nature in connection with same, including, but not limited to the payment of any and all attorney's fees (including compensation for in-house counsel time) which shall be considered as Additional Rent.

17. Access to Apartment.

(a) Emergency Situations. Resident acknowledges and agrees that Landlord and its employees and agents shall be allowed immediate access to the Apartment in emergency situations. If Resident is not present, the Landlord or its Managing Agents may enter the Apartment using its copy of the key.

(b) Non-Emergency Situations. Resident acknowledges and agrees that in non-emergency situations, Landlord and its employees and agents may enter the Apartment on reasonable notice to Resident, and at reasonable hours of the day, to conduct inspections, make repairs and take other actions reasonably required or deemed appropriate by Landlord for maintaining or preserving the Apartment and/or maintaining, operating or otherwise preserving the Apartment or Building or complex.

(c) Expiration of Term. During the two (2) months immediately preceding expiration of this Lease or upon Resident's notice to vacate prior to the expiration of the Lease or in the Event of Default, Landlord and Landlord's employees and agents may enter the Apartment on reasonable notice to Resident and at reasonable hours, to show the Apartment to rental applicants. If Resident denies access to the Apartment, they may be liable for all damages in connection therewith, including all lost revenue and Rent, which shall be deemed, at a minimum, to be one (1) month Rent, until Apartment is re-rented.

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18. Changes, Additions or Alterations. The Resident may not make any changes, additions or alterations to the Apartment without the Landlord's written consent, which consent may be granted or withheld in Landlord's sole discretion. This restriction shall apply to all changes, additions or alterations, including but not limited, to: (a) installation of any locks or chain-guards; (b) installation of paneling, flooring, built-in decorations, partitions, moldings, or any other fixture drilled into or attached to the floors, walls, or ceilings; (c) installation of any equipment or wiring; (d) painting, wallpapering, or other decorations; (e) change in the plumbing, cooking, air conditioning, electrical or heating systems. All changes, additions or alterations made without the Landlord's written consent shall be removed by the Resident on demand and may be deemed an Event of Default and the willful destruction of the property permitting Landlord to terminate Resident's tenancy in accordance with New Jersey law. All changes, additions or alterations made with the Landlord's written consent must be completed pursuant to such consent and shall become the property of the Landlord when completed and paid for by the Resident and shall remain as part of the Apartment at the end of the Term unless the Landlord demands that Resident remove them. The Resident shall promptly pay all costs for restoring any changes, additions or alterations when same is required by Landlord. The Resident shall not allow any mechanic's lien or other claims to be filed against the Apartment, the Building or Landlord. If any such lien or claim is filed against the Apartment, the Building or Landlord, Resident shall have it promptly removed.

19. Subordination. This Lease and the Resident's rights are subject and subordinate to present and future mortgages on the property of which the Apartment is a part. The Landlord may execute any papers of the Resident's behalf as the Resident's attorney-in-fact to accomplish this.

20. Estoppel Letter. At the request of the Landlord, the Resident shall, within ten (10) days of Landlord providing same, sign a letter stating that (a) this Lease has not been amended and is in effect (or sets forth any such amendments), (b) the Landlord has fully performed all the Landlord's agreements in the Lease (or sets forth in detail what obligations Landlord has not performed), (c) the Resident has no rights to the Apartment, except as stated in this Lease, (d) the Resident has paid all Rent to date (or sets forth what Rent Resident has not paid), and (e) the Resident has not paid Rent for more than one (1) month in advance. This letter shall also list all the property attached to the Apartment which is owned by the Resident. Resident understands and agrees that such letter may be for the express purpose that third-parties rely upon same. If Resident fails to execute such letter within ten (10) days of Landlord providing same, Landlord is hereby authorized to act as Resident's attorney-in-fact to execute same in the name or and on behalf of Resident in the form in which it was prepared.

21. Fire and Casualty. Immediate notice shall be given by the Resident to Landlord of any fire or other casualty which occurs at the Apartment. If the Apartment is uninhabitable, Resident's obligation to pay Rent shall cease until the time that the Apartment is restored by the Landlord. If only a part of the Apartment is uninhabitable, then the Rent shall be adjusted proportionately.

If only part of the Apartment is damaged, the Landlord shall repair the Apartment within a reasonable period of time, limited to the extent of Landlord's receipt of insurance proceeds in connection with such damage and repair. Landlord shall not be obligated to repair or restore any improvements that Resident has made to the Apartment, nor any personal property or fixtures of Resident, nor to spend in excess of any insurance proceeds it receives.

Either party may cancel this Lease if the Apartment is so damaged by fire or other casualty that the Apartment cannot be repaired within 45 days. The Landlord's determination in such regard shall be final, conclusive and binding on both parties.

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The Lease shall end if the Apartment is totally destroyed. The Resident shall pay Rent to the date of destruction.

Notwithstanding anything to the contrary contained herein, if the fire or other casualty is caused by the act or neglect of the Resident, the Resident's family, domestic employees, guests or visitors, then same shall be deemed an Event of Default, permitting Landlord to terminate this Lease to the extent permitted by applicable law, and in additional to any other liability of Resident hereunder, under all circumstances, Resident shall pay for all repairs and other damages of any kind suffered by Landlord or any other residents at the Building as a result of same.

22. Insurance.

(a) Resident's Liability. Landlord shall not be liable for any damage to or injury of or to the Resident, Resident's family, guests, invitees, agents or employees or to Resident's personal property, goods or equipment which are located at the Apartment. Resident hereby agrees to indemnify, defend and hold Landlord harmless from any and all any liabilities, claims, damages, costs, expenses, fees, judgments, fines, penalties or payments of any kind or nature (including but not limited to reasonable attorney's fees and costs) in connection with any and all loss, damage, cost or expenses involving Resident's person or property, or that of its family, guests, agents, invitees and contractor's person and/or property and any and all loss, damage, cost or expense to the Apartment and Building which is caused by Resident or Resident's family, guests, invitees, or agents or by Resident's breach of any of its obligations under this Lease.

(b) Mandatory Renters Insurance by Resident. For the duration of the Lease, Resident is required to maintain and provide evidence of tenant liability insurance or renter's insurance providing at least a minimum One Hundred Thousand Dollars ($100,000.00) of coverage for damage to Landlord's Property at, in, or in connection with the Building, the Apartment or any services in connection with this Lease (the "Mandatory Insurance"). Resident personal contents coverage is optional but encouraged.

Resident is required to furnish Landlord with evidence of Mandatory Insurance prior to occupancy of Apartment and at the time of each Lease renewal period.

If at any time Resident does not have such Mandatory Insurance, Resident is in breach of the Lease and Landlord shall have the right, but not the obligation, to purchase replacement coverage and to charge Resident a fee to cover the expense for such insurance.

Resident may obtain the Mandatory Insurance from an insurance agent or insurance company of Resident's choice. If Resident furnishes evidence of such insurance and maintains the insurance for the duration of the Lease, Landlord must be listed as an 'interested party' and nothing more is required. If Resident does not maintain Mandatory Insurance, as required herein, the insurance requirement of this Lease may be satisfied by Landlord, who may schedule the Resident's Apartment for coverage under the Landlord's master insurance policy (the "Master Policy"). The coverage provided under the Master Policy will include the Mandatory Insurance coverage listed above. Resident shall be responsible for reimbursing the Landlord for the entire cost of any and all monies associated with Landlord adding Resident's Apartment to the Master Policy.

Some important points of this coverage, which Resident should understand are:

i. Under the Master Policy, the Landlord is the Named Insured. Resident will be an Additional Insured under the tenant liability component of the Master Policy for

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liability arising from on-premises Bodily Injury and Property Damage up to the Limits of Liability appearing above.

ii. The Master Policy coverage is not personal liability insurance or renter's insurance. Landlord makes no warranty or representation that the Master Policy covers the Resident's personal property (contents) or additional living expenses. Although coverage may be similar to a personal liability insurance policy or the liability portion of a Renters Insurance Policy, the Master Policy may not protect Resident as if Resident had purchased personal liability or renters insurance from an insurance agent or insurance company of Resident's choice. Certain restrictions apply.

iii. Coverage only applies to liability arising in the Apartment. Resident is not insured away from the Apartment.

iv. Coverage under the Master Policy may be more expensive than the cost of Mandatory Insurance available to the Resident. At any time, Resident may contact an agent of their choice for personal liability or renter's insurance options to satisfy the Mandatory Insurance under the Lease.

v. Licensed insurance agents may receive a commission on the Master Policy.

vi. The fee to cover the expense of this coverage shall be $12 per month. Landlord retains the right to charge $5 per month for administrative costs, which is included in the above amount; the balance of the payment is insurance premium.

Subject to the terms of the policy, the Master Policy will extend legal defense to Resident in the event of actual or alleged liability for bodily injury or property damage not otherwise excluded by the Master Policy. The Master Policy is designed to fulfill the insurance requirement of the Lease.

Scheduling under the Master Policy is not mandatory and Resident may purchase Mandatory Insurance from an insurance agent or insurance company of Resident's choice at any time and coverage under the Master Policy will be immediately terminated.

23. No Personal Liability. Notwithstanding anything to the contrary provided in this Lease, it is specifically understood and agreed, such agreement being a primary consideration for the execution of this Lease by Landlord, that there shall be absolutely no personal liability on the part of Landlord, its members, officers, employees, successors, assigns or any mortgagee in possession (for the purposes of this Section, collectively referred to as "Landlord"), with respect to any of the terms, covenants and conditions of this Lease, such exculpation of liability to be absolute and without any exceptions whatsoever.

24. Indemnification. Resident hereby indemnifies, and shall pay, defend, protect and hold Landlord harmless from and against all liabilities, claims, damages, costs, expenses, fees, judgments, fines, penalties or payments of any kind or nature (including but not limited to reasonable attorney's fees and costs), except to the extent Landlord is compensated by insurance maintained by Resident hereunder and except for such of the foregoing as arise from the gross negligence or willful misconduct of Landlord, its agents, servants or employees, arising or alleged to arise, from or in connection with, any injury to, or the death of, any person or loss or damage to property on or about the Apartment, the Building or the property on which the Building is located arising from or connected with the possession or use of the Apartment, the Building or the property on which the Building is located by Resident, Resident's family, guests, invitees, agents or employees.

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25. Injury or Damage. The Resident will be responsible for any injury or damage caused by the act or neglect of the Resident, the Resident's family, guests, invitees, agents or employees.

26. Waiver. The Landlord's failure to enforce any agreement in this Lease does not prevent the Landlord from enforcing the agreement or Lease as to any later violation. Delivery of keys to the Landlord, and Landlord's acceptance of same, shall not be considered termination of this Lease.

27. Notices. All notices given under this Lease must be in writing in order to be effective. Delivery of notices may not be refused. If any notice is refused, it shall be considered to have been effectively given. Notices shall be given, unless applicable law requires a different means of notice, by (a) personal delivery, or (b) certified mail, return receipt requested, or (c) nationally recognized overnight delivery service providing proof of delivery (i.e., FedEx, UPS, DHL, etc.). Notices to the Landlord shall be at the address on the first page of this Lease, and to the Resident at the Apartment. Either party may change the address for such notice by providing written notice of such change in accordance with this Section.

28. Notice Requirements for Renewal or Vacating the Apartment. At least forty-five (45) days prior to the end of the Term, Resident shall notify Landlord in writing of the Resident's intention to either (i) vacate the Apartment at the conclusion of the Term or (ii) renew his/her occupancy of the Apartment for an additional one (1) year term. Resident has the option to renew his/her occupancy of the Apartment for a one (1) year term, subject to accepting Landlord's modifications to the Lease permitted by law, which may include the use of Landlord's then current form of lease and/or market rent for the Apartment. Landlord will use its best efforts to notify Resident approximately sixty (60) days prior to the end of the Term of any change in Rent and any new form of lease that will be applicable to the Apartment. If Resident notifies Landlord within the timeframe required herein or his/her intention to renew, Resident must sign any and all documents required by Landlord to effectuate the lease renewal within the time frame specified by Landlord. If Resident fails to notify Landlord in the time frame required herein or fails to sign the documents required by Landlord to effectuate the lease renewal in the time frame specified by Landlord, the Resident must vacate the Apartment at the conclusion of the Term or Resident will become a hold-over tenant/resident (see Section 41 hereof).

29. Pets. In Landlord's sole discretion, in those buildings where Landlord permits pets, Resident shall be entitled to keep 0 pets in accordance with and subject to executing and entering into the Landlord's Pet Addendum if such Addendum is attached to this Lease and signed by both parties.

30. Signs. The Resident may not put any sign or projection (such as a TV or radio antenna) in or out of the windows or exteriors of the Apartment.

31. Infestation/Disease. Any infections or contagious diseases occurring in the Apartment which normally would be, or are required by any applicable law, rule or regulation to be, reported to the Board of Health shall also immediately be reported to the Landlord. The presence of insects or vermin in the Apartment shall likewise be immediately reported to the Landlord. Under either circumstance, Resident shall fully cooperate and give the Landlord and Landlord's agents access to the Apartment in order to provide effective and timely pest control or other appropriate treatments. Should the Apartment suffer the presence of insects or vermin which the Resident has introduced into the Apartment, the Resident agrees to be held liable and responsible for paying, as Additional Rent, all reasonable and necessary pest control and related abatement costs to treat and re-treat the Apartment and adjacent apartments or common areas. Should the Apartment suffer the presence of insects or vermin which the Resident fails to report to the Landlord as required above, and should the Apartment or any adjacent apartments or other locations in the Building become infested thereby as a consequence of Resident's failing to promptly report same, then Resident shall be responsible for paying, as Additional Rent, all reasonable and necessary pest control and

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related abatement costs the Landlord incurs to treat and re-treat the infestation, including treatment in adjacent apartments and common areas, even if the Resident has vacated the Apartment. Failure by the Resident to comply with any portion of this paragraph shall be considered a material and substantial breach of this Lease and an Event of Default and will subject the Resident to eviction pursuant to appropriate proceedings.

32. Window Guards. The Resident may have window guards installed by the Landlord in the Apartment and the public halls, provided that: (1) the Resident makes a written request to the Landlord for such installation; and (2) a child 10 years of age or younger resides in the Apartment or are regularly present in the Apartment for a substantial period of time; and (3) the Apartment is located higher than the first floor. Residents living on the first floor may only request window guards on windows in public halls above the first floor to which persons in the Resident's Apartment have access without having to exit the building. Window guards shall not be installed on any window giving access to a fire escape. Resident shall not obstruct or interfere with the installation of the window guards in the Apartment or otherwise, nor shall Resident remove or otherwise render ineffective such window guards. Resident shall grant the Landlord access to the Apartment to inspect each window guard in the Apartment. Any expenditures made by the Landlord in connection with installation and maintenance of the window guards shall be deemed to be improvement cost for the Apartment, which may be, at the Landlord's option, passed onto the Resident. These costs shall be considered Additional Rent.

33. Megan's Law. Under New Jersey law, the county prosecutor determines whether and how to provide notice of the presence of convicted sex offenders in an area. You may contact the county prosecutor for such further information as may be disclosed to you.

34. Alarms. The smoke detector and carbon monoxide alarm for the Apartment, as required by law, shall be the responsibility of the Landlord. However, if such alarms are battery operated, the Resident shall be responsible for their maintenance, including installation of new batteries when and as need, and no less frequently than once each calendar year.

35. Eminent Domain. Eminent domain is the right of a government to take private property for public use. Fair compensation must be paid. If any part of the Apartment or Building is taken by eminent domain, either party may cancel this Lease on thirty (30) days' notice to the other. The entire payment for the taking shall belong to the Landlord. The Resident shall make no claim for the value of the remaining part of the Term.

36. Severability. If any term or condition of this Lease is contrary to law, the remainder of the Lease shall be unaffected and shall continue to be binding upon the parties.

37. Additional Rent. If the Resident fails to comply with any of the terms of covenants described in this Lease, the Resident understands that the Landlord may charge the Resident, and Resident shall pay to Landlord upon demand, for costs, fees and expenses related to the occupancy of the Apartment, the administration of the Building and property on which the Building is located, and Landlord's costs attributable to the tenancy described herein incurred as "Additional Rent." Additional Rent will be due and payable in accordance with the Monthly Base Rent as described in Paragraph 5. Failure to pay the Additional Rent when and as due shall be deemed the same as failure to pay the Monthly Base Rent and shall be an Event of Default. All amounts due under any Addendum executed by Resident shall also be deemed Additional Rent.

In addition to any and all items specified throughout this Lease as Additional Rent, Resident understands and agrees that Landlord can charge Resident Additional Rent for any of the following items:

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A. Late Fee – In the event that Resident's Rent or Additional Rent (or any part thereof) is paid later than the fifth (5th) day of any month in which Rent and or Additional Rent is due, the Resident shall pay to the Landlord a charge equal to $100.00 (the "Late Fee") as Additional Rent with the next Rent payment. In the event that Resident's Rent or Additional Rent (or any part thereof) is paid later than the tenth (10th) day of any month in which Rent and/or Additional Rent is due, in addition to all other amounts due, interest ("Interest") equal to the lesser of twelve percent (12%) or the highest amount permitted by law on all Rent and Additional Rent (including the Late Fee described in the prior sentence), which interest shall commence when such Rent and/or Additional Rent was first due and ending on the date same is received by Landlord. If this Lease is terminated or the Lease naturally expired, Resident will pay the Late Fee and Interest owed within thirty (30) days after the amount was billed.

B. Check Fee. Landlord encourages Resident to make all payments due hereunder by electronic payment for ease of processing and record-keeping. Should Resident desire to pay via check, Resident shall pay together therewith a check processing fee in the amount of 25.00 per check. Failure to pay the check processing fee together with any payment hereunder made by check shall be deemed a breach of this Lease.

C. Returned Checks – Resident shall pay to Landlord a fee of $50.00 any time a check is not honored for payment. Landlord is under no obligation to continue to accept personal checks from any Resident whose payments are repeatedly not honored for payment (i.e., two (2) or more times during any twelve (12) month period), and may require, at Landlord's discretion, that all payments of Rent and Additional Rent thereafter due be paid by cash, bank certified funds, cashier's check, money order, direct deposit or electronic bank transfer. In such case, payment by personal check shall not be deemed payment of any amount due hereunder.

D. Utilities – Resident will pay Utilities as set forth in Section 13 hereof. If Resident fails to transfer utilities in to a personal account with the applicable utility company, Landlord may, but shall not be required to, obtain such utilities in Landlord's own name or that of an agent. In such event, Landlord shall bill Resident the cost of utilities used plus a Failure to Transfer Utility Fee in the amount of $250.00 each month until such time as Resident transfers the utilities to a personal account and provides proof of such transfer, with such amounts being deemed Additional Rent and due immediately upon receipt of invoice or statement from Landlord. The administrative fee will not be pro-rated for any partial month. Notwithstanding the foregoing, even if Landlord transfers such utilities into its own name or that of an agent due to Resident's failure to comply with its obligations under Section 13 hereof, failure to comply with Section 13 or failure to pay the Additional Rent set forth in this subsection shall be an Event of Default by Resident.

E. Administrative Fee – If the Resident vacates the Apartment at any time other than at the expiration or permitted earlier termination of the Lease Term, Resident will be liable for the Monthly Base Rent and any Additional Rent to the end of the scheduled Term of the Lease or until such time as the Apartment is re-rented as outlined in Paragraph 28. In addition, if Resident vacates the Apartment before the expiration date or permitted earlier termination of the Lease, notwithstanding the fact that the Landlord either accepts, surrenders or re-rents the apartment, the Resident will be charged, and agrees to pay to Landlord within thirty (30) days, an Administrative fee equal to two (2) months of Rent. This charge shall be in addition to charges levied by the Landlord on account of damage to the Apartment beyond ordinary wear and tear.

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38. Attorneys' Fees and Additional Costs/Fees. Resident acknowledges and agrees that the Landlord is entitled to receive, and Resident shall pay, (i) a $350.00 preparation fee ("Preparation Legal fee") for the cost of preparing a summons and complaint, which may be prepared at any time after Rent becomes due and owing or as otherwise permitted by law, and whether or not the summons and complaint is prepared by an attorney or someone else, (ii) the court and filing fees related to the enforcement of this Lease, and (iii) any and all other costs, fees and expenses, including reasonable attorneys' fees, associated with the enforcement of this Lease, including but not limited to collection of sums owed to Landlord and removal of Resident from the Apartment. Any fees incurred by Landlord, including the Preparation fee and any reasonable attorneys' fees incurred by Landlord, will not be waived and must be paid with all other Rent due in order for any legal action to be terminated. Any and all costs, fees and expenses collectible pursuant to this clause, including but not limited to attorneys' fees and costs, shall be deemed Additional Rent and are due and owing to Landlord even if Resident makes full payment of any outstanding Rent.

39. Building Rules and Regulations. Resident shall abide by the Building Rules & Regulations attached as **Exhibit A**, as if each of the items set forth in the Building Rules and Regulations were included herein in at length. Landlord retains the right to amend the Building Rules and Regulations from time to time and Resident agrees to be bound by the Building Rules and Regulations as amended from time to time by Landlord. Resident will be charged fees for violating the Building Rules and Regulations set forth in **Exhibit A**.

40. **Amenities**. The Building in which the Apartment is located may contain certain Amenities. Payment of Rent, payment of any applicable Amenities' fees, and Resident's compliance with the terms and conditions of this Lease entitles Resident to the use of the Amenities, but solely subject to entering into the Amenities Addendum and complying with the terms contained therein, including those set forth in the Amenities Rules (which are attached to the Amenities Addendum), all as may be amended from time to time by Landlord. Resident understands and agrees that failure to abide by any of the applicable Amenities Rules and/or breach of this Lease (including any and all payment obligations herein) may result in the loss of the use of the Amenities. Landlord reserves the right to amend the Amenities Rules for any of the Amenities from time to time and Resident agrees to be bound by such Amenities Rules as amended. In the event Resident loses the use of the Amenities due to Resident's breach of this Lease, violation of the applicable Amenities Rules, or failure to make any payment when and as due, any Amenities fees already paid shall be forfeited and Resident shall not be entitled to any refund.

41. Resident's Hold Over. If Resident fails to relinquish possession of the Apartment and vacate the Apartment after the natural expiration or earlier termination of this Lease, a new tenancy from month-to-month shall be created between Landlord and Resident which shall be subject to all of the terms and conditions hereof except that (i) the Base Rent then due and owing shall be **150.00%** of the monthly Base Rent paid prior to the expiration of this Lease and (ii) such tenancy shall be terminable upon thirty (30) days written notice served by either party., pursuant to N.J.S.A. 2A:42-5 and N.J.S.A. 2A:42-6, Resident acknowledges and accepts the increase in Rent specified in this paragraph because of the convenience associated with a month-to-month tenancy and Landlord's increased costs and loss of stability inherent in a month-to-month lease. Notwithstanding the foregoing, nothing contained in this Section shall prevent or impact Landlord's right to pursue any of its rights or remedies against Resident, including but not limited to seeking to evict Resident, due to any Event of Default of Resident, and the creation of a month-to-month tenancy as set forth in this Section 41 shall not be deemed a cure of any Event of Default of Resident (including but not limited to Resident's failure to vacate the Apartment when and as otherwise required by this Lease and/or the failure to pay Rent when and as due).

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42. Parking Space. Resident shall not have access to any parking space to any parking space associated with the Building unless otherwise set forth in an Addendum hereto. -

43. Urban Area Disclosure. Prospective residents are hereby advised that the Building and property on which the Building is located is located within an Urban Area. There are adjacent properties that are under construction, railroad lines, roads, highways and other similar uses and forces that may generate noise and may have other impacts upon the Apartment. In addition, there is presently construction in the vicinity of the Apartment and there is proposed construction, including but not limited to, the construction of the adjacent project, all of which will generate noise and have other impacts.

44. Apartment Disclosure. Resident should be aware that there will be differences between the model unit and the unit actually leased (i.e., the Apartment). These differences may include differences in layout, unit size, fixtures, appliances, finishes and unit dimensions, including but not limited to ceiling height. These differences may also include a different view or no view. As a result, Resident should examine the individual floor plans for each unit and his/her Lease to confirm what is included in the Apartment and the view from the Apartment. The Apartment as constructed may differ from the individual floor plans because of field conditions, construction techniques and other circumstances beyond Landlord's control. Landlord makes no representation or warranties of any kind except as may be explicitly set forth in the Lease.

45. Deed Notice. The Premises is subject to a Deed Notice (to be recorded in the Hudson County Register's office) required by the New Jersey Department of Environmental Protection ("NJDEP") in connection with the Landlord's remediation of the Premises under a plan approved by NJDEP. A copy of the Deed Notice, which describes the remediation and contains certain restrictions and covenants with respect to the Premises, will be provided to Resident upon request.

46. Abandonment. If at any time during the Term of this Lease, Resident abandons the Apartment or any part thereof (each of which shall also be an Event of Default), Landlord may, at Landlord's option, (i) obtain possession of the Apartment in the manner provided by law and without becoming liable to Resident for damages or for any payment of any kind whatsoever, and/or (ii) as agent for Resident, relet the Apartment, or any part thereof, for the whole or any part of the then unexpired Term, and may receive and collect all rent payable by virtue of such reletting. Landlord may hold Resident liable for any difference between the Rent that would have been payable under this Lease during the balance of the unexpired Term, if this Lease had continued in force, and the net rent for any reletting by Landlord. If Landlord's right of reentry is exercised following abandonment of the Apartment by Resident, then any personal property remaining in the Apartment at such time (whether previously belonging to Resident or not) shall also be deemed, in which case Landlord may treat or dispose of same as abandoned property (i.e., that left in the Apartment at the end of the Lease) pursuant to the terms of this Lease.

47. Additional Grounds for Termination. Resident acknowledges and agrees that the following are reasonable and necessary requirements for the safety and security of the Apartment, the Building and property on which the Building is located, and violation of any of these requirements shall be and Event of Default:

a) Any action occurring in the Apartment by Resident or his/her guest, invitee or family member which endangers the health, safety, or welfare of others;
b) Failure to maintain the Apartment in a habitable condition; or
c) Failure to provide Landlord access to the Apartment described in Paragraph 17.

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48. Keys and Locks. The Apartment is equipped with a door lock. At Landlord's option, said lock will be accessible to Resident by either a physical key or digital key. If there are physical keys to the Apartment, Resident must provide Landlord with a key to the Apartment. Landlord may utilize the physical key or digital key to enter the Apartment in case of an emergency, to show the Apartment to prospective future residents in event Resident will not be renewing the Lease, for any other reason as set forth in this Agreement or as otherwise permitted by applicable law. Resident shall not install additional or different locks or gates on any doors or windows of the Apartment. At no time may Resident leave any key in an unsecure or public area, nor share with anyone who does not reside in the Apartment or work for Landlord. If Resident desires the lock(s) of its Apartment to be changed, Resident may request in writing, that the Landlord replace the lock(s) on the Apartment and Resident's upon payment of the charge specified in the Schedule of Maintenance Cost (**Exhibit B** to Lease), Landlord will change the lock(s). Loss of key(s) to the Apartment will be treated as a request for a change in lock(s).

49. Binding. This Lease is binding on the Landlord and the Resident and all parties who lawfully succeed to their rights or take their place.

50. Entire Agreement. This Lease, its Exhibits and the executed Addendum(s) attached hereto, contains the entire agreement of the Landlord and Resident and may not be changed except in a writing signed by all the parties. The Headings of paragraphs in this Lease are for convenience and reference and do not define the lease conditions. To the extent of any conflict between the terms of this Lease and any Addendum hereto, the terms of the Addendum shall control.

51. Rent Control. The Apartment may be subject to or exempt from the provisions of the municipality's rent control ordinance or other similar ordinances. The applicability of such provisions may impact rent increase, if any, which Resident may or will be charged if this Lease is renewed. If the Building and/or Apartment are exempt from said provisions, such exemption will be detailed by Landlord in a separate Addendum to this Lease.

52. Attachments to the Agreement. The following can be provided upon request

a) Ownership Registration Statement

b) Megan's Law Notification

c) Truth in Renting Handbook

d) Lead Paint Disclosure to the extent applicable

53. No Smoking. SMOKING IS PROHIBITED THROUGHOUT THE BUILDING IN WHICH THE APARTMENT IS LOCATED, INCLUDING BUT NOT LIMITED TO ANY OUTSIDE AREAS.

54. Consumer Information Statement Acknowledgment. By signing below, the Landlord and Resident acknowledge they received the Consumer Information Statement of New Jersey Real Estate Relationships from the brokerage firms involved in this transaction prior to the first showing of the Property. Declaration of Licensee Business Relationship(s): JCity Realty LLC as its authorized representative(s) are working in this transaction as Landlord's Agents.

55. Miscellaneous. If at any time Resident makes a payment to Landlord for any amount which is smaller than the full amount due and owing to Landlord, Landlord's acceptance of this smaller amount shall not be considered a settlement or satisfaction of the full amount due regardless of any statement on

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or in connection with such payment, and will not prejudice Landlord's right to collect the full amount due and to exercise any and all other rights available to Landlord under this Lease and by law. Resident shall not record this Lease on the Public Records of any public office and doing so by Resident shall be an Event of Default. In the event Resident shall record this Lease, this Lease shall, at Landlord's option, terminate immediately and Landlord shall be entitled to all rights and remedies that it has at law or in equity.

56. Photo and Video Release. By executing below, Resident hereby grants Landlord and our agents and affiliates (collectively, the "Released Parties") written permission, consent and a license to take, use, reuse, and publish the likeness of Resident and any minor occupants in all photographs or other electronic and/or digital media, which has been taken outside of the Apartment, in any and all of Landlord's publications, including, without limitation, any website entries, advertising websites, and any other marketing materials. Resident understands and agrees that these materials will become the property of the Released Parties and will not be returned. Resident agrees to irrevocably authorize the Released Parties to edit, alter, copy, exhibit, publish, or distribute this media for any lawful purpose whatsoever including, without limitation, promotional and advertising uses. Resident waives the right to inspect or to approve the finished product, including any written or electronic copy, wherein Resident's likeness appears now or in the future. In addition, you waive any right to payment, royalties, or any other compensation arising or related to the use of the media.

57. Disclosures. Truth in Renting. Resident acknowledges receipt today of the Truth in Renting information, as required to be provided by New Jersey law (NJSA §46:8-45).

Insurance. Resident acknowledges that Landlord informed Resident as required by New Jersey law (NJSA §46:8-39) that Resident may be eligible to purchase theft/crime insurance through Safety Management Institute.

Flood Zone. The Building is located in a confirmed flood zone or area. Resident should consult with the Federal Emergency Management Agency ("FEMA") or the New Jersey Department of Environmental Protection ("NJDEP") for additional information on the flood zone and/or emergency preparedness. This disclosure is being made pursuant to N.J.S.A. 46:8-50.

This Rent Control Exemption. Pursuant to N.J.S.A. 2A:42-84.1 through 84.6, the Building and its apartments are exempt from the applicability of rent control, rent leveling, and/or rent stabilization ordinances adopted by the City of Jersey City. This exemption shall apply for a period of time not to exceed the period of amortization of any initial mortgage loan obtained for the multiple dwelling, or for thirty (30) years following completion of construction, whichever is less. Additionally, the Building and its apartments are further exempt from rent control, rent leveling, and/or rent stabilization ordinances adopted by the City of Jersey City, pursuant to the Jersey City Land Development Ordinance §260-1(A)(4) and §260-2(A). By virtue of this disclosure and the execution of the Lease, Resident recognizes, agrees, and acknowledges this exemption and confirms receipt of notice thereof in satisfaction of N.J.S.A. 2A:42-84.3, et seq.

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58. Signatures. The Landlord and the Resident agree to the terms of this Lease by signing below. By signing this Lease, the Resident hereby acknowledges he/she has read each condition and fully understands the terms of this Lease.

Resident Signature: _____ Date _____

Resident Name: Andrew Giordano

Resident Signature: _____ Date _____

Resident Name: David Voychuk

Resident Signature: _____ Date _____

Resident Name: Ashay Grover

Resident Signature: _____ Date _____

Resident Name: _____

Resident Signature: _____ Date _____

Resident Name: _____

Resident Signature: _____ Date _____

Resident Name: _____

Landlord: 175 Second Street LLC

By _____ Date: _____

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EXHIBIT A TO LEASE - BUILDING RULES AND REGULATIONS

We are very pleased to welcome you to DVORA 175. Please take a moment to read the following Building Rules and Regulations (the "Building Rules") to familiarize yourself with the policies, procedures and amenities available to you.

The Building Rules are to ensure that all residents may enjoy a clean, safe, and quiet environment. Please help make this happen by cooperating with these Rules!

All residents and guests must comply with the Building Rules, which have been established for the safety, care, cleanliness and good order of the property and the comfort, quiet and convenience of all residents and neighbors. Additional rules shall become effective upon notice.

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Exhibit A-1 to Lease – Lobby / Common Area Rules (Non-Amenities Spaces)

1. THE ENTIRE BUILDING, INCLUDING INDOOR AND OUTDOOR is smoke free. Smoking is prohibited throughout the Building.
2. The lobby and its furnishings should be treated responsibly. Common areas are not to be used as a place for entertainment or business transactions (other than the designated areas).
3. Use of rollerblades, scooters, bicycles and the like is not permitted in the lobby or in common areas.
4. Children are to be supervised at all times and to play only in designated areas. No one is permitted to play in common area such as hallways, stairways, basement, lobby or elevators.
5. Appropriate attire (including shirts and footwear) is to be worn in common areas at all times.
6. Property of the lobby or lounge should not be taken, damaged or otherwise altered.
7. Loud or disruptive noise is prohibited.
8. Sidewalks, halls, passages, stairways and other points of ingress and egress must remain clear. Neither residents nor their visitors are permitted to loiter or use the areas for storage for any personal items, including but not limited to bicycles and strollers.
9. Residents are not permitted to access the upper roof and elevator bulkhead if one exist unless an emergency necessitates doing so
10. Residents, their family, and guest are not permitted to injure or destroy the lawns, shrubs, or grounds of the Building or the complex of which the Building is a part.
11. Residents are not to feed animals including birds or take any other action that will attract such animals to the Building. No birdfeeders are allowed.
12. Entry and exit doors shall remain closed at all times. No doors shall be propped open or rendered inoperable by Resident. Fire exit doors are for emergencies only and are not to be used for normal entry and exit.
13. Explosives or flammable materials are not permitted in the building
14. Hallway electric outlets and light bulbs shall not be used for personal use.
15. No electrical or extension cords may be run in the hallways or common area unless provided by the Building.
16. Residents may not have more than 2 guests in the common areas at a time, subject to applicable guest fees.
17. Residents must keep all common areas they use in clean and tidy condition. Please clean up after yourself and your guests.
18. No Personal Items should be left in any common area.
19. All residents and their guests are expected to respect other residents, including by keeping noise to a minimum when entering or leaving an Apartment or in the surrounding areas of other residents' doors or apartments.
20. Residents with Pets are expected to keep their pets off of any common area furniture, and out of common area rooms.

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Exhibit A-2 to Lease - In Apartment Rules

1. Smoking is prohibited throughout the Apartment.

2. Apartments are for the purpose of single family private dwellings. No business, trade or profession of any kind can be conducted in the Apartment.

3. Residents are required to keep noise level sufficiently reduced at all times so as not to disturb the peace, enjoyment and comfort of other residents or residents. If Landlord's employees or agents request a reduction in noise from any Apartment, Resident will immediately abide by said request.

4. No animals or pets are permitted on the Property or in the Building unless said animal or pet is the subject of a Pet Addendum to the Lease.

5. Bathroom facilities are to be used only for the purpose in which they were constructed. No rubbish, rags, ink, chemicals, garbage, disposable diapers, or other improper substances are to be flushed down a toilet.

6. Cooking oils and/or grease are to be disposed of properly. Do not flush either substance down a toilet or pour either substance down a sink or bathtub drain.

7. All doors and windows exposing the unit to the outside elements must be closed prior to leaving Apartment to prevent damage to the unit.

8. Resident is responsible for any damage to the unit caused by the installation or removal of any items to the walls, floors, doors, trim, etc.

9. Resident must give landlord prompt notice of any defects or malfunction of the plumbing, fixtures, appliances, heating apparatus or any other matters in the apartment needing repair.

10. No washing machine or dryer, unless provided by Landlord, is permitted in the Apartment. Resident shall not overload any washing machine or dryer provided by Landlord.

11. All cooking shall occur only in the kitchen on the stove or microwave provided.

12. Explosives or flammable materials are not permitted in the Apartment.

13. Water and other utilities are to be used only for household purposes. Resident shall be conscious of consumption and take reasonable steps to conserve water and utilities.

14. No water beds are permitted in the Apartment.

15. Cable TV, Internet and phone services shall be provided only by an authorized provider. Unauthorized use of cable TV or theft of service shall be considered a breach of the Building Rules. A list of authorized providers is available on the resident portal.

16. Upon move out, all kitchen appliances, bathroom fixtures, floors, and washers and dryers must be thoroughly cleaned.

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17. The Apartment shall be covered with rugs or carpeting to the extent of at least 80 percent (80%) of the floor area of each room excepting only kitchens, pantries, bathrooms, and hallways.

18. Residents shall prevent any offensive odors.

19. Residents shall adhere to all appliance manuals in detail for operation and maintenance issues.

20. Residents may not have more than 2 guests in their Apartment.

Exhibit A-3 to Lease – Balcony, Terrace, Garden, Roof and Window Rules

1. Each Resident is required to maintain his/her balcony in a neat and orderly condition.

2. Residents shall not paint, stain or otherwise alter their balcony flooring.

3. Cooking/grilling on balconies is restricted to electrical grills. Gas, charcoal or propane grills are strictly prohibited, except where a gas connection is provided by Landlord and specific permission is granted by Landlord.

4. Hanging clothes, towels, clotheslines, rugs, bedding and the like on balconies is prohibited.

5. Residents and guests are prohibited from securing any items or fixtures to any balcony above the balcony or balconies associated with their Apartment.

6. No signs, notices, advertisements, illuminations or other projections are permitted on the windows or the exterior of Building.

7. The use of balconies as a holding area for pets is prohibited. No resident shall keep a pet on the balcony unattended for extended periods or overnight.

8. The construction of any structure or fence on a balcony is prohibited.

9. Flower planter and boxes shall be securely attached to the inside of balcony railings in the appropriate receptacles to prevent the spilling of irrigation water.

10. No installation of radio or television aerials, including satellite dishes on or in the Building(s) or hanging from the windows, balconies or fire escapes.

11. No additional locks or hooks can be placed upon any door or window.

12. Nothing may be thrown or intentionally dropped from a balcony. This includes but is not limited to cigarette butts, and waste material. In view of the seriousness and dangerousness of any such activity, a fine of at least $500.00 will be incurred by the resident upon the first infraction of this rule. No warning will be provided for this violation.

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Exhibit A-4 to Lease - Garbage and Sanitary Rules

1. Garbage shall be disposed of properly in the designated areas. All local requirements regarding recycling shall be abided by. Resident shall not permit the accumulation of garbage in the Apartment and shall comply with all health and sanitary codes. All refuse and garbage shall be handled in the following manner:
    a. Garbage is to be secured in plastic bags and disposed of by depositing the bags in compactor provided in the compactor closet on the Resident's floor or the designated area. If any garbage is dropped in the halls or compactor room, Resident is responsible for cleaning the mess created.
    b. Bulky and very large items which may clog the compactor chute must be brought to the area designated by the Resident. Resident may find additional information on the Resident Portal. . Landlord reserves the right to charge a reasonable fee to dispose of such items.
2. Any case of infectious or contagious disease shall be reported to the Landlord.
3. The presence of insects or vermin in any unit or hallway shall be reported to the Landlord.
4. If Landlord exterminates within the Building, Resident shall remove items from the floor and take other reasonable steps that are requested by Landlord to assist the process.
5. It is the responsibility of each resident to remove large items from the property such as mattresses, appliances or furniture of any kind.
6. Resident is to avoid throwing anything down the trash chute that will not fit in his/her regular trashcan.

Exhibit A-5 to Lease – Violations of Building Rules

In addition to all other rights and remedies of the Landlord pursuant to the Lease or applicable law, and without prejudice to Landlord's right to exercise its remedies under the Lease, including but not limited to, pursuing damages, eviction and/or Lease termination, the Landlord shall have the following rights with respect to Resident's failure to comply with the Building Rules:

1. First Violation: Except as otherwise set forth in the Building Rules or the Lease, Landlord will endeavor to send Resident a letter from Management outlining the Violation. Such notice may also be verbal. However, Landlord's failure to do so shall not prevent Landlord from enforcing its rights set forth herein and in the Lease for subsequent violations.

2. Second Violation: Resident will be fined $150.00.

3. Third Violation: Resident will be fined $250.00.

4. Fourth and future Violation: Resident will be fined $500.00.

5. In addition to all of the above, if Resident violates the Lease restrictions of assignment and subletting and fails to cure same within 24 hours of notice from Landlord, Resident shall be obligated to immediately pay to Landlord $1,000 for each day that such impermissible assignment or subletting remains without prejudice to all of Landlord's rights and remedies under the Lease and applicable law.

6. Nothing set forth herein shall restrict or limit Landlord's obligation to declare an Event of Default as permitted in the Lease regardless of any fine set forth above.

7. Landlord's acceptance of any fine set forth above shall not be deemed acceptance of Resident's breach, nor avoid such act of Resident as being an Event of Default unless explicitly set forth in writing by Landlord.

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Exhibit B to Lease – ESTIMATED DAMAGES AND REPAIR SCHEDULE

Dated: February 15, 2021

The following represents an estimate of Landlord's costs, fees, and expenses for which resident may be liable under the Lease. However, these costs, fees, and expenses are subject to change. For more specific and up-to-date costs, fees, and expenses, please contact the Community Expert.

Service Contractors (Replacement Cost $ + labor $)

- Paint/drywall/spackle
- Wood floor/tile damage
- Door/Window/Screen
- Cabinet
- Countertop

- Appliances (includes washer/dryer)
- Intercom
- Phone jack
- Carbon monoxide/smoke detector
- Sprinkler head
- HVAC repair
- Exterminator/pest control
- Common area damage

Legal

- Minimun Legal fee (Resident Charge): $350.00
- Court Filing Fee $53.00
- Roommate Court Filing Fee $5.00/Roommate

Keys & Hardware

- Make additional key
- Mail Box cylinder
- Entry Door key & cylinder

- Replace FOB Fee $45.00
- Garage Remote Fee $0.00
- Lockout
  - Working Hours Fee (M-F 9:00am-5:00pm): $125.00
  - Off working Hours Fee (all hours except M-F 9:00am-5:00pm and holidays): $225.00

Resident Amenities

- Guests $20.00/per guest
- Private party/event (season/location) TBD

Violations

- Noise
- Smoking

- Garbage
- Pet
- Amenity
- Inconvenience Fee $500.00
- Misconduct Fine $500.00

EXHIBIT C TO LEASE – MOVING COMPANY INSURANCE REQUIREMENTS

Residents must obtain from any moving company or services used to move any items to, in or out of the Apartment an insurance certificate evidencing that the moving company or service has insurance in force and give a copy of the certificate to the Community Expert:

TYPE COVERAGE	LIMIT OF LIABILITY
Comprehensive General Liability, Combined Single Limit Bodily Injury and Property Damage, And Broad Form Property Damage	2000000.00
Automobile Injury, Combined Single Limit	$1,000,000.00
Umbrella Liability	$5,000,000.00
Worker's Compensation	as required by law

Certificate shall name 175 Second Street LLC, DVORA Life LLC, and their respective employees, officers and directors, as **additional insured** in each policy. The Landlord can require a change in additional insured(s) at any time.

Failure to maintain insurance coverage in accordance with this Exhibit C will constitute a breach of this Lease and shall entitle Landlord to deny the movers access to the Building. The only acceptable evidence of insurance is an endorsement to each of the required policies evidencing that coverage required are in force and that each policy is deemed primary coverage in event a claim is made, and that no policy can be cancelled unless thirty (30) days' prior to notice is given to the Landlord.

Certificate holder:

175 Second Street LLC
C/O DVORA Life LLC
155 2nd Street, Jersey City, NJ 07302

EXHIBIT D TO LEASE – MOVE IN/MOVE OUT AGREEMENT

Building: DVORA 175
Move In Date: February 26, 2021

Resident: Andrew Giordano, David Voychuk and Ashay Grover
Apartment No. 0603

By signing below, Resident hereby acknowledges and agrees to the following move in/move out requirements and procedure for the above- referenced Building.

Resident is responsible for any and all damage caused to the Building and/or elevator during Resident's move in and/or move out from the Building. Landlord shall have the right to charge Resident the cost of repair in accordance with Exhibit B to this Lease as Additional Rent for any damage caused by Resident (or by someone acting on behalf of Resident) during Resident's move in or move out. All move in and move out times must be scheduled in advance with the Community Expert. Resident can only move in or out during his/her scheduled time. Move ins and move outs are scheduled on a first come first serve basis. Please check with the Community Expert for days and times available. There shall be no move ins and move outs on Saturday or Sunday. Landlord is not responsible for any loss of any kind to Resident if Resident's choice of move in/move out time is unavailable. Resident acknowledges that if Resident moves at any time other than his/her scheduled time, Resident will be charged the Inconvenience Fee as Additional Rent for the inconvenience caused to the Building and other residents.

Prior to move in/move out date referenced above, Resident shall provide Landlord with the Resident's moving company's insurance certificate naming the Landlord as an additional insured party. If Resident is not using an insured mover, Resident agrees to pay Landlord $500.00 as security deposit for move in and move out in advance of the move. Resident agrees to indemnify and hold Landlord and its agents harmless from any and all damages and personal injury to any party which is caused by Resident, its invitees and guests during the move in/move out period.

Additionally, Resident will follow all other instructions provided by Landlord with respect to areas designated in the Building for moving. If Resident fails to complete his/her move in/ move out during the designated time, Resident must consult the Community Expert for additional instructions.

If Resident fails to remove any item from the Apartment during a move out, it will be deemed that Resident has abandoned said item(s) and Resident acknowledges that Landlord shall remove the item(s) at Resident's cost and shall otherwise treat such item(s) in accordance with abandoned property under the Lease.

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Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

EXHIBIT E TO LEASE – WINDOW GUARD

Acknowledgement of Verbal Window Guard Notification

At the time of Lease signing, I/We, Andrew Giordano, David Voychuk and Ashay Grover resident of Apartment 0603 at DVORA 175 was advised that pursuant to New Jersey Law,

- The owner (Landlord) is required by law to provide, install and maintain window guard in the Apartment if a child or children 10 year of age or younger is, or will be, living in the apartment or is, or will be, regularly present there for a substantial period of time if the Resident gives the owner (Landlord) a written request that the window guards be installed.

- The owner (Landlord) is also required, upon the written request of the Resident, to provide, install and maintain window guards in the hallways to which persons in the Resident's Apartment have access without having to go out of the Building. If the Building is condominium, cooperative or mutual housing building, the owner (Landlord) of the Apartment is responsible for installing and maintaining window guards in the Apartment and the association is responsible for installing and maintaining window guards in hallway windows.

- Window guards are only required to be provided in the first floor windows where the window sill is more than six feet above grade or there are other hazardous conditions that make installation of window guards necessary to protect the safety of children.

- Costs not exceeding $20 per window guard installed in a unit may be passed on the Resident who requested the installation of the window guard, subject to any municipal ordinance to the contrary.

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

EXHIBIT F TO LEASE – GARBAGE DISPOSAL AND RECYCLING

The Building has a conveniently located garbage disposal location in a designated Disposal Area, which may contain a garbage chute. In consideration of other residents, the garbage chute is only to be used between the hours of 24/7 and 24/7 to avoid inconvenience to your neighbors. Nothing is to be left on the floor of any room or location which is used for the disposal of garbage. All garbage must be properly bound, packaged, bagged and sealed to prevent any undue odor, mess or damage during the disposal process. All garbage disposed of in the garbage chute must be firmly pushed down the chute and not left within the container at the opening of the chute. The following items are strictly prohibited from being disposed of in the chute: hazardous materials, flammable materials, materials which do not easily fit within the chute, batteries, electronics, computers, oil/gas, toxic chemicals, books, anything which is recyclable, furniture, oversized items, glass, sharp objects, wire, wire hangers, or cloth/towels/fabric. All of the foregoing items are either hazardous, or may block the chute, resulting in damage and costly repairs or injuring the individuals handling the trash. Failure to comply with the foregoing terms can and will result in a fine to Resident, and Resident will be liable for any damage or injury caused by such violation.

Any item that does not fit where trash is supposed to be disposed may be picked up by building staff for an additional cost. Please coordinate the pickup with the Community Expert at least 24 hours in advance. The Community Expert might reject your request based on the item's nature or size. The pickup by Building staff is limited to one item at a time, and the cost will be determined on a case-by-case basis.

As an environmentally friendly Building, we urge all Residents to recycle. Recycling bins are located Refuse Room - Every Floor. Please separate paper, plastic and glass, and store them in the designated bins/locations. Items that should be recycled are:

- Glass bottles and jars (washed)
- Metal cans (washed, place loose lids inside)
- Plastic bottles & jugs (please remove caps, flatten if possible)
- Corrugated cardboard, cleaned pizza boxes (no larger than 2' x 2' x 1", flattened)
- Newspapers, magazines, and catalogues, telephone books, paperback books (tear away pages from spine)
- Egg, milk and juice cartons (flattened and empty), paper rolls and paper bags
- Cereal boxes, detergent boxes, drinking / juice boxes and shoe boxes

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- Household paper (shredded junk mail, envelopes, writing and computer paper)
- Gift wrap, cards (no ribbons or bows)

Prohibited And Special Items must be disposed based on:

Electronics(including computers)	JCDPW 201-547-4400
Christmas Trees	Season- Each Wednesday During January
Paint Cans	Drop Off - JCIA13-15 Linden Avenue
Oil / Antifreeze	Drop Off - JCIA13-15 Linden Avenue
Furniture	JCDPW at 201-547- 4400

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EXHIBIT G TO LEASE – CONTACT INFORMATION

Building phone number: 201-484-5533
Building Concierge Weekdays: 24 hours/ 7 days–
Building Concierge Weekends and Holidays: 24 hours/ 7 days –
Community Expert: M-F 9am – 5 pm
Community Expert e-mail address: 175@DVORAlife.com
Community Expert text: N/A
Emergency after-hours: Call Building phone number and listen to options
Medical emergency: Call 911
Building phone, internet, and TV provider phone number: Verizon - 1-800-837-4966
Common Area WiFi network: Dvora Wifi 175
Common Area WiFi password: Dvora175!
Building gas provider phone number (PSE&G): 1-800-436-7734
Building electric service provider phone number (PSE&G):1-800-436-7734
Building water service provider phone number (SUEZ): 1-800-575-4433

N/A

EXHIBIT H TO LEASE – UTILITIES, PHONE AND INTERNET SERVICE

Phone, Internet and Television

Your Apartment may be pre-wired for phone and/or Internet service and/or television. Under either circumstance, it is your responsibility to make all arrangements for the commencement of service for any or all of such services with the appropriate service provider. Your service providers are: Verizon If your Apartment is not pre-wired, you must contact the Community Expert to determine your options to have such services made available at your Apartment. Under no circumstances may you have a satellite or any other device attached to the exterior of your Apartment.

Gas, Electric and Water

Your Apartment is served by an electric meter numbered 136258808. Prior to your move-in date, please contact PSE&G and have the meter for your Apartment activated in your name. Failure to do so may result in service interruption. Cold water and hot water are provided by SUEZ collectively to all units in the Building. To the extent your Apartment uses gas for cooking, gas is provided by PSE&G collectively for all units in the Building. Landlord reserves the right to charge these utilities to the Resident to the extent permitted in the Lease.

Heating and Cooling

For the proper and efficient heating and cooling of your Apartment, we encourage Residents to shut off or appropriately adjust the system when the room or Apartment is empty. In addition, we recommend that Residents set the thermostat to 70-75 degrees Fahrenheit in the Summer and 68-65 degrees Fahrenheit in the Winter.

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EXHIBIT I – ADDITIONAL BUILDING TERMS

Access to the Building

The Building may have a Concierge at the front desk up to 24 hours per day / 7 days a week. Should the Building have a Concierge and the Concierge be away from his/her station at any, or if the Building does not have a Concierge, the Resident's entry to the Building is gained by using the Resident's access fobs. The access fobs work by simply placing it in close proximity to the readers mounted adjacent to the doors.

If the Building has a Concierge, all visitors must register with the Concierge before entering the property. Upon a visitor checking in with the Concierge, the Concierge will call to confirm Resident is at home and that Resident authorizes the visitor to enter the property, and only thereafter will allow the visitor to enter the property. If the Building has a Concierge, the Concierge will first use the internal intercom system to contact Resident, and if there is no reply, he or she will contact Resident on Resident's cell phone to the extent such number has been provided. Please note that all Building staff have been given strict instructions to ensure all visitors are announced before entering the Building.

NOTE: For Security purposes we strongly recommend that you DO NOT grant Building access to people claiming they have forgotten their access fobs. In the event that it occurs, please send any such person to the Concierge or Front Desk.

Two complimentary access fobs are issued to each new Resident upon move in. Should Resident require additional access fobs, please contact the Community Expert – additional fobs are available for purchase. All keys, access fobs, and laundry cards must be turned over to the Community Expert upon vacating of the unit. Non-residents, agents, and/or visitors are not permitted to be given access fobs.

Appliances information

All the appliances information can be found in the Resident Portal.

Emergency Procedures

For an emergency, always call 911 first and then advise the Concierge, your Community Expert, or another member of the Building staff of your emergency.

Fire Safety

Your Building is equipped with the following fire safety systems: HIGH RISE

In the case of a fire emergency, don't panic and listen carefully to the instructions announced over the alarm speakers. In the event a small fire cannot be extinguished with the use of a portable fire extinguisher, or the smoke presents a hazard, be sure to make reasonable efforts

to contain the affected area first before evacuating, including closing any applicable doors. Ensure to the best of your ability that the closest pull station has been activated and the fire department has been notified. Remember, in case of fire do not use the elevator - use the closest emergency exit.

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DVORA™

ADDENDUM TO LEASE – AMENITIES AND BUILDING SERVICES

This Addendum is attached to and made part of the Lease between Landlord and Resident signing below with respect to an apartment (the "Apartment") located in a building located at 175 2nd Street, Jersey City, New Jersey 07302 (the "Building"). **BY SIGNING THIS ADDENDUM, THE RESIDENT ACKNOWLEDGES THAT IT HAS READ ALL NECESSARY TERMS AND CONDITIONS AND EXPRESSLY CONSENTS TO SAME.**

The Building contains the amenities listed below (the "Amenities")., As a Resident in good standing, you may have the privilege of using the Amenities provided that you comply with the terms, conditions, fees, and reservation requirements set forth in a separate agreement to be provided by the property manager. Use of the Amenities are also conditioned upon Resident, and its invited guest(s) (as permitted) abiding by the Rules and Regulations for each space. Landlord reserves the right to amend any Rules and Regulations from time to time.

Amenities

1) The Roof Deck (North Roof) + Barbeque Grilling Stations
2) La Playa (The Pool Area)
3) Bike Room

The Building also contains the areas listed below, which are **NOT** a part of the building Amenities ("Non-Amenity Areas"). These areas will be open to the public and patronized by non-residents. Residents will have no preferred rights to use these areas.

1) The Café
2) The Lobby
3) The Upper Deck (Lobby Mezzanine)
4) DVORA Hall (Located on Rooftop for Private Events only)
5) Wellness Center (Separate Terms, Conditions and Fees Apply)

Notwithstanding the foregoing any Default under the Lease shall terminate any rights to the Amenity and Non-Amenity Areas until such time Default is cured.

Except as specifically stated herein, all other terms and conditions of the Lease shall remain unchanged. In the event of any conflict between the terms of this Addendum and the terms of the lease, the terms of this Addendum shall control. Any term that is capitalized but not defined in this Addendum that is capitalized and defined in the Lease shall have the same meaning for purposes of this Addendum as it has for purposes of the Lease.

I/ We, **Andrew Giordano, David Voychuk and Ashay Grover** as the Resident(s), do hereby Agree to abide by the Terms and Conditions set forth herein and as they may be amended from time to time.

Resident Sign: _____ _____

Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

ADDENDUM TO LEASE - PACKAGE ACCEPTANCE AND DELIVERY

This Package Acceptance and Delivery Addendum ("Package Addendum") is attached to and made part of the Lease between Landlord and Resident signing below. **BY SIGNING THIS ADDENDUM, THE RESIDENT ACKNOWLEDGES THAT IT HAS READ ALL NECESSARY TERMS AND CONDITIONS AND EXPRESSLY CONSENTS TO SAME.**

Resident authorizes the property manager to accept, but property manager has no obligation to so accept, packages on behalf of Resident on the terms set forth in this Package Addendum. Resident assumes all risks associated with authorizing property manager to accept packages on Resident's behalf and agrees that property manager shall not be responsible for lost, misplaced, stolen or damaged packages accepted by property manager on behalf of Resident, nor for any packages which are reasonably deemed by property manager to have been abandoned due to not being picked up by Resident within a reasonable amount of time.

The property manager is not required to accept delivery of any item or package which it deems, in its sole discretion, to be or contain anything which is dangerous, illegal, displays on the package images of an inappropriate sexual nature, or unsafe. The property manager also reserves the right, with or without Resident's consent (which consent is hereby given by entering into this Package Addendum) to report to the appropriate governmental entity or authority the receipt or delivery of any package or item which property manager reasonably believes to be of a criminal nature or connection to a criminal or illegal activity.

To the extent applicable, property manager may have a room equipped with a refrigerator for temporarily storing perishable items. Use of the refrigerator is on a first-come, first-served basis, and the property manager makes no representations concerning the availability of the refrigerator or that it will be sufficient to store Resident's package(s).

Additionally, as a service provided to the Building, the property manager may cause any package the property manager accepts delivery of to be delivered directly inside Resident's Apartment ("In-Unit Delivery"). By executing below, Resident consents to this In-Unit Delivery.

By consenting to In-Unit Delivery, you are authorizing the property manager, its employees and/or its contractors to unlock, access and enter your Apartment for the purpose of providing the In-Unit Delivery. You also agree that the property manager, its employees and/or contractors have no responsibility or liability whatsoever for the acts or omissions of any person to whom you provide right of entry to your Apartment. The property manager, its employees and/or contractors is not liable or responsible to you whatsoever for any early, delayed or missed deliveries, or entries to your residence occurring outside at inopportune, unscheduled or inconvenient times. The property manager, its employees and/or contractors is not liable or responsible to you whatsoever for any lost or stolen items, or any damage or injuries to persons or property caused by persons you invite into your residence to provide In-Unit Delivery or otherwise.

Any Resident who wants to opt out of the In-Unit Delivery shall contact the Community Expert for instructions on how to do so.

If Resident opts out of In-Unit Delivery, once the Resident is advised by the property manager that a delivery company has delivered a package to the Building for Resident, Resident must pick-up such package within two (2) business days. If the package is not picked up within this time period, property manager may charge Resident a reasonable storage fee. Additionally, all items stored in the

refrigerator must be picked up the same day as delivery or they will be removed and will not be kept in the refrigerator overnight.

IN CONSIDERATION OF ENTERING INTO THIS ADDENDUM, RESIDENT HEREBY AGREES TO DEFEND, INDEMNIFY, HOLD HARMLESS, RELEASES AND FOREVER DISCHARGES LANDLORD, ITS MANAGING AGENTS (INCLUDING BUT NOT LIMITED TO ANY ENTITY MANAGING THE BUILDING), THE OWNER OF THE BUILDING, THEIR AFFILIATED AND RELATED ENTITIES, AND THEIR RESPECTIVE PAST, PRESENT AND FUTURE OWNERS, OFFICERS, DIRECTORS, TRUSTEES, PARTNERS, MEMBERS, ATTORNEYS, EMPLOYEES, INSURERS, AGENTS, SUCCESSORS AND ASSIGNS ("RELEASED PARTIES") FROM AND AGAINST ANY AND ALL CLAIMS, DEMANDS, LIABILITIES, INJURIES, DAMAGES AND ACTIONS, KNOWN OR UNKNOWN, DIRECT OR INDIRECT, WHICH RESIDENT OR ANY OTHER PERSON OR ENTITY HAD, MIGHT NOW HAVE, OR MAY HAVE AGAINST ANY OF THE RELEASED PARTIES ARISING OUT OF, RELATING TO OR IN CONNECTION WITH, DIRECTLY OR INDIRECTLY TO THE ACCEPTANCE OR REJECTION OF ANY PACKAGES AND/OR LANDLORD'S COMPLIANCE WITH ANY OF ITS RIGHTS HEREUNDER. THIS RELEASE IS ON BEHALF OF RESIDENT OR ANY PERSON RESIDING WITH RESIDENT.

Except as specifically stated herein, all other terms and conditions of the Lease shall remain unchanged. In the event of any conflict between the terms of this Addendum and the terms of the lease, the terms of this Addendum shall control. Any term that is capitalized but not defined in this Addendum that is capitalized and defined in the Lease shall have the same meaning for purposes of this Addendum as it has for purposes of the Lease.

By signing below, Resident hereby acknowledges that he/she has read each and every condition, and fully understands and consents to the terms of this Addendum.

ss _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

DVORA™

ADDENDUM TO LEASE – THERMOSTAT

This Addendum ("Thermostat Addendum") is attached to any made part of the Lease between Landlord and Resident signing below.

Resident(s): Andrew Giordano, David Voychuk and Ashay Grover
Building: DVORA 175
Apartment: 0603

WHEREAS, Resident has entered a Lease (the "Lease") with Landlord with respect to an apartment (the "Apartment") located in a building located at 175 2nd Street, Jersey City, New Jersey 07302 (the "Building"); and

WHEREAS, the parties now wish to enter into this Addendum for the purpose of memorializing the foregoing.

NOW, THEREFORE, Resident hereby acknowledges and agrees to the following:

The Apartment will be equipped with a "smart" thermostat that can be used to remotely control the temperature of the Apartment. Such a thermostat is designed to save energy and lower heating and cooling costs. The thermostat will also provide alerts to indicate potential problems to allow issues to be addressed and resolved in a timely manner. Resident acknowledges that Landlord shall have a direct connection and access to the thermostat in the Apartment. Resident acknowledges and contents that Landlord, and/or its agent, shall be permitted to remotely control the thermostat and change the temperature settings in the Apartment in an emergency. Resident acknowledges and consents that Landlord has no obligation to monitor or change the thermostat settings and Resident shall be solely responsible to ensure that the thermostat is set to a safe and habitable temperature and that all equipment is operating properly. Resident also acknowledges and consents to Landlord's access to and review of any and all data produced by the thermostat. Nothing in this Addendum shall have any effect on Resident's responsibility to pay utilities pursuant to the Lease.

By signing below, Resident hereby acknowledges that he/she has read each and every condition, and fully understands and consents to the terms of, this Addendum.

ss _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____

DVORA™

ADDENDUM TO LEASE – FREE RENT

This Free Rent Addendum ("Free Rent Addendum") is attached to any made part of the Lease between Landlord and Resident signing below.

Resident(s): Andrew Giordano, David Voychuk and Ashay Grover
Building: DVORA 175
Apartment: 0603

In consideration for Resident entering into the Lease and complying with the terms thereof, Landlord agrees to give Resident a credit in the amount of $4,433.00 ("Free Rent Credit"). The Free Rent Credit will be a one-time credit and applied on 03/2021.

The Free Rent Credit shall not include any Additional Rent, including but not limited to rentable items, pet rent, fees, etc., or any other amounts due pursuant to any other Addendum to this Lease. Therefore, Resident agrees to pay any and all Additional Rent when and as due under the Lease.

If the Resident vacates the Apartment at any time other than at the expiration of the Lease Term, or commits an Event of Default, as such term is defined in the Lease, Resident shall be required to reimburse Landlord the Free Rent Credit, which amount shall be deemed Additional Rent under the Lease, and which shall be due in one lump sum payment upon the sooner of: (a) Resident vacating the Apartment, (b) fifteen (15) days after Resident has committed an Event of Default, and/or (c) ten (10) days after Resident provides notice to Landlord of his/her intent to vacate the Premises prior to the expiration of the Lease (whether or not such vacation of the Premises is permissible under the Lease).

By signing below, Resident hereby acknowledges that he/she has read each and every condition, and fully understands the terms of, this Free Rent Addendum.

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Landlord Signature:
Date:

DVORA™

ADDENDUM TO LEASE – FREE RENT

This Free Rent Addendum ("Free Rent Addendum") is attached to any made part of the Lease between Landlord and Resident signing below.

Resident(s): Andrew Giordano, David Voychuk and Ashay Grover
Building: DVORA 175
Apartment: 0603

In consideration for Resident entering into the Lease and complying with the terms thereof, Landlord agrees to give Resident a credit in the amount of $4,433.00 ("Free Rent Credit"). The Free Rent Credit will be a one-time credit and applied on 07/2021.

The Free Rent Credit shall not include any Additional Rent, including but not limited to rentable items, pet rent, fees, etc., or any other amounts due pursuant to any other Addendum to this Lease. Therefore, Resident agrees to pay any and all Additional Rent when and as due under the Lease.

If the Resident vacates the Apartment at any time other than at the expiration of the Lease Term, or commits an Event of Default, as such term is defined in the Lease, Resident shall be required to reimburse Landlord the Free Rent Credit, which amount shall be deemed Additional Rent under the Lease, and which shall be due in one lump sum payment upon the sooner of: (a) Resident vacating the Apartment, (b) fifteen (15) days after Resident has committed an Event of Default, and/or (c) ten (10) days after Resident provides notice to Landlord of his/her intent to vacate the Premises prior to the expiration of the Lease (whether or not such vacation of the Premises is permissible under the Lease).

By signing below, Resident hereby acknowledges that he/she has read each and every condition, and fully understands the terms of, this Free Rent Addendum.

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Resident Sign: _____ _____
Date

Landlord Signature:
Date:

NJ DEPARTMENT OF COMMUNITY AFFAIRS
DIVISION OF CODES AND STANDARDS
LANDLORD/TENANT INFORMATION SERVICE
101 South Broad Street
PO Box 805
Trenton, NJ 08625-0805
www.nj.gov/dca/divisions/codes

TRUTH IN RENTING

A guide to the rights and responsibilities of residential tenants and landlords in New Jersey

New Jersey Department of
COMMUNITY AFFAIRS
101 South Broad Street,
PO Box 805
Trenton, NJ 08625-0805
www.nj.gov/dca

To view the complete DCA Programs Book, please visit:
www.nj.gov/dca/publications

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Department of Community Affairs

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Greetings from the DEPARTMENT OF COMMUNITY AFFAIRS

Congratulations on renting your home in New Jersey! The Department of Community Affairs is here to help with this new responsibility by providing you with important information about renting in our state.

The 'Truth in Renting' Act was signed in 1976. Since then, DCA has produced this booklet as a reference guide to help you understand your rights as a renter, and the responsibilities and rights of landlords. This booklet outlines information about your lease, security deposit, discrimination, safety, health and many other issues related to your rented home. It is updated annually so you have the most current information on laws, regulations and other information pertaining to renting in New Jersey.

We hope you find this booklet a valuable resource and encourage you to read through it and refer to it often. Congratulations again on renting your new home in New Jersey.

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TABLE OF CONTENTS

INTRODUCTION

About the "Truth-in-Renting" Act 1
About the Current Statement 1
Special Note on Applicability 1

THE LEASE

General Provisions 2
Mobile Home Leases - Private Residential Leasehold Communities 3
Public Housing Leases 4
Renewal and Breaking 4
Notice to Terminate the Lease Agreement 6
Termination of the Lease Due to Domestic Violence 6
Service Members Civil Relief Act 8
Right of Entry 8
Security Deposits 9
Pets 12
Discrimination 12
Modification of the Rental Premises for People with Disabilities 13
Consumer Fraud Protection 13
Disposal of Personal Property Left By Tenant Once the Tenant Has Moved from the Premises 13
Credit Checks and Background Checks 14

RENT

Senior Citizens Grace Period 14
Nonpayment and Distraint 15
Rent Increases and Rent Control 15
Public Financed and Subsidized Housing 16
Property Tax Rebate for Tenants 16
New Jersey Homestead Property Tax Credit 17

HABITABILITY

Identity of Landlord 17
Health, Safety and Maintenance Standards 18
State Inspection and Enforcement 18
Child Protection Window Guards 19
Carbon Monoxide and Smoke Detectors 19
Locks 20
State Heat and Utility Requirements 20
Rent Receivership for Substandard Housing and Diversion of Utilities 21
Local Board of Health 21
"Repair and Deduct" and "Rent Withholding" 21
Multifamily Housing Preservation and Receivership 22

Document digitally signed using RENTCafe eSignature services. Document ID: 121818

Public Housing Maintenance 23
Federal Lead-Based Paint Disclosure 23
Lead Based Paint 24
Posting of Drinking Water Test Results 25
Flood Plain Notification Requirement 26
Crime Insurance Information 26

EVICTION

"Self Help" Evictions 26
Causes for Eviction 27
Evictions for Owner-Occupied Two-and Three-Family Dwellings 33
Rooming and Boarding House Evictions 33
Public Housing Evictions 34
Penalties for Eviction Law Violations 34
Reprisal - Civil Rights of Tenants 34
Procedures for Recovery of Premises 35
Evictions Due to Foreclosure 35
Notice Requirements to Tenants Prior to the Transfer of Title Due to a Foreclosure Action 36
Notice Requirements to Tenants After the Transfer of Title Due to a Foreclosure Action 36

SENIOR CITIZENS AND DISABLED TENANTS

Senior Citizen and Disabled Protected Tenancy 37
Tenant Protection Act of 1992 37
Disclosure Statement to Senior Citizen Housing Residents 38

ENDNOTES FOR TRUTH IN RENTING 38
NEW JERSEY JUDICIARY OMBUDSMAN OFFICES 41
ANTI-DISCRIMINATION OFFICES 42
NJ LEGAL SERVICES PROGRAMS 42
APARTMENT HOUSE SAFETY TIPS 44
OPERATION IDENTIFICATION 45
ADDITIONAL AGENCIES AND ORGANIZATIONS 46
ORDER FORM 49

INTRODUCTION

ABOUT THE "TRUTH IN RENTING" ACT

The "Truth in Renting" Act was signed into law on February 19, 1976, as Chapter 310 of the New Jersey Public Laws of 1975. The Act requires the New Jersey Department of Community Affairs to prepare, distribute, and update annually a statement in English and in Spanish of the established rights and responsibilities of residential tenants and landlords in the State. The Act calls for distribution of the statement to all tenants with a rental term of at least one month living in residences with more than two dwelling units (or more than three if the landlord occupies one). The landlord is required to give a copy of the current statement to each tenant when a lease is entered into, and to make available the current statement in the building where the tenants can easily find it. The landlord should keep documentation or receipts verifying distribution of the Truth in Renting statement to new tenants.

A landlord who does not properly distribute the statement is subject to a penalty of up to $100.00 for each offense. Enforcement of this statute is handled through the Superior Court, Special Civil Part, Landlord-Tenant Section of the county where the building is located or of the county where the defendant resides.

ABOUT THE CURRENT STATEMENT

The Truth in Renting Statement is available on our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html. The Landlord-Tenant Information Service does not have jurisdiction over the administration of the courts, nor can the Service render legal advice. Any change in the size of print or content of the booklet that is not approved in writing by the Landlord-Tenant Information Service will be considered a violation of the Act. The deadline for distributing the current statement is 30 days after the Department of Community Affairs makes it available for distribution.

The statement is based on existing State laws, regulations and court cases. Its purpose is for information and reference only, not for legal advice. It is not a complete summary of all laws and court decisions that concern landlord–tenant relations. Any person who plans to take a legal action in a landlord-tenant dispute may wish to consult the appropriate enforcing agency, a county legal services agency, a private attorney, or an owners', tenants', or mobile home organization (see back of booklet for address and telephone listings).

SPECIAL NOTE ON APPLICABILITY

The information contained in this Statement should be generally useful to all residential tenants and landlords in New Jersey. However, not all the laws apply to all types of buildings. A person can find out if a law applies to his or her situation by carefully reading the section describing that law. If it does not say that there are exceptions, then the law applies to all residential tenants and landlords.

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THE LEASE

GENERAL PROVISIONS

A landlord-tenant relationship is formed when a landlord allows another person to use a dwelling unit for a specified period of time in return for rent. A dwelling unit may be an apartment, a house, a room or a mobile home or mobile home space. Parties to a lease must be at least 18 years old and mentally competent. [1]

A lease may be either oral or written. If written, it must be in plain language. [2] This means that it must be written so that an average person can understand it.

The Truth-in-Renting Act [3] provides that any written lease entered into or offered to a tenant must not violate any State laws in effect at the time the lease is made. Provisions of a lease must be reasonable. Once a lease has been made, neither party can be made to accept any new agreements while it is in effect. Any fees that the landlord intends to charge should be clearly stated. This can prevent confusion and possible disputes later. A lease may permit a "late charge" when the rent is not paid by a certain date, and may also provide for payment by the tenant of the landlord's attorney fees and court costs in the event of eviction for non-payment of rent or for other causes.

The written lease must expressly permit a landlord to recover reasonable attorneys' fees and include late fees as a part of rent in order for a judge to consider those expenses as additional rent in a summary dispossess proceeding. [4]

The tenant should read the rental agreement before signing. It is advisable for the tenant to get a copy of the lease for his or her own records at the time that it is signed. If a new landlord takes over the building, both the new landlord and the tenant must honor the pre-existing rental agreement until it expires.

Later disputes can be avoided if tenant and landlord (or landlord's representative) walk through the unit together and make a list (which both should sign) of all items that are in need of repair or replacement. Neither a tenant nor a landlord has the right to damage the other's property and either can be sued by the other for any property damage.

Some provisions found in leases are a matter of preference by the landlord. Examples of such provisions are: 1) A landlord may restrict subletting or assigning of the leased unit; 2) A landlord may forbid or limit the keeping of domesticated animals; however, in senior citizen housing projects or senior citizen planned real estate developments (senior citizens must be 62 years of age or older and shall include a surviving spouse if that surviving spouse is 55 years of age or older), having three or more rental units, a landlord must permit domesticated animals unless they become a nuisance or the tenant does not follow rules and regulations concerning care and maintenance;[5] 3) A landlord may require tenants to give copies of keys; and 4) A landlord may require a tenant to obtain renter's liability insurance.

If a lease contains provisions that are against State statutes, local ordinances or governmental regulations, or a tenant feels a provision is unreasonable, the tenant has the right to enter an action in Superior Court, Law Division, Special Civil Part, of the county where the building is located asking the court to remove the provision from the lease. [6] If a tenant and landlord cannot agree on a lease provision prior to

acceptance of the document, the tenant may pursue a court action for clarification of the provision, or the landlord may take the tenant to court in an eviction action, where the judge would decide the issue.

Although not required by all municipalities, where required it is the responsibility of the landlord to obtain a certificate of occupancy before a new tenant moves into a unit.

A landlord may not forbid or prevent installation of cable service or unreasonably restrict the installation of an individual satellite dish and may not require advance payment for permission to install it. Installation must be in compliance with the Federal Communications Commission (FCC). Satellite dishes must be placed on the property where the tenant has exclusive use or control. The landlord may restrict installation in common areas such as the stairwells, roofs, or exterior walls of a multiple dwelling. The landlord may also reasonably restrict installation to prevent damage to the property, if there is a safety risk, or if the property is a historic building or in a historic district. In addition, if a common antenna is available for use by residents, then the landlord may disallow the installation of an individually owned satellite dish, provided the services and costs are the same. [7] If a tenant or landlord wishes to file a complaint regarding the lease or local government restrictions regarding installation of a satellite dish, he or she may contact the Office of the Secretary, Federal Communications Commission, 445 12th Street, S.W., Washington, D.C. 20554, Attn: Media Bureau.

MOBILE HOME LEASES - PRIVATE RESIDENTIAL LEASEHOLD COMMUNITIES LAW

A mobile home park or private residential leasehold community landlord or operator is required: 1) to offer a written lease for at least 12 months to each household within the park/community. The lease must be offered within 30 days from the time the new owner lawfully moves in; 2) to give the home dweller a copy of all park/community rules and regulations prior to signing a lease; 3) to post a copy of park/community rules and regulations in a recreation hall or some other place within the park/community where they can be easily found; and 4) to fully disclose all fees, charges and assessments, which must be based on actual costs incurred, and all rules and regulations, before the occupant moves in. [8] Written notice of any changes must be given at least 30 days before the changes become effective.

Except in the case of emergency, no landlord or operator may move, or require anyone else to move, a home owned by someone else, unless it can be shown that it is reasonably necessary to do so and 30 days written notice is given. All costs of moving a home at the demand of the landlord or operator, including any loss or damage, must be paid by the landlord or operator. Any entrance fee or other payment to get into a park/community accepted by a landlord or operator makes the landlord or operator a disorderly person and the person making the payment can recover double its amount plus costs in Superior Court, of the county where the park/community is located or of the county where the landlord resides.

No landlord or operator may deny any resident the right to sell their home within the park/community or require the unit to be moved solely because it is being

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sold. The landlord or operator can reserve the right to approve the purchaser, but permission cannot be unreasonably withheld. The posting of a "For Sale" sign on a home may not be forbidden, nor can the landlord or operator charge a commission or fee for the sale unless he or she acted as the sales agent under a written agreement with the homeowner.[9]

The Private Residential Leasehold Community law has restrictions, for those communities fitting the statutes' definition that outline rights and responsibilities in the areas of community homeowner associations, first sales and removal of the community from residential use, or sale of the entire community. For further information, please request a copy of the law and refer to the list of additional sources of information covering mobile homes in the back of this booklet.

PUBLIC HOUSING LEASES

Public housing authorities must follow lease regulations developed by the U.S. Department of Housing and Urban Development (HUD) as well as existing State laws. The HUD regulations list both provisions that must be included in housing authority leases and provisions that may not be included. Questions regarding public housing can be directed to the U.S. Department of Housing and Urban Development, New Jersey State Office, 1 Newark Center, Attn: Public Housing, Newark, New Jersey 07102-5260, (973) 622-7900.

RENEWAL AND BREAKING

A lease is a binding contract between the landlord and the tenant and cannot be broken for any reason by either party except as detailed below:

No landlord of residential rental properties, except those in owner occupied two- or three-family dwellings, motels, or hotels, transient, or seasonal units, may fail to renew any lease, regardless of whether it is written or oral, unless they have good cause not to renew the lease. The good causes for eviction are detailed under the section entitled "Eviction." [10] Tenants of two- or three unit owner-occupied buildings should refer to the section entitled "Evictions for Owner-Occupied Two- and Three-Family Dwellings."

Under the Lease Termination Due to Disabling Illness, Accident or Death Law, [11] a tenant may break his or her lease, under the following conditions. A 40 day written notice of lease termination is required in each instance. The tenant must vacate and return possession of the property to the landlord at least five working days prior to the 40th day following the receipt of the notice by the landlord. Rent must be paid up until the termination date.

a) In certain circumstances, a tenant suffering a disabling illness or accident resulting in a loss of income may break a lease having a term of one or more years after submitting a form prescribed by law and available through the New Jersey Department of Community Affairs. For copies, please visit our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html.

b) Tenants 62 years of age or older that are accepted into an assisted living facility, a nursing home, or a continuing care retirement community may break his or her lease. The tenant, spouse or legal representative must provide the landlord with written notice of termination of the lease and attach a certification of a treating physician stating that the tenant or spouse needs to be in an assisted living facility, nursing home, or continuing care retirement community and documentation that the tenant has been accepted into one of those facilities.

c) Tenants 62 years of age or older that do not already reside in low or moderate income housing and are accepted into low or moderate income housing may break their lease agreements. The tenant, spouse or legal representative must provide the landlord with written notice of termination of the lease and attach documentation of a lease or intent to lease from the low or moderate housing project.

If a landlord cannot or will not make a dwelling unit handicapped-accessible at the landlord's own expense for a disabled tenant or a member of the tenant's immediate family who is disabled as a result of the loss of use of one or more limbs or requires an assistive device to move about, the lease can be terminated on the 40th day following receipt by the landlord a Notice of Lease Termination and the Certification of Treating Physicians forms, submitted by the tenant to the landlord. [12] These forms may be obtained by visiting our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html, or writing us at, Landlord-Tenant Information Service, P.O. Box 805, Trenton, New Jersey, 08625.

The same procedure applies to the termination of a lease in the event of the death of the tenant or the tenant's spouse, except that a specific form is not prescribed. [13] These provisions for early termination do not apply to any lease that specifically provides otherwise.

A landlord may sue a tenant who breaks a lease and the tenant can be held responsible for payment of rent through the expiration date of the lease plus the landlord's costs to re-rent the unit. To mitigate the losses incurred, a landlord is required to make a good faith effort to re-rent the unit. [14] A tenant is not responsible for rental payments for any time that the unit is re-rented at a rent equal to or higher than the current rent. Also, a tenant will not be held responsible for rent payments if the tenant can demonstrate that the reason for breaking the lease was that the rental unit was unlivable. "Constructive eviction" is the term used to describe a situation wherein a tenant must move because the landlord does not maintain the rental unit in a livable condition. [15] Because the determination of money due to the landlord or the tenant will ultimately be made by a judge in Superior Court, proper documentation of the unlivable conditions and *written* notice to the landlord demanding that these conditions be corrected are essential to making a case for constructive eviction.

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NOTICE TO TERMINATE THE LEASE AGREEMENT

A tenant has the responsibility to pay the full amount of rent on time. An owner has the responsibility to maintain the dwelling in a livable condition.

A tenant who remain in a unit after giving his/her landlord notice of his/her intent to leave may be held responsible for double the rent payments for the months that the tenant continues to occupy the unit. [16] Unless the lease states otherwise, a tenant who intends to move when the lease ends must give the landlord written notice at least one full month in advance.

Month-to-month leases renew automatically unless the tenant or landlord acts to end the lease. A tenant may terminate a month-to-month lease (or any rental agreement that does not have a specific term) by providing a written notice one month in advance of the time that the renewed rental period would start. For example if a tenant's rent is due on January 15th the tenant must give the landlord notice on or before December 15th if the tenant wants to move out before the new rental period begins on the 15th of the next month. A landlord must follow the requirements of the Eviction Law and cannot refuse to renew a lease without good cause (See Causes for Eviction), except in the case of owner-occupied two and three family dwellings, transient or seasonal tenants.

Most yearly leases will have a section explaining how the lease can be renewed. The lease may, for instance, state that unless either the landlord or tenant ends the lease, it will renew automatically. Most yearly leases require a 60 to 90 day notice. If a tenant fails to give proper written notice or it is not given in time, the lease will renew. A yearly lease that is not renewed automatically becomes a month-to-month lease.

TERMINATION OF THE LEASE DUE TO DOMESTIC VIOLENCE

According to the New Jersey Safe Housing Act victims of domestic violence may terminate their lease without penalty prior to the expiration by providing the landlord with a written notice that the tenant or a child of the tenant faces an imminent threat of serious physical harm from a specific person, (that must be identified in the written notice) if the tenant remains on the premises *and* by fulfilling any of the following requirements:

a) a certified copy of a permanent restraining order issued by a court under The Domestic Violence Protection Act of 1991 and protecting the tenant from the person named in the written notice;

b) a certified copy of a permanent restraining order from another jurisdiction issued pursuant to that jurisdictions laws concerning domestic violence, and protecting the tenant from the person named in the written notice;

c) a law enforcement agency record documenting the domestic violence, or certifying that the tenant or a child of the tenant is a victim of domestic violence;

d) medical documentation of the domestic violence provided by a health care provider;

e) certification, provided by a certified Domestic Violence Specialist, or the director of a designated domestic violence agency, that the tenant or a child of the tenant is a victim of domestic violence; or

f) other documentation or certification, provided by a licensed social worker, that the tenant or a child of the tenant is a victim of domestic violence.

The lease termination shall take effect on the thirtieth (30th) day following receipt by the landlord of one of the notices listed above and a written notice from the tenant that she or he intends to vacate the premises. The rent shall be pro-rated up to the time of the lease termination. [17]

If there are tenants on the lease other than the tenant who has given notice of termination of the lease due to domestic violence, the co-tenant's lease also terminates. The co-tenant may enter into a new lease agreement with the landlord at the landlord's option.

Where the leased premises are under the control of a public housing authority or redevelopment agency, the victim of domestic violence must give notice in accordance with any relevant regulations pertaining to public housing leases.

A landlord shall not disclose information documenting domestic violence that has been provided to the landlord by a victim of domestic violence. The information shall not be entered into any shared databases or provided to any person or entity. However, the information may be used as evidence in an eviction proceeding, legal action for unpaid rent or damages from the tenancy, with the consent of the tenant, or as otherwise allowed by law.

Within 15 business days after a lease terminates due to domestic violence, the landlord must return to the tenant or her or his designated agent upon request, any advanced rent, or security deposit, plus accrued interest. However, within three (3) business days after the termination, the landlord must provide written notice to the victim of domestic violence by personal delivery or mail to the last known address, indicating the location of the security deposit and hours in which the tenant may pick up his or her security deposit. The landlord must provide a duplicate notice to the relocation officer. If there is no relocation officer, notice must be provided to the municipal clerk. The security deposit must be available for return during normal business hours for thirty (30) days in the municipality where the rental property is located. The security deposit must be accompanied by an itemized list of the interest earned and any deductions. Any security money not demanded by and returned to the tenant or the tenant's designated agent within 30 days shall be redeposited or reinvested by the landlord, in accordance with the Security Deposit law. The landlord may charge for any money due the landlord under the terms of the lease, including damages to the property that are not ordinary wear and tear and any rent due and owing at the time the lease is terminated. [18]

This law does not apply to seasonal rentals.

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SERVICE MEMBERS CIVIL RELIEF ACT

A service member leasing an apartment before entering the military has the legal right under this act [19] to break the lease under the following circumstances: a) at any time after the renter's entry into military service; b) the service member, while in military service, executes the lease and thereafter receives military orders for a permanent change of station or to deploy with a military unit for a period of not less than 90 days; c) the service member, while in military service, executes the lease and thereafter receives military orders for a permanent change of station outside of the continental United States or to deploy with a military unit for a period of not less than 180 days. The service member must provide the landlord with written notice of termination of the lease and a copy of the military orders. Notice of termination of the lease must be provided in advance. Termination of the lease is effective on the last day of the month following the month in which the notice is delivered. The service member will incur no further monetary responsibility after providing the landlord with the proper notices. The landlord is required to return the security deposit in accordance with the applicable law.

Moreover, if the rent does not exceed $2,400 per month, (this amount will increase each year in accordance with the CPI component for housing), eviction actions may be stayed by the courts for three (3) months unless the court finds that the tenant's ability to pay rent is not materially affected by reason of the military service.

For further information about the Act including specific notice requirements and time frames, military personnel can contact the Legal Assistance Section of Fort Dix at (609) 562-3043 McGuire Air Force Base at (609) 754-4601 or the Reserve Office of Fort Monmouth, Legal Services at (732) 532-4371.

RIGHT OF ENTRY

There is no law in New Jersey that either requires a tenant to give a landlord a key or prohibits a landlord from keeping a key to a rented unit. The courts have generally approved lease provisions that require that the tenant provide a key to the landlord, citing circumstances where the lack of a key could result in loss of life or property in the case of an emergency. A dispute between a landlord and tenant over the use of a key that cannot be settled by mutual agreement might have to be settled in Superior Court. The court may deny the landlord the right to have a key if the tenant can show that the landlord has abused the right. Such abuse may include using the key to enter the tenant's home without prior notice (except in the case of an emergency). Moreover, the landlord may be liable to the tenant for damaged or stolen property if the landlord is known to have a key and known to enter the rental unit when the tenant is not home.

A tenant disputing a landlord's right to a key can simply refuse to provide the landlord with one. The landlord may then seek an action for eviction based on a refusal to comply with reasonable lease provisions. The landlord then has the burden of proving that the request is not unreasonable.

Tenants should note that the regulations governing the maintenance of hotels and multiple dwellings, N.J.A.C. 5:10-5.1(c), provide that "every occupant of each unit of dwelling space shall give the owner thereof or his agent or employees access

to any part of the building upon reasonable notification, which under ordinary circumstance shall be one day for multiple dwellings ...for the purpose of making such inspection and such repairs or alterations as are necessary to effect compliance with the law and these regulations. In case of safety or structural emergencies immediate access shall be given."

The purpose of this regulation is to allow for inspections in order to maintain multiple dwellings in the interest of public safety, health and welfare, according to N.J.A.C. 5:10-1.2. There is no statute or available case law that dictates a notice requirement or tenant's obligation to allow a landlord access to the rental premises to show for re-renting or selling the property. The issue of entry should be addressed in the lease. Disputes that arise regarding a landlord's right of entry must be decided on a case-by-case basis in court.

SECURITY DEPOSITS

The Security Deposit Law applies to most residential rental properties, including mobile homes. The exception is an owner-occupied two- or three- family dwelling. A tenant in an owner-occupied two- or three-family dwelling may, however, make this provision applicable to his or her tenancy 30 days after sending a written request to the landlord that the landlord fulfill the requirements of the Security Deposit Law. [20]

The security deposit cannot be more than one and one-half times one month's rent. [21] It can be less. Any additional yearly security deposit increase may not exceed 10% of the current security deposit. A landlord may not charge a pet security deposit if it exceeds one and one-half times one month's rent when combined with the regular security deposit. In the case of Brownstone Arms v. Asher, and Reilly v. Weiss, the courts determined that advanced rents in excess of one and one-half times the monthly rental payment violates the security deposit law. [22] Therefore, any prepaid funds held to secure future rents are considered to be a part of the security deposit. This includes the last month's rent. It does not matter what the prepaid funds are labeled. The landlord may only require one and one-half times the tenant's monthly rent as security and the first month's rent at the inception of the lease. That means the landlord may not require more that two and one-half times the monthly rent at the inception of the lease, this includes the security deposit and the first month's rent.

The security deposit money continues to be the property of the person making the deposit and must be held in trust by the person receiving the money. This means that the person who receives the money must not use the money in any way not permitted by law.

A person who receives security money for ten or less units must deposit that money in a bank or savings and loan association in New Jersey in an account bearing interest at the current rate. A person who receives security deposit money for 10 or more units has the option of investing the money in an insured money market fund of a New Jersey based investment company where the investments mature in one year or less, or deposit that money in a State or federally chartered bank, or savings and loan association in New Jersey in an account bearing a variable rate of interest. This section of the Security Deposit Law does not apply to security deposits

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for seasonal use or rental. Seasonal use or rental means use or rental for a term of not more than 125 consecutive days for residential purposes by a person having a permanent place of residence elsewhere. Seasonal use or rental does not mean use or rental of living quarters for seasonal, temporary or migrant farm workers in connection with work or place where work is being performed. [23]

The interest or earnings paid on the security deposit belongs to the tenant and shall be paid to the tenant in cash or credited toward rent due and owing on the renewal or anniversary of the tenant's lease or on January 31, if the tenant has been given written notice, that the interest payments will be paid on January 31 of each year. [24]

A person who receives a security deposit may not combine security deposit money with his or her own funds. Within 30 days of receipt of the security deposit and at the time of each annual interest payment the landlord must notify the tenant in writing of the name and address of the banking institution or investment company at which the money is deposited, the amount of the deposit, type of account and current rate of interest for the account. In addition the landlord must notify the tenant within 30 days of transferring security deposit money to a new landlord or moving the security deposit to another account or bank. If a tenant does not receive proper notices or is not paid interest as required, the tenant may use the security deposit for payment of rent by giving the landlord written notice that the security money plus interest at the rate of 7% per year be applied to rent payments or payments due or to become due from the tenant. However if the tenant does not receive the annual notice at the time of the annual interest payment or is not paid the annual interest, as required, the tenant must give the landlord written notice and allow the landlord 30 days to comply with the annual interest payment and notice requirements. If the landlord does not reply within the allotted time the tenant can use his security deposit toward his rent. [25] If the tenant's security deposit gets applied to his rent, the landlord may not make further demand for an additional security deposit.

Within five (5) business days after a tenant is displaced by fire, flood, condemnation, or evacuation the landlord must return the security deposit. The law requires the return when either an authorized public official has posted a notice prohibiting occupancy or has certified that the displacement is expected to continue longer than seven (7) days. Within three (3) business days of having received notice of the displacement, the landlord must let the tenant know where the security deposit can be collected. The landlord may arrange to have the municipal clerk hold the security deposit so that the tenant may collect it at the clerk's office. If the tenant has not collected the deposit within 30 days, the landlord can redeposit it with the banking institution or investment company with which it was deposited before. If the tenant is later able to move back into the apartment but has already collected the deposit, the tenant must again pay the landlord a security deposit (one-third will be due immediately, another one-third in 30 days and the last one-third in 60 days).

Within 30 days after the end of a tenancy, a landlord must return the security deposit, plus interest earned less deductions, to the tenant. [26] Deductions may include the cost of any damages over and above normal wear and tear, and any other money due the landlord under the terms of the lease. The landlord must return the money either by personal delivery, registered or certified mail. If there

are any deductions made from the security deposit by the landlord, an itemized list of these deductions must also be sent to the tenant by registered or certified mail within 30 days. If the amount of money owed to the landlord for damages or unpaid rent is greater than the amount of the security deposit, the landlord may sue for the difference. No deductions shall be made from a security deposit of a tenant who remains in possession of the rental premises.

If a landlord fails to return the security deposit within 30 days, or the tenant disagrees with the amount deducted, the tenant may sue for double the amount of the security deposit that the tenant contends was wrongfully withheld. If the tenant is successful, the court may award the tenant double the amount wrongly withheld, together with court costs and reasonable attorney's fees. [27] However, if the tenant breaks the lease and moves out of the dwelling unit prior to the expiration of the lease, without legal cause, the lease is not considered to be terminated. The lease is considered to be terminated once the unit is re-rented or the lease expires, provided that the tenant notified the landlord as required by the lease agreement. The date the rental unit is re-rented determines the date of the termination of the breached lease. [28] Therefore, in the case of a broken lease agreement by the tenant, the 30 days that the landlord has to return the tenant's security deposit does not start until the landlord re-rents the rental unit, or until the lease expires, whichever occurs first.

If the property is sold or transferred it is the duty of the new owner to obtain the security deposit, plus accrued interest on the tenant's deposit, that was collected by the former owner. Whether or not the deposit and interest are transferred, the new owner is responsible for the investment of the security deposit, giving all notices and paying interest, and for the return of the security deposit, plus any accrued earnings or interest. [29]

The Small Claims section of the Special Civil Part of the Superior Court, Law Division in the county where the building is located or in the county where the landlord resides has jurisdiction in actions involving security deposits where the amount does not exceed $5,000, including any applicable penalties, but not including costs. For actions over $5,000 but not exceeding $15,000, a person must file in the Special Civil Part of the Superior Court Law Division. [30] There is no State agency that has jurisdiction over security deposit disputes. All disputes must be settled through court action.

Any landlord who willfully and intentionally withholds a security deposit made by or on behalf of a tenant who has received financial assistance through any State of federal program, including welfare or rental assistance may be penalized. The landlord may be liable for a civil penalty of not less than $500 or not more than $2,000 for each offense. The penalty shall be collected and enforced by summary proceedings. The State entity which made the deposits on behalf of the tenant will be entitled to any penalty amounts recovered. A tenant receiving governmental financial assistance is not required to file an action to recover security deposits withheld by a landlord in violation of this law in order to continue participation in the governmental program. [31]

Any person who unlawfully uses security deposit monies may be criminally charged as a disorderly person and may be subject to a fine of not less than $200 or imprisonment for not more than 30 days, or both. [32]

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PETS

In general, landlords have a right to include a "no pets" provision in the lease agreement. However tenants that were allowed to have pets and actually had pets living in their rental units at the beginning of their tenancy and continued to have those pets throughout their tenancies can not have their leases changed (upon renewal) by the new (or existing) landlord to prohibit the tenants from keeping the pets that they were already allowed to possess. However, the landlord could prohibit the housing of any replacement or additional pets that those tenants may acquire in the future. [33] A landlord may require a tenant to remove a pet from the rental premises if the pet is a continuing nuisance to the welfare or property of the landlord or the other residents. If the tenant does not remove the pet, the landlord may file for an eviction for violating the lease due to a continuing nuisance created by the pet. Tenants should maintain control of their pets and obey any lease requirements regarding the care and control of a pet's behavior, designated activity/walking areas and waste cleanup. Tenants should obey all Federal, State and Local laws regarding the maintenance of their pets.

Any senior citizen residing in a senior citizen housing project and providing written notice to the landlord is allowed to own or care for a pet. However, a landlord may refuse to renew a tenant's lease because of a pet, under the following circumstances: if the pet's existence or behavior violates federal, state or local building, health or use codes; or if the tenant fails to properly care for the pet; or if the tenant fails to control the pet, when taking the pet to or from the building, or if the tenant fails to take prompt action to remove any pet waste when requested by the landlord; or if the tenant fails to keep the pet's waste functions confined to areas that do not interfere with the common areas or entrance and exit of anyone to or from the senior citizen housing project. A landlord may establish reasonable written rules and regulations, relating to the care and maintenance of domesticated animals by senior citizens, except that a landlord may not require that the domesticated animal be spayed or neutered. All such rules and regulations shall be transmitted, in writing, to the residents of each dwelling unit in the senior citizen housing project and shall be incorporated within each lease upon its subsequent renewal and the master deed and bylaws, as the case may be. [34]

DISCRIMINATION

The New Jersey Law Against Discrimination requires equal treatment in the sale or rental of housing regardless of race, creed, color, national origin, ancestry, sex, marital status, civil union status, domestic partnership status, familial status, affectional or sexual orientation, gender identity or expression, mental and physical disability, nationality, or source of lawful income. [35] The law applies to all landlord-tenant relationships, except those involving two family owner-occupied dwellings, rooms in an owner or resident–occupied single family home, and residences planned exclusively and occupied by one sex (for example a YMCA) and age restricted housing as it pertains to familial status. [36] Discrimination complaints should be reported to the proper field office of the Division on Civil Rights, New Jersey Department of Law and Public Safety. (See back of the booklet for office addresses.)

Both Federal and State law prohibit the refusal to rent to a family that includes children, with the exception of housing built for older persons and owner occupied structures with no more than two dwelling units. In this context, it is prohibited to require an agreement that a lease is cancelled upon the birth of a child. It is not illegal to refuse to rent if illegal overcrowding or a violation of legal occupancy limits would result or if an applicant has a poor credit rating or does not have enough income to afford the rent. See also the Federal Fair Housing Act. [37]

A complaint against a person who refuses to rent, or who tries to cancel a lease based on illegal discrimination may be filed in New Jersey Superior Court. Violations of Federal law may be reported to the U.S. Department of Housing and Urban Development or the U.S. Attorney. For additional information regarding discrimination in housing in New Jersey, the web site address is: http://www.state.nj.us/lps/dcr/index.html.

MODIFICATION OF THE RENTAL PREMISES FOR PEOPLE WITH DISABILITIES

The landlord is not required to modify existing rental premises occupied or to be occupied by a person with a disability. However, the landlord (at the expense of the disabled person) must permit the person with a disability to make reasonable modifications as may be necessary to afford the disabled person full enjoyment of the premises. The landlord may require the tenant to restore the interior of the premises to the condition it existed before the modification, except for reasonable wear and tear and also require the deposit of funds into an escrow account for the restoration of the premises. The landlord may also require a description of the modifications and proof of required permits. [38]

CONSUMER FRAUD PROTECTION

Deception, fraud, misrepresentation, or knowing failure or refusal to provide important information in connection with the sale or advertisement of real estate is illegal in New Jersey. [39] An aggrieved consumer may sue for triple damages plus attorney's fees for consumer fraud. [40] You may contact the Department of Law and Public Safety, Division of Consumer Affairs, Office of Consumer Protection, Post Office Box 45025, 124 Halsey Street, Newark, New Jersey 07102, (973) 504-6200, www.nj.gov/oag/ca/home.htm for further information concerning the Consumer Fraud Act.

DISPOSAL OF PERSONAL PROPERTY LEFT BY TENANT ONCE THE TENANT HAS MOVED FROM THE PREMISES

A landlord may dispose of a tenant's personal property after: giving written notice to the tenants in accordance with the requirements of the Abandoned Property law concerning content, delivery and storage; and a warrant for removal has been executed and possession of the property returned to the landlord; or the tenant has given written notice that he or she is relinquishing possession of the premises. [41]

The landlord must make the property available to the tenant without payment by the tenant of any unpaid rent. However, the tenant is responsible to reimburse

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the landlord for the reasonable cost of storage and removal of the property from the leased premises to the place of safekeeping.

The tenant must notify the landlord on or before the day specified in the landlord's notice that the tenant intends to move the property from the rental unit or place of safekeeping and must do so within the time specified in the notice or within 15 days of the tenant's written response, whichever is later. Otherwise, the landlord may consider the property abandoned.

Compliance in good faith with the requirements of the law constitutes a complete defense in any action brought by a tenant against a landlord for loss or damage to the property. However, if the landlord seizes and retains a tenant's property without complying with the law, the tenant is relieved of any liability for reimbursement of the landlord's costs and is entitled to recover up to twice the actual damages sustained by the tenant. [42]

CREDIT CHECKS AND BACKGROUND CHECKS

Landlords may access credit reports for prospective tenants from credit bureaus or tenant-screening agencies. The landlord may use the information provided in deciding whether to approve or deny an applicant. If a tenant's application is denied due to his or her credit report, the landlord must provide the tenant with the name, address and telephone number of the credit reporting or screening agency that supplied the negative report. [43] The landlord is allowed to charge the tenant for the cost of the report. The landlord may also request reasonable rental application fees or employment verification. For more information about the Fair Credit Reporting Act call toll-free 1-877-FTC-HELP (1-877-382-4357), or visit their website at www.ftc.gov. Landlords may also perform background checks through public records. Furthermore, landlords may attempt to verify the validity of any information a tenant provides on his or her rental application.

RENT

A tenant has the responsibility to pay the full amount of rent on time. An owner has the responsibility to maintain the dwelling in a livable condition.
A tenant who remains in a unit after giving his or her landlord written notice of intent to leave may be held responsible for double the rent payments for the months that the tenant continues to occupy the unit without a lease. [44]

SENIOR CITIZENS GRACE PERIOD

Any senior citizen receiving a Social Security Old Age Pension, a Railroad Retirement Pension, or any other governmental pension in lieu of Social Security Old Age Pension, and any recipients of Social Security Disability Benefits, Supplemental Security Income or benefits under Work First New Jersey, must be given a period of five (5) business days grace period for payment when the rent is due on the first of the month. No delinquency or late charge may be assessed during the grace period. Any person who fails to allow this grace period may be criminally prosecuted as a disorderly person. [45]

NONPAYMENT AND DISTRAINT

A landlord is prohibited from taking or holding a residential tenant's possessions for nonpayment of rent. The legal term for this practice is "distraint." A landlord cannot use distraint for money owed on a lease or other agreement for a unit used only as a residence. [46]

A tenant may sue for damages resulting from distraint for nonpayment of rent in Superior Court, Special Civil Part, in the county the building is located or the county in which the defendant resides. The court may award double damages and costs of action to a tenant whose property was wrongfully distrained.

When a tenant threatens to leave the unit without payment of rent and a landlord has not yet received a judgment from the court the landlord may seek a temporary restraining order to prohibit the tenant from leaving the jurisdiction of the court. [47]

RENT INCREASES AND RENT CONTROL

The State of New Jersey has no laws that establish, govern or control rents. Municipalities may pass an ordinance establishing rent control or rent leveling. Locally created boards enforce these ordinances. Rent control ordinances have been upheld as a valid exercise of the municipal police power where there is a housing shortage. [48]

Under the Newly Constructed Multiple Dwellings Law [49] newly constructed multiple dwellings shall be exempt from any local rent control ordinances for a period of 30 years following completion of construction of the building. Rents that are subsidized by governmental funding may also be exempt from local rent control ordinances. A tenant may contact the Rent Control Board or municipal clerk for his/her town to find out if his/her rental unit is covered by a rent control or rent leveling ordinance.

Notice requirements for rent increases are contained in the Eviction Law. [50] This law provides that before an owner can evict a tenant for nonpayment of an increased rent, he or she must first serve the tenant with a valid notice to quit and notice of rent increase. This notice does not mean that the tenant must actually leave; the tenant has the right to remain as long as he or she pays any legal increase in rent. The increase in rent must not be unconscionable; it must not be so unreasonable as to shock the conscience of a fair and honest person and must comply with any municipal ordinances governing rent increases.

When a landlord follows the requirements for increasing rent and a tenant refuses to pay the increased amount, the landlord may begin an eviction action. If an increase is unconscionable or a tenant has not received proper notice, the tenant may file a complaint with a municipal rent control board where one exists. Where there is no municipal rent control and a rent increase is charged that a tenant does not pay on the grounds that it is unconscionable, the landlord may file an eviction action for non-payment of the rent increase. A judge would decide if the increase was unconscionable or not. If the court finds that the rent increase is legal, the tenant will have to pay the increase in order to avoid being evicted.

The court has found that when determining unconscionability, the judge may consider the following factors: the amount of the proposed rent increase; the

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landlord's expenses and profitability; how the existing and proposed rent compare to rents charged at similar rental properties in the same geographic area; the relative bargaining position of the parties; and the judge's general knowledge. [51]

If a building is converted to condominium or cooperative form of ownership, or to fee simple ownership of units, rents may not be increased to cover costs resulting solely from the conversion. [52] This does not mean that rents may not be increased to cover the cost of new services or amenities. This prohibition applies to all tenants in the building regardless of whether they are eligible for protected tenancy as senior citizens or disabled persons.

PUBLIC FINANCED AND SUBSIDIZED HOUSING

Housing developments owned or subsidized by the U.S. Department of Housing and Urban Development (HUD), as well as unsubsidized developments with HUD-insured mortgages determined by HUD to have certain economic problems, are not subject to municipal rent control. For further information on the proper notice of a rent increase (the allowable amount of each rent increase in HUD buildings), contact the U.S. Department of Housing and Urban Development, New Jersey State Office, 1 Newark Center, Newark, New Jersey 07102-5260, (973) 622-7900. Likewise, rents fixed and controlled by the New Jersey Housing and Mortgage Finance Agency (NJHMFA) in projects it finances are not subject to municipal rent control ordinances. For further information on the proper notice of a rent increase or the allowable amount of rent increase in a NJHMFA project, contact the New Jersey Housing and Mortgage Finance Agency, 637 South Clinton Ave., Post Office Box 18550, Trenton, New Jersey 08650-2085, (609) 278-7400.

PROPERTY TAX REBATE FOR TENANTS

The Tenants' Property Tax Rebate Act, [53] as amended in 1998, may require owners of properties with five (5) or more rental units to pass on to their tenants as a rent credit or cash rebate, the full amount of any current property tax reduction. Reductions are calculated by comparing the current year's taxes with a previous year (beginning with 1998) that shows a larger tax amount. The difference is the amount to be rebated to tenants. Municipalities with rent control ordinances that do not permit landlords to pass tax increases along to tenants are not subject to the law. The law also contains exceptions for certain types of rental properties. Please see N.J.S.A. 54:4-6.3 for the list of properties that are exempt.

In each municipality where a rebate is due a Notice of Tax Reduction is sent from the local tax collector to the building owners within 30 days after tax bills are issued to the building owner. Generally, rebates are to be in monthly installments at rent payment dates, beginning within 30 days after receipt of the Notice of Tax Reduction. The first rebate is to be cumulative from January and all are to be completed by December 31. However, if the notice is received after November 1, the rebate is to be completed by June 30 of the following year.

Under the law, in eligible municipalities, a property rebate is due to tenants only when property taxes are reduced because of: 1) a municipal wide revaluation of all real estate and only in the first year the revaluation takes effect, 2) generally, when the property tax rate in the current year is lower than the base year (usually 1998), 3) taxpayers in the municipality receive tax rate credit through the Regional Efficiency Aid Program (REAP). The entire amount of the REAP credit must be passed through to tenants.

The law and rules contain details on eligibility and other issues beyond what is covered here. For additional information, please direct all questions about the program to the Tenant Property Tax Rebate Program, Division of Local Government Services, Department of Community Affairs, Post Office Box 803,Trenton, New Jersey 08625-0803, (609) 292-4656, or via e-mail at dlgs@dca.state.nj.us, or on the website at www.nj.gov/dca/. The program also has a handbook titled "Tenant and Landlord Guide to the Tenant Property Tax Rebate Act," which can be obtained at no cost by writing or e-mailing the above addresses.

NEW JERSEY HOMESTEAD PROPERTY TAX CREDIT

Residential tenants may be eligible for a tax credit under the Homestead Property Tax Credit Act, if they were tenants during the year for which the tax return is filed. In order to qualify applicants must met income eligibility requirements. This is not a credit on rent payments and is not paid by or through the landlord. The benefit is paid through the New Jersey Division of Taxation. The homestead benefit may come in the form of a rebate or credit. Tenants may apply for a homestead rebate or credit by filling out the application on the New Jersey Gross Income Tax Form. This form must be filed by April 15th of each year with the New Jersey Division of Taxation. Even tenants who are not required to file a return for income taxes may still apply for the credit. Questions concerning this credit should be directed to the New Jersey Division of Taxation, Taxpayers Information Service, 50 Barrack Street, Post Office Box 269, Trenton, NJ 08646, (609) 292-6400 or (800) 323-4400. (See Homestead Property Tax Credit Act, N.J.S.A. 54:4-8.57 through 8.75)

HABITABILITY

IDENTITY OF LANDLORD

A landlord who owns a one- or two-family non-owner occupied house is required by law to file a registration statement with the clerk of the municipality in which the building is located. [54] If the building has three (3) or more units, the statement must be filed with the Bureau of Housing Inspection, Post Office Box 810, Trenton, New Jersey 08625-0810, on a registration form provided by the Bureau. The Bureau sends a validated copy of the filed registration form to the municipal clerk. Owner-occupied two-family houses are not required to be registered.

The registration statement must be given to each tenant and posted in a place in the building where it can be easily seen. The document must state the date of preparation and contain the names and addresses of the following: 1) the owner or owners of the building and the owners of the rental business if not the same person; 2) the registered agent and corporate officers if the owner is a corporation; 3) a person who resides in or has an office in the same county as the building and is authorized to accept service of process, if the owner is not located in the county; 4)

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the managing agent; 5) regular maintenance personnel; 6) the owner's representative who must be available and able to act in an emergency (the representative's telephone number must be listed); 7) every holder of a recorded mortgage on the building. If fuel oil is used to provide heat to the building and it is furnished by the owner, the name and address of the fuel oil dealer and the grade of oil used must also be included.

Every landlord required to file a certificate of registration must file an amended registration with the correct agency (Bureau of Housing Inspection or clerk of the municipality) within 20 days after any changes to this information. Corrected registration statements must also be posted in the building and each tenant must be notified in writing within seven (7) days after filing. In any eviction action by a landlord who has failed to follow the provisions of this law, the court is required by law to reserve judgment and continue the case - that is, to keep the case open and not issue a judgment for eviction - for up to 90 days to allow the landlord time to comply. If the owner has not complied within this time, the court must dismiss the case, which means that the tenant is not evicted.

The Superior Court, Law Division, Special Civil Part and the municipal court of the municipality in which the premises is located have concurrent jurisdiction to enforce penalties sought against landlords who violate the requirements of the Landlord Identity Law. The maximum penalty is $500.00 for each offense, recoverable by a summary proceeding under the Penalty Enforcement Law. The Attorney General, the municipality in which the premises are located, or any other person may institute the proceeding. The court will remit any penalty recovered to the municipality in which the subject premises is located unless the action is brought by the Attorney General, in which case the penalty is remitted to the State. [55]

HEALTH, SAFETY AND MAINTENANCE STANDARDS

Both landlords and tenants have certain obligations for the maintenance of dwelling units. These are based on lease provisions, New Jersey statutes, local municipal ordinances, and court decisions. A tenant must protect and preserve a landlord's property. Generally acceptable housekeeping practices must be followed. Proper and timely notice must be given to a landlord when there are conditions that must be repaired or corrected. A property should be returned to the landlord in the same condition as it was received, except for normal wear and tear.

A landlord must maintain the property in a livable condition. The New Jersey Supreme Court has held that a landlord offering a dwelling unit for rent implies that it is in livable condition and agrees to keep it in that condition. A landlord must repair damage to vital facilities caused by normal wear and tear after being properly notified in writing and after being given a reasonable amount of time to make repairs. [56]

By State statute and/or municipal ordinance, certain State and local agencies have the power to adopt and enforce standards for the condition of dwelling units. These powers are outlined in the following subsections.

STATE INSPECTION AND ENFORCEMENT

The Bureau of Housing Inspection (BHI) of the Department of Community Affairs is responsible for the Statewide enforcement of the Hotel and Multiple Dwelling Law

and the Regulations for the Maintenance of Hotels and Multiple Dwellings. Every owner of a multiple dwelling that has three (3) or more units in a building structure or a hotel must file a certificate of registration with the Bureau. Multiple dwellings and hotels are required to be inspected at least once every five (5) years.

The Hotel and Multiple Dwelling Law gives the Commissioner of the Department of Community Affairs power to issue and enforce regulations and to levy penalties to ensure that multiple dwellings are maintained so that they do not endanger the health, safety or welfare of the tenants or the general public. Both landlords and tenants must maintain buildings so that there is no violation of these regulations. Tenants must take care of their units and report any code violations to the landlord or superintendent and upon one-day notice, shall allow the landlord or his representative to enter the unit to make any inspections, repairs or alterations required in order to meet code requirements. In case of an emergency, immediate access shall be granted. [57] The landlord must keep the property in good repair, clean, free of infestation and free of any hazards or nuisances that might be harmful to the health or safety of the occupants, and must provide basic maintenance, including heat, building security, smoke alarm systems, or detectors and properly functioning plumbing and electrical systems, etc.

CHILD-PROTECTION WINDOW GUARDS

The Hotel and Multiple Dwelling regulations provide that upon written request by a tenant of a unit in which a child 10 years of age or younger resides, the landlord must provide install and maintain approved child protection window guards on the windows of the dwelling unit and on any accessible windows in the public halls. This requirement does not apply to windows which give access to a fire escape or which are located on the first floor, unless the window sill is more than six feet above the ground. This requirement does not apply to seasonal rental units.

Leases must contain a notice advising tenants that, upon written request by the tenant, the owner is required to provide, install and maintain window guards in dwelling units with children 10 years of age or younger. In addition, bi-annual written notices must be given to tenants informing them of the window guard regulation. Furthermore, landlords must give first floor tenants notice that they may also request window guards to protect the safety of their children, if the windows are more than six feet above ground or if there are other hazardous conditions that make the installation of the window guards necessary. By law the landlord may charge a tenant no more than twenty dollars ($20.00) for each window guard installed in the tenant's apartment. [58]

CARBON MONOXIDE AND SMOKE DETECTORS

Both one and two household dwellings as well as living space in hotels and multiple dwellings must be equipped with smoke detectors and carbon monoxide alarms. In the case of one and two family houses the requirement is enforced upon any change in occupancy or any time a permit is required for work being undertaken. [59] An owner of a one or two family house must obtain a Certificate of Smoke Detector and Carbon Monoxide Detector Alarm Compliance from the

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local fire official responsible for the enforcement of the Uniform Fire Safety Act. The requirement is enforced by the New Jersey Department of Community Affairs under the Regulations for the Maintenance of Hotels and Multiple Dwellings with respect to multiple dwellings. [60]

No carbon monoxide alarm is required in any building that does not contain any fuel-burning appliances and does not have an attached garage. The enforcing agency may issue a certificate for a seasonal rental unit for a period of 12 months, regardless of the number or frequency of changes in tenancy. [61]

At the request of a tenant who is deaf or hearing impaired and residing in a multiple dwelling or rooming and boarding house, the landlord must provide and install a visual alarm type carbon monoxide detector and smoke detector for that unit or, in the case of a rooming or boarding house resident, for the resident's sleeping area. The tenant should make his or her request in writing to the landlord. [62]

LOCKS

In order for a dwelling unit to be insurable, it must be equipped with locks that meet Federal standards as described below. State law requires that every landlord of a multiple dwelling equip the building with locks meeting Federal standards. These standards are the same as those required under the New Jersey Hotel and Multiple Dwelling Regulations.

The regulations call for each exterior doorway to be protected by a door which, if not a sliding door, is equipped with a dead bolt lock using either an interlocking vertical bolt and striker, or a minimum 1/2-inch throw dead bolt, or a minimum 1/2-inch throw self-locking latch. [63] For further information on locks, write to the Code Administrator for the county the building is located in, Bureau of Housing Inspection, Department of Community Affairs, Post Office Box 810, Trenton, NJ 08625-0810, (609) 633-6210. In buildings of fewer than three (3) units, the tenant should contact the municipal building inspector or health officer for enforcement of any existing local ordinances.

STATE HEAT AND UTILITY REQUIREMENTS

The Hotel and Multiple Dwelling regulations establish heating standards for buildings with three (3) or more units. For buildings with fewer than three (3) units, tenants need to contact their local building or health offices for enforcement of local ordinances regarding heating. Every unit or dwelling space must have a heating system that will provide and maintain heat at a temperature of 68 degrees F. The landlord is responsible for maintaining a temperature of at least 68 degrees F. from October 1 to May 1, from 6:00 a.m. to 11:00 p.m. and 65 degrees F. at other hours, supplying the required fuel or energy, and maintaining the heating system in good condition so that it can provide the required amount of heat. However, a landlord and a tenant may agree that the tenant will supply heat to a dwelling unit when the unit is served by separate heating equipment and the source of that heat can be separately computed and billed.

The State Board of Public Utilities (BPU) enforces regulations that prohibit utility companies from shutting off utilities in tenant-occupied buildings whose owners have

failed to make payments until tenants have been given notice and an opportunity to agree to make future payments. [64] The offices of the BPU are located at 2 Gateway Center, Newark, NJ 07102, (973) 648-2350 or 1-800-624-0241, and at 44 S. Clinton Avenue, Post Office Box 350, Trenton, NJ 08625, (609) 777-3300.

The Board of Public Utilities also handles complaints regarding diversion of service. The utility company that provides service to the rental property will provide an application for requesting a diversion of service investigation. There is no cost to have the investigation performed. If the investigation reveals that a tenant is being billed for service used by another, the landlord will be contacted to have the problem corrected. For the Utility Residential Customer's Bill of Rights, please visit www.state.nj.us/bpu/assistance/rights/.

RENT RECEIVERSHIP FOR SUBSTANDARD HOUSING AND DIVERSION OF UTILITIES

In the event that a dwelling unit fails to meet minimum standards of safety and sanitation, the Rent Receivership Law permits the public officer of a municipality or tenant(s) of a dwelling to petition the court for a judgment directing the deposit of rents into court and the appointment of an administrator who must use the money to correct the unsafe conditions. [65]

If a tenant's utility service has been wrongfully diverted by the owners or some other party without the consent of the tenant, and the charges are being billed to the tenant whose services have been diverted, and the owner has been notified by a public officer, the tenant or a utility company, and the owner has failed to take necessary action to correct the wrongful diversion within 30 days of receipt of the notice, the tenant may file a complaint in Superior Court for Rent Receivership (to deposit rent money with the court until the problem is corrected) or in Small Claims Court. The notice to the landlord about the wrongful diversion should be sent certified mail. [66]

LOCAL BOARD OF HEALTH

A local board of health has the authority to order the removal of lead paint from the interior of a dwelling unit when it causes a danger to occupants. [67] When the heating equipment in a residential unit fails and the landlord does not take appropriate action after receiving proper notice from the tenant, the local board of health may act as agent for the landlord and order the repairs necessary to restore the equipment to operating condition. [68]

For emergency action in the event of failure to provide required heat, a tenant can contact the local health officer immediately after giving, or attempting to give, notice to the landlord.

"REPAIR AND DEDUCT" AND "RENT WITHHOLDING"

"Repair and deduct" and "rent withholding" are remedies available to a tenant when there is a defect in a "vital facility" (or a hazardous condition threatening the safety of residents). Vital facilities are those things necessary to make the apartment habitable, such as a heating system, running hot and cold water, an operating toilet,

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or a hazardous condition threatening the safety of residents. A maintenance problem that does not make something necessary for living less usable and does not threaten residents' safety does not provide a basis for rent withholding or repair and deduct. Legal assistance or the assistance of a tenants' or mobile home organization in the use of these remedies is advisable.

The New Jersey Supreme Court has allowed the self-help remedy of "repair and deduct." [69] A landlord promises at the beginning of a lease that the vital facilities needed to make the dwelling unit livable are in good condition and the property will be maintained. When there are defects in the vital facilities, a tenant must first notify the landlord of the situation and allow a reasonable amount of time for the landlord to make repairs or replacements. If a landlord fails to take action, a tenant may have the repairs made and deduct the cost from future rents. However, a landlord may take a tenant to court for nonpayment of rent. As a defense, the tenant would have to prove the presence of defects, the failure of the owner to act despite having received reasonable notice, and the need to make repairs. In case the matter goes to court, the tenant will very likely be required to deposit the full amount of the rent with the court. If there is a finding in favor of the landlord, in most cases, the unpaid rent must be paid by the end of the court day to avoid eviction.

Rent withholding was authorized when the New Jersey Supreme Court held that the obligation of a tenant to pay rent and the obligation, (whether written or not) on the part of a landlord to maintain the property in a livable condition are mutually dependent. [70]

If there are defects in the vital facilities and the landlord has not fixed them after receiving proper and timely notice from the tenant, the tenant may either seek a decrease in rent by court action or simply withhold rent. A landlord may bring an eviction action for nonpayment of rent. As a defense, the tenant must prove the necessity to make repairs and the failure of the landlord to act despite having received reasonable notice. To avoid possible eviction in the event the court finds in favor of the landlord, the tenant should save the amount of money withheld so that he will be able to pay it as ordered by the judge. It is a good idea to set up a separate bank account for this purpose.

As to air conditioning, the Superior Court, Appellate Division has held that air conditioning that is part of the original tenancy may be considered a "vital facility," and air conditioning failure affects the habitability of the premises. [71]

MULTIFAMILY HOUSING PRESERVATION AND RECEIVERSHIP

Any interested party may bring court actions to have receivers appointed for multifamily buildings which are substandard and deteriorating. Interested parties should file a complaint in Superior Court in the county in which the building is located to have a receiver appointed to take charge and manage the building. Any receiver appointed will be under the direction and control of the court. In order for the building to be eligible for receivership it must meet one of the following criteria:

a.) The building is in violation of any State or municipal code to such an extent as to endanger the health and safety of the tenants as of the date of the filing of the complaint with the court, and the violation(s) have persisted, unfixed for at least 90 days; or

b.) The building is the site of a clear and convincing pattern of recurrent code violations, which may be shown by proofs that the building has been cited for such violations at least four (4) separate times within the prior 12 months or six (6) separate times within the preceding two (2) years and the owner has failed to take action. [72]

PUBLIC HOUSING MAINTENANCE

Public Housing Authority leases must contain the rights and responsibilities of both the Authority and the tenant in the event there is extensive damage to a property and conditions are created that are hazardous to life, health, or safety of the occupants. A lease must include a provision for standard alternative accommodations, if available, where necessary repairs cannot be made within a reasonable time. For more information regarding public housing you may contact the, U.S. Department of Housing and Urban Development, (HUD), New Jersey State Office, 1 Newark Center, Attn: Public Housing, Newark, N.J. 07102-5260, (973) 622-7900.

FEDERAL LEAD-BASED PAINT DISCLOSURE

Under rules adopted jointly by the U.S. Environmental Protection Agency (EPA) and the U.S. Department of Housing and Urban Development (HUD) in 1994, landlords of certain types of buildings must notify prospective tenants of lead-based paint hazards in the dwelling they wish to rent and provide them with information about the identification and control of such hazards. More specifically, if the dwelling to be rented was built before 1978, contains bedrooms and is to be rented for more than 100 days, the landlord must provide the tenant, before the lease is signed, an EPA pamphlet entitled "Protect Your Family from Lead in Your Home."

In addition, the landlord must ensure that the lease agreement includes a federal disclosure form. On the form, the landlord must state whether he or she is aware of the presence of any lead-based paint or lead based hazards in the property. If the landlord has a lead evaluation report of the property, the report must be attached to the form.

Should the disclosure form state that the landlord knows of no lead-based paint or lead-based paint hazard, THE DWELLING MAY NOT BE LEAD-SAFE. The Federal regulations only require landlords to disclose known lead hazards. They do not require landlords to conduct any investigations to determine whether there are lead-based paint hazards in their rental properties. Therefore, the fact that the landlord is unaware of a lead hazard does not mean that one does not exist. Lead-based paint hazards may still be present and, if they are, young children residing in those buildings are at risk of childhood lead poisoning.

Housing for the elderly or persons with disabilities are exempt from this disclosure requirement unless a child under the age of six (6) resides with such persons. For specific questions about childhood lead poisoning or single copies of the pamphlet titled "Protect Your Family from Lead in Your Home," forms and rules, call the National Lead Information Center (NLIC) at (800) 424-5323 (LEAD).

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Requests can be faxed to (585) 232-3111, and information can also be found on the HUD Office of Healthy Homes and Lead Hazard Control website, which is: http://www.hud.gov/offices/lead/.

For bulk copies of the "Protect Your Family from Lead in Your Home" (Stock number 055-000-00507) pamphlet, call (202) 512-1800. Camera-ready copies of the pamphlet are also available.

LEAD-BASED PAINT

Multiple Dwellings and one-and two-family tenant occupied residential buildings, including all common areas, constructed before 1978, are required to undergo a combined inspection and risk assessment, and lead hazard control work or periodically treat the property for lead-based paint hazards. However, this rule does not apply to the following: a dwelling unit that has been certified as having a lead-free interior; an owner-occupied dwelling unit; a seasonal dwelling unit which is rented for less than six (6) months' duration each year; or housing for the elderly or a residential property designed exclusively for persons with disabilities, unless a child less than six (6) years of age is expected to reside in the dwelling unit. The owner must post a notice advising tenants to report deteriorated paint and shall respond to any reported problem within 30 days. The notice shall include the landlord's name, address, and telephone number. However, the owner shall respond to any report of deteriorated paint within three (3) days if there is a pregnant woman or child under the age of six (6) in the unit or if the problem is in a common area. [73] The Bureau of Housing Inspection is responsible for the inspection of multiple dwellings.

Tenant notification and owner response requirements are as follows: Owners shall distribute the pamphlet for Lead Safe Maintenance prior to commencement of repair work that will disturb more than two (2) square feet of lead-based paint, unless the tenant has received the pamphlet within the last 12 months. [74] The pamphlet may be obtained by contacting the Bureau of Housing Inspection, P.O. Box 810, Trenton, N.J. 08625, (609) 633-6219 or at www.nj.gov/dca/divisions/codes/.

Occupants will not be permitted to enter the worksite during hazard reduction activities, and will be temporarily relocated to a safe and similarly accessible dwelling unit, unless the treatment will not cause a hazard. The occupant's belongings must also be moved from the contaminated area or protected by an impermeable covering. A warning sign shall be posted at each entry to a room where hazard reduction activities are conducted when occupants are present; or at each main and secondary entryway to a building from which occupants have been relocated. [75]

If a child tests positive for lead poisoning and is removed from his or her home under an order by a State agency or local agency due to housing code or health code violations, the residents may be eligible for relocation assistance, through the Emergency Lead Poisoning Relocation Fund. You may call (609) 292-2528 for more information. [76]

Property owners who have lead-based paint hazards in their residential rental units may be eligible for financial assistance through the Lead Hazard Control Assistance

Fund. For more information on this fund or for a list of lead safe housing in New Jersey, you may call (1-877-DCA-LEAD). [77]

POSTING OF DRINKING WATER TEST RESULTS

1. PUBLIC WATER SYSTEMS:

Public water systems are defined as those having at least 15 service connections or regularly serve an average of at least 25 individuals daily at least 60 days or more out of the year. [78]

The owner of a multiple dwelling who is required to prepare a Consumer Confidence Report pursuant to the "Safe Drinking Water Act Amendments of 1996," (42 U.S.C.S. 300F et al.), or who receives a Consumer Confidence Report from the owner or operator of a public community water system, shall post each Consumer Confidence Report it prepares or receives in each common area routinely used by tenants living in a multiple dwelling unit or, if there is no common area routinely used by tenants, the owner of the multiple dwelling must transmit a copy of the Consumer Confidence Report to each dwelling unit.

The owner of a multiple dwelling unit who is a supplier of water but is not required to prepare a Consumer Confidence Report pursuant to the "Safe Drinking Water Act Amendments of 1996," and who is required to conduct tests of its drinking water by the Department of Environmental Protection, must post a chart setting forth the results of the water tests, including the level of detection and, as appropriate for each contaminant, the maximum contaminant level, highest level allowed, action level, treatment technique, or other expression of an acceptable level, for each contaminant, in each common area routinely used by the tenants living in a multiple dwelling unit, or if there is no common area routinely used by the tenant, the owner of the multiple dwelling unit must transmit a copy of the chart to each dwelling unit. The chart also must include in bold print the statement required to be included in a Consumer Confidence Report, pursuant to 40 CFR s. 141.154(a). [79]

2. PRIVATE WATER SYSTEMS:

Private water systems are defined as any water system that does not meet the definition of a public water system.

The Private Well Testing Act, requires private potable wells to be tested in accordance with the law and both buyer and seller must certify in writing that they have reviewed the water test results. In addition, all lessors (landlords) of property supplied by a private potable well must sample in accordance with the law and provide a copy of the test results to all tenants of the property. Testing is required at least once every five (5) years. The landlord is required to provide a copy of new test results to each rental unit within 30 days of receiving those results. Any new tenant of a rental unit is to be provided a written copy of the most recent test results by the landlord. [80] The New Jersey Department of Environmental Protection will notify local health authorities of failed well tests. For further information or questions about the Private Well Testing Act, contact the New Jersey Department of Environmental Protection (NJDEP), 401 East State Street, Post Office Box 426, Trenton, New Jersey 08625-0426, (609) 292-5550.

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FLOOD PLAIN NOTIFICATION REQUIREMENT

If the rental property has been determined to be located in a flood zone or area, the landlord must notify each new tenant prior to occupancy that the rental property is located in a flood zone or area. This notice is not required to be given in one-and two-unit residential or commercial buildings, or in an owner-occupied three-family dwelling, or in hotels, motels, or other guest housing serving transient or seasonal guests. (81)

CRIME INSURANCE INFORMATION

Crime insurance is available through the New Jersey Insurance Underwriters Association, Crime Insurance Indemnity Plan. To apply for crime insurance, contact the New Jersey Insurance Underwriters Association, Crime Insurance for Habitable Property, 744 Broad Street, Newark, New Jersey, 07102, (973)-622-3838 directly for an application. This insurance is applicable to theft and/or burglaries. A tenant may also purchase renter's insurance from a private insurance company to cover damages to his or her personal property. Please visit www.njiua.org for additional information.

EVICTION

A landlord may recover possession of a dwelling unit used as a residence only by consent of the tenants or through the legal process of eviction. When a landlord obtains a judgment of possession from a court, the landlord is entitled to a warrant for removal. This warrant will direct an officer of the court to remove all persons from the dwelling unit and give the landlord full possession. The warrant may also direct the officer of the court to remove the tenants' belongings. It is the landlord's responsibility to obtain the warrant for removal and have it enforced.

"SELF-HELP" EVICTIONS

"Self-help" evictions - that is entry into a dwelling unit and removal of tenants without their consent or without a judgment from a court, are not permitted in New Jersey under any circumstances. A landlord or any other person who enters an apartment or property without a court order authorizing such entry and/or holds a tenant's belongings unlawfully by force or threat of monies owed may be liable for damages to the tenant. (82)

A landlord or his agent may not padlock, disconnect utilities or otherwise block entry to a rental premises while the tenant still lives there. Also, the removal of a tenant's belongings from a premises by a landlord after the eviction may be done only in accordance with the Abandoned Property Law. (83) Only an officer of the court can legally physically evict a tenant, after a judge has issued a Warrant for Removal. If the landlord attempts a self-help eviction, the tenant should call the police. After the landlord has been warned by the police or other public official about the illegality of the self-help eviction, if the landlord continues to proceed to illegally evict the tenant or refuses to immediately give possession back to the tenant, the landlord may be charged as a disorderly person. (84)

A person who is illegally evicted may file a complaint with the Clerk of the Landlord-Tenant Section, Special Civil Part of the Law Division, or the Chancery Division, of the Superior Court, in the county in which the act was committed. In a successful action by a tenant evicted through forcible entry and detainer, the court may award possession of the dwelling unit and all damages, including court costs and reasonable attorney fees. If the dwelling unit cannot be returned to the tenant, the court may award damages. (85)

CAUSES FOR EVICTION

The New Jersey Eviction Act applies to all residential rental properties, including mobile homes, and land in a mobile home park, except owner-occupied two- or three-family dwellings, hotels, motels, and other dwellings housing transient or seasonal tenants. Permanently occupied units held in trust on behalf of a developmentally disabled immediate family member are also exempt. (86)

There are a number of causes for eviction. Each cause, except for nonpayment of rent, must be described in detail by the landlord in a written notice to the tenant. (87) No residential landlord may evict or fail to renew a lease, whether written or oral, unless the landlord can prove in court one (1) of the causes listed below. (88) Depending on the cause, a certain amount of time must pass after delivery of written notice before a landlord may begin eviction action by filing a complaint in the Landlord-Tenant Section, Special Civil Part of the Superior Court Law Division in the county where the building is located. When a complaint is filed, a tenant will receive a summons to appear in court on a certain date. FAILURE TO APPEAR MAY RESULT IN LOSING THE CASE BY DEFAULT.

In some cases as indicated in the Eviction Law, a landlord is required to give a tenant a preliminary written notice ("Notice to Cease") to stop certain acts. The "Notice to Cease" must be specific in detail, and demand that the tenant stop or face eviction. Only when a tenant continues such acts after the first notice does a landlord have a cause for eviction. In some cases, as indicated, the landlord must send a second written notice. The second written notice is usually titled "Notice to Quit". A "Notice to Cease" must come first in order to warn the tenant that such action as habitual late payments or the causes in B, D, or E below, are no longer acceptable, and, if continued, will serve as a cause for eviction.

A. A TENANT FAILS TO PAY RENT, due and owing under the lease whether the lease is oral or written; provided that, for the purpose of this section, any portion of rent unpaid by a tenant to a landlord but utilized by the tenant to continue utility service to the rental premises after receiving notice from an electric, gas, water or sewer public utility that such service was in danger of discontinuance based on nonpayment by the landlord, and under the lease agreement the landlord is responsible for paying the utility, shall not be deemed to be unpaid rent. No written notice is required, an eviction action may be filed immediately.

B. A TENANT CONTINUES DISORDERLY CONDUCT that denies peace and quiet to other tenants or to other people in the neighborhood after a written

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notice to cease. Requires a written Notice to Cease, an eviction action may be filed three (3) days after a written Notice to Quit.

C. A TENANT CAUSES DESTRUCTION, DAMAGE, OR INJURY to the premises willfully or through gross negligence. No Notice to Cease is required. An eviction action may be filed three (3) days after a written Notice to Quit.

Note: A landlord may sue a destructive tenant in a civil action in Superior Court for costs resulting from damage. If a tenant purposely damages or destroys a landlord's rental property in retaliation for filing an eviction suit, the tenant may be charged with criminal mischief and ordered to pay for damages. [89]

D. A TENANT CONTINUES TO VIOLATE ANY REASONABLE RULES AND REGULATIONS after written notice to cease. The rules and regulations must have been accepted in writing by the tenant or made part of the lease at the beginning of the lease term. Requires a written Notice to Cease, an eviction action may be filed one (1) month after a written Notice to Quit.

Note: Month to month leases begin on the day rent is due and end one (1) month later. Any rules or regulations for this type of tenancy would be given on or before the start of the new month and continue after that.

E. (1) A TENANT CONTINUES A SUBSTANTIAL BREACH OF ANY REASONABLE COVENANT OR AGREEMENT in a lease after a written notice to stop. The covenant or agreement must have been contained in the lease at the beginning of the lease term. Requires a written Notice to Cease, an eviction action may be filed one (1) month after a written Notice to Quit.

E. (2) A TENANT OF PUBLIC HOUSING CONTINUES TO SUBTANTIALLY VIOLATE OR BREACH ANY OF THE COVENANTS OR AGREEMENTS contained in the lease pertaining to illegal uses of controlled dangerous substances, or other illegal activities. The covenant or agreement must have been contained in the lease at the beginning of the lease term. No Notice to Cease is required, an eviction action may be filed one (1) month after a written Notice to Quit.

F. A TENANT FAILS TO PAY RENT AFTER A VALID NOTICE TO QUIT AND NOTICE OF RENT INCREASE. The increase must not be unconscionable and must comply with any municipal ordinances governing rent increases. No written notice is required, an eviction action may be filed immediately.

Note: The Notice to Quit the premises that accompanies a rent increase notice does not mean that the tenant must actually leave the unit. For information on challenging an unconscionable rent increase, see our section entitled, "Rent Increase and Rent Control."

Note: Tenants evicted under the following "G" provisions may be eligible for financial and other assistance for relocation, provided the tenant did not cause the violations or illegal occupancy. If they are eligible, this assistance must be provided before they can be evicted. Copies of the Eviction/Relocation Regulations can be obtained by visiting our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html. Information on relocation assistance can be obtained from the Relocation Assistance Program [90] *of the Division of Codes and Standards, Post Office Box 802, Trenton, NJ 08625-0802, (609) 984-7609.*

G. (1) A LANDLORD OR OWNER WHO HAS BEEN CITED FOR VIOLATIONS OF LOCAL OR STATE CODES WANTS TO PERMANENTLY BOARD UP OR DEMOLISH the premises and can prove it is economically unfeasible for the owner to eliminate the violations. An eviction action may be filed three (3) months after a written Notice to Quit. No warrant for possession will be issued until the requirements of the Relocation Law have been met.

G. (2) A LANDLORD OR OWNER HAS BEEN CITED FOR VIOLATIONS OF LOCAL OR STATE CODES AND IT IS NOT FEASIBLE TO REMEDY THE CONDITIONS WITHOUT REMOVING THE TENANTS. An eviction action may be filed three (3) months after a written Notice to Quit. No warrant for possession will be issued until the requirements of the Relocation Laws have been met. In addition, the landlord must give notice to the Department of Community Affairs, Landlord-Tenant Information Service, Post Office Box 805, Trenton, NJ 08625-0805, so that the Department may prepare a report advising the court and the parties as to the feasibility of remedying the conditions without removing the tenants.

Tenants evicted under this G(2) may be eligible for financial and other assistance for relocation. If eligible, this assistance must be provided before the tenant can be evicted. Information on relocation assistance should be obtained from your local municipality's relocation office, if your municipality does not have a relocation office, you may contact the Relocation Assistance Program of the Division of Codes and Standards, P.O. Box 802, Trenton, New Jersey 08625-0806, (609) 984-7609.

G. (3) A LANDLORD OR OWNER WHO HAS BEEN CITED FOR VIOLATION OF LOCAL OR STATE CODES SEEKS TO CORRECT AN ILLEGAL OCCUPANCY. An eviction action may be filed three (3) months after a written Notice to Quit. No warrant for possession will be issued until the requirements of the Relocation Law have been met.

Any tenant evicted under G(3) is entitled to relocation assistance in an amount equal to six (6) times the tenant's monthly rent. The landlord is responsible for paying the tenant's relocation expenses. Any tenant who does not receive the required payment from the landlord at least five (5) days prior to his or her removal from the premises, may receive payment from a revolving relocation assistance fund established by the municipality. The landlord will be required to repay the money to the municipality. (Pursuant to N.J.S.A. 2A:18-61.1g.)

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However, if the municipality has not established a relocation assistance fund, and the landlord does not pay the relocation funds within the required time, interest will accrue on the unpaid balance at the rate of 18% per year until the amount due, including interest, is paid in full to the tenant. The amount due to the tenant is a lien on the property. The tenant may file a lien statement with the county clerk or registrar in order to enforce the lien. (Pursuant to N.J.S.A. 2A:18-61.1h.)

G. (4) A LANDLORD OR OWNER IS A GOVERNMENTAL AGENCY THAT WANTS TO REMOVE THE PROPERTY FROM THE RENTAL MARKET TO CARRY OUT A REDEVELOPMENT OR LAND CLEARANCE PLAN. An eviction action may be filed three (3) months after a written Notice To Quit. No warrant for possession will be issued until the requirements of the Relocation Law have been met.

H. AN OWNER IS PERMANENTLY REMOVING A BUILDING OR A MOBILE HOME PARK FROM RESIDENTIAL USE. An eviction action may be filed 18 months after a written Notice to Quit. When a written lease is in effect, no legal action may be taken until the lease expires.

I. A LANDLORD OR OWNER AT THE TERMINATION OF A LEASE PROPOSES REASONABLE CHANGES OF SUBSTANCE IN THE TERMS OR CONDITIONS OF THE LEASE (WHICH COULD INCLUDE A CHANGE IN TERM) AND THE TENANT REFUSES TO ACCEPT THE CHANGES AFTER RECEIVING A WRITTEN NOTICE DESCRIBING THE CHANGES. No Notice to Cease is required. However, a notice describing the changes is required (A tenant must be notified of changes to the lease at least one month in advance.) An eviction action may be filed one (1) month after a written Notice to Quit.

J. A TENANT HABITUALLY AND WITH OUT LEGAL JUSTIFICATION PAYS RENT LATE after receiving a written notice to cease paying rent late. If the tenant pays rent late two (2) or more months after the written notice to cease, the landlord may give the tenant a one (1) month Notice to Quit. An eviction action may be filed one (1) month after the written Notice to Quit.

Note: The Courts have ruled that habitual late payments means more than one (1) late payment following the Notice to Cease. Also the N.J. Appellate Court and Supreme Court ruled that a landlord after giving a tenant a notice to cease late payments, must continue to give the tenant reasonable and sufficient notice when accepting further late payments, that continued late payments from the tenant would result in an eviction action. If the landlord does not give this continued notice, the original Notice to Cease given to the tenant may be considered waived by the Court. [91]

K. A LANDLORD OR OWNER OF A BUILDING IS CONVERTING FROM THE RENTAL MARKET TO A CONDOMINIUM OR COOPERATIVE OR FEE SIMPLE OWNERSHIP. An eviction action may be filed three (3) years after written Notice to Quit, except that tenants who qualify for protection under the Senior Citizens and Disabled Protected Tenancy Act (see below) cannot be evicted, due to the conversion, for 40 years. When a lease is in effect, no legal action may be taken until the lease expires. The landlord must comply with the regulations governing conversion to condominiums and cooperatives. At any time within 18 months of receiving notice demanding possession of the unit, a tenant may request, in writing, that the landlord provide an opportunity to rent comparable housing. “Comparable housing” is housing that is decent, safe and sanitary and does not violate any housing codes; that is open to all people regardless of race, religious principles, color, national origin, ancestry, marital status, affectional or sexual orientation, familial status, disability, nationality, sex; or source of lawful income used for rental payments; that is similar to the unit from which the tenant is being evicted with regard to size, number of rooms, rent range, major kitchen and bathroom facilities and any special facilities needed for a handicapped or infirm person; is located in an area that is as desirable with regard to closeness to the tenant’s job or business, closeness to shopping and community facilities and the quality of the general surroundings; and that meets such additional reasonable requirements as the tenant has included in his or her written request for comparable housing. Up to five (5) one-year stays of eviction may be granted by the court until the court is satisfied that the tenant has been offered a reasonable opportunity to examine and rent comparable housing, except that not more than one (1) one-year stay shall be granted if the landlord allows the tenant five (5) months’ free rent as compensation for hardship in relocation. Further information concerning condominium and cooperative conversion and application for senior citizen and disabled protected tenancy may be obtained by visiting our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html.

L. (1) AN OWNER OF A BUILDING OR MOBILE HOME PARK THAT IS CONSTRUCTED AS OR IS BEING CONVERTED TO, A CONDOMINIUM, COOPERATIVE OR FEE SIMPLE OWNERSHIP of units has contracted to sell the unit to a buyer who wants to occupy it. (The tenant must have moved in after the recording of the condominium master deed, cooperative agreement or subdivision map.) An eviction action may be filed two (2) months after a written Notice to Quit. When a lease is in effect, no eviction action may be taken until the lease expires. In addition, the Statement concerning conversion as required by law must have been provided to the tenant. [92]

L. (2) AN OWNER OF THREE (3) OR FEWER CONDOMINIUM OR COOPERATIVE UNITS WANTS TO PERSONALLY OCCUPY THE UNIT OR HAS SOLD IT TO A BUYER WHO WISHES TO PERSONALLY OCCUPY IT. The tenant must have moved in after the recording of the master deed or cooperative agreement and must have rented the unit from an owner of three (3) or fewer units. An eviction action may be filed two (2) months after

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a written Notice to Quit. When a lease is in effect, no eviction action may be taken until it expires.

L. (3) AN OWNER OF A BUILDING WITH THREE (3) OR FEWER UNITS WISHES TO PERSONALLY OCCUPY A UNIT OR HAS CONTRACTED TO SELL THE BUILDING TO A PERSON WHO WISHES TO PERSONALLY OCCUPY IT and the contract calls for the unit to be vacant at closing. An eviction action may be filed two (2) months after a written Notice to Quit. When a lease is in effect, no eviction action may be taken until it expires.

M. A LANDLORD OR OWNER CONDITIONED A TENANCY UPON THE TENANT'S EMPLOYMENT by the landlord as a superintendent, janitor or in some other capacity and the employment is being terminated. An eviction action may be filed three (3) days after a written Notice to Quit.

N. THE PERSON HAS BEEN CONVICTED OF OR PLEADED GUILTY TO AN OFFENSE UNDER THE "COMPREHENSIVE DRUG REFORM ACT OF 1987" INVOLVING THE USE, POSSESSION, MANUFACTURE, distribution of a controlled dangerous substance, controlled dangerous substance analog or drug paraphernalia within or upon the leased premises, the building, the complex of buildings or the land appurtenant thereto. This cause for eviction is also applicable to a juvenile adjudicated delinquent on the basis of an act that if committed by an adult would constitute an offense under the act unless the offense is use or possession. This cause of eviction does not apply to a person who has either successfully completed or been admitted to and continued upon probation while completing a drug rehabilitation program, but it does apply to a person who allows someone who has been convicted or pleaded guilty to such offense to occupy the leased premises. An eviction action may be brought three (3) days after a written Notice to Quit. Except that this subsection shall not apply to a person harboring or permitting a juvenile to occupy the premises if the juvenile has been adjudicated delinquent upon the basis of an act which if committed by an adult would constitute the offense of use or possession under the said, "Comprehensive Drug Reform Act of 1987." No action for removal may be filed where more than two (2) years has passed since the person's release from incarceration, the date of the adjudication, or the date of the conviction, whichever is later.

O. THE PERSON HAS BEEN CONVICTED OF OR PLEADED GUILTY TO AN OFFENSE UNDER THE LAW INVOLVING ASSAULT, OR TERRORIST THREATS against the landlord, a member of the landlord's family or an employee of the landlord. A tenant may also be evicted if he or she knowingly harbors or permits a person who has been convicted of or pleaded guilty to these offenses to occupy the premises. This cause for eviction is also applicable to juveniles. An eviction action may be filed three (3) days after a written Notice to Quit. No action for removal may be filed where more than two (2) years has passed since the person's release from incarceration, the date of the adjudication, or the date of the conviction, whichever is later.

P. THE PERSON HAS BEEN FOUND LIABLE IN A CIVIL ACTION FOR REMOVAL COMMENCED UNDER THE EVICTION LAW FOR AN OFFENSE UNDER (N), (O) or, (Q), being the tenant or lessee of such leased premises permits or permitted a person who has committed such an offense to occupy the premises. Except that this subsection shall not apply to a person harboring or permitting a juvenile to occupy the premises if the juvenile has been adjudicated delinquent upon the basis of an act which if committed by an adult would constitute the offense of use or possession under the said, "Comprehensive Drug Reform Act of 1987." An eviction action may be filed three (3) days after a written Notice to Quit.

Q. THE PERSON HAS BEEN CONVICTED OF OR PLEADED GUILTY TO AN OFFENSE INVOLVING THEFT OF PROPERTY FROM THE LANDLORD, THE LEASED PREMISES OR OTHER TENANTS RESIDING IN THE SAME BUILDING OR COMPLEX; or, being the tenant or lessee of such premises, permits a person who has been so convicted or has so pleaded to occupy those premises. This cause for eviction is also applicable to a juvenile adjudicated delinquent on the basis of an act which if committed by an adult would constitute an offense for theft of property from the landlord, the leased premises or other tenants residing in the same building or complex. An eviction action may be filed three (3) days after a written Notice to Quit.

EVICTIONS FOR OWNER-OCCUPIED TWO-AND THREE-FAMILY DWELLINGS

Tenants of landlord-occupied two- and three-family dwellings can be removed only when a court issues an order for eviction. However, in these cases, the landlord must only show that the tenant (a) is staying after the expiration of the term of the lease, (b) is staying after a failure to pay rent, (c) is disorderly so as to destroy the peace and quiet of other tenants, (d) willfully destroys or damages the premises, (e) constantly violates the written rules and regulations or (f) violates any lease provision where the lease reserves a right of re-entry for such violations. A three (3) month notice to quit must be given if an at will tenancy or year-to-year tenancy exists. A one (1) month notice to quit is required for a month-to-month tenancy and other types of tenancies are entitled to a one (1) term notice to quit.[93] No further notice is required before bringing action in court to evict in the case of a tenant staying after a failure to pay rent. A three (3) day written Notice to Quit is required for any of the causes described as disorderly, destructive or violative of written rules or lease provisions. [94]

ROOMING AND BOARDING HOUSE EVICTIONS

The Regulations Governing Rooming and Boarding Houses, which are enforced by the Bureau of Rooming and Boarding House Standards of the Department of Community Affairs, require owners of rooming and boarding houses to follow the good causes and notice requirements of the Eviction Law [95] when evicting residents, except if otherwise ordered by the Bureau. There is a further requirement

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that the owner give at least three (3) working days' notice to the County Welfare Board before starting the eviction action for any resident. [96]

Any building having at least two (2) living units occupied by persons unrelated to each other without private kitchens and bathrooms is a rooming or boarding house if it does not meet one (1) of the exceptions in the Rooming and Boarding House Act. [97] These exceptions include hotels with more than 85 percent temporary occupancy by people with homes elsewhere, school and college dormitories, buildings housing only college students and certain residences for the disabled. For additional information concerning rooming and boarding houses, contact the Bureau of Rooming and Boarding House Standards, Post Office Box 804, Trenton, NJ 08625-0804, (609) 633-6251.

PUBLIC HOUSING EVICTIONS

Public housing authorities must follow State laws regarding evictions as well as the regulations of the U.S. Department of Housing and Urban Development (HUD). In the case of an eviction, a public housing tenant may request a hearing from the housing authority after receiving a notice of termination of tenancy. A housing authority may not begin an eviction action in court until the decision of the hearing officer or the hearing panel has been mailed or delivered to the tenant and a notice to vacate has been served.

PENALTIES FOR EVICTION LAW VIOLATIONS

When a tenant vacates a dwelling unit after having been given notice that the landlord wishes to personally occupy the unit the landlord must occupy the unit for at least six (6) months. If instead the landlord permits personal occupancy of the unit by another tenant or registration of conversion of the property to a condominium or cooperative, the landlord is liable to the former tenant for three (3) times the damages suffered plus attorney fees and costs.

When a tenant vacates a dwelling unit after having been given notice that the landlord seeks to permanently board up or demolish the building or to permanently retire it from residential use, the landlord must not use this property for residential use for a period of five (5) years. If the landlord allows any residential use of the unit during the five (5) year period from the date the unit became vacant, the landlord, or the former landlord, may be liable to the tenant for three (3) times the damages plus attorney fees and costs. Additionally, the landlord or former landlord may be liable for a civil penalty up to $10,000.00 for each violation of this law and the property may not be registered as a planned real estate development during the five-year period following the date on which any dwelling unit in the property became vacant as a result of an eviction notice stating that the property was being permanently removed from residential use. [98]

REPRISAL-CIVIL RIGHTS OF TENANTS

A landlord cannot take reprisal against a tenant by eviction, substantial alteration of a lease or its terms, or refusal to renew a lease when a tenant exercises certain civil rights. [99] The law against reprisal applies to all rental properties used for

dwelling purposes, including mobile homes, except owner-occupied two- or three-family dwellings.

These civil rights are:

1. A tenant attempts to enforce any rights under the lease or State or local laws.
2. A tenant has made a good faith complaint to a governmental authority about a landlord's violation of any health or safety law, regulation, code, or ordinance. A tenant must have first notified the landlord in writing and given the landlord a reasonable time to correct the violation before making the complaint.
3. A tenant has been an organizer, or member, of any lawful organization, including a tenant organization.
4. A tenant refuses to comply with changes in the lease or agreement, if the change(s), have been made by the owner because the tenant took any of the above actions. If a landlord does take reprisal action, the tenant may sue the landlord for damages in a civil action.

PROCEDURES FOR RECOVERY OF PREMISES

A landlord may recover possession of a dwelling unit through a summary dispossess action in the Landlord-Tenant Section, Special Civil Part of the Superior Court Law Division in the county where the building is located. Monetary damages must be recovered in a separate civil action in Superior Court. Actions for rent in the Special Civil Part cannot exceed $15,000.00.

When a landlord obtains a judgment for possession from the Special Civil Part, the warrant of removal cannot be issued until three (3) days after the judgment and only between the hours of 8:00 a.m. and 6:00 p.m. The warrant of removal cannot be executed until a minimum of three (3) days and two (2) days for seasonal tenants in buildings with five (5) or fewer units, have elapsed since it was issued. [100] The Fair Eviction Notice Act requires any warrant for removal to include a notice that the tenant has a right to request more time (called a "stay of execution"). [101] The court will continue the case for up to 10 days after the execution of the warrant for the purpose of hearing applications by the tenant for lawful relief.

EVICTIONS DUE TO FORECLOSURE

Recent changes to federal law have strengthened a tenant's rights in foreclosure proceedings. However, the federal law does not preempt any State or local law that provides longer time periods or other additional protections for tenants. Before a tenant can be evicted due to foreclosure, the landlord must provide the tenant with a 90 day notice to quit when the foreclosed property has been purchased by a buyer who wants to personally occupy it as his or her primary residence. However, if a tenant has a lease agreement that goes beyond the 90 days the landlord may not take action to evict the tenant until after the lease expires and the 90 day notice to quit has been given. The 90 day notice may be given 90 days before the lease expires. Month-to-month tenants and two and three-family owner-occupied units are not exempt from the 90 day notice requirements. [102]

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Any person acquiring a foreclosed property containing one or more residential rental units must provide notices to the tenants in English and Spanish, within 10 business days after the sale, letting tenants know that ownership has changed hands and that the tenants are not required to move because of the foreclosure. In buildings with 10 or fewer dwelling units, the new owner must make a good faith effort to obtain the names of all the tenants occupying the property. Notices must be addressed to tenants by name, unless the new owner is unable to identify the tenant by name, then the owner shall address the notice to "Tenant." The notice must also be placed on the front door of each tenant's unit and sent to each tenant via certified and regular mail. [103]

In a residential property containing more than 10 dwelling units, the new owner must provide notice to tenants occupying the property by conspicuously displaying a copy of the "NOTICE TO TENANTS" in a prominent location, such as a common area of the building or other structure on the property. If there is no common area, the notice must be posted in a conspicuous location in each building, such as the walls of the front vestibule or any foyer or hallway near the main entrance of the building.

NOTICE REQUIREMENTS TO TENANTS PRIOR TO THE TRANSFER OF TITLE DUE TO A FORECLOSURE ACTION

Any written or verbal communication, including a summons and complaint, an initial written or verbal communication by a foreclosing creditor, or any communication written or verbal that requests a tenant to vacate the property before the foreclosure or sale of the property, requires the foreclosing creditor to give notice to the tenants as outlined in the New Jersey Court Rules, entitled "Notice to Residential Tenants of Rights During Foreclosure."

NOTICE REQUIREMENTS TO TENANTS AFTER THE TRANSFER OF TITLE DUE TO A FORECLOSURE ACTION

When making a bona fide monetary offer to induce tenants to move, the new owner must provide a separate and different notice from the notice required to be given by a foreclosing creditor. The new owner must provide a copy of the "NOTICE TO TENANTS" and give it with the initial and final written or verbal offer to the tenant.

The foreclosing agency, including a bank, creditor, or a new landlord may make a written bona fide (good faith) monetary offer requesting that the tenant vacate the property, without "good cause." An acceptance of the offer by the tenant must be in writing and include an acknowledgement of the date of the receipt of the offer, and an understanding that the tenant had a five-day review period to accept or reject the offer presented.

However, it is important to note that the acceptance of a bona fide monetary offer is voluntary. The tenant shall not be pressured by anyone, including the person making the offer to accept any offer to vacate the property. Pressure tactics include but are not limited to:

1) Mischaracterizing or misrepresenting the rights of the tenant under the law;

2) Implying the tenant is obligated to accept the offer;
3) Implying that there will be consequences against the tenant for failing to accept the offer;
4) Harassment, including but not limited to discontinuance of utilities, failure to maintain common areas or facilities, or any other failure to maintain the premises in a habitable condition; and
5) An increase in rent in excess of any rent control or rent leveling ordinance, or if the property is not subject to rent control, an unreasonable or unconscionable rent increase. [104]

SENIOR CITIZENS AND DISABLED TENANTS IN CONDOMINIUM OR COOPERATIVE CONVERSION

SENIOR CITIZENS AND DISABLED PROTECTED TENANCY

The Senior Citizens and Disabled Protected Tenancy Act [105] protects senior citizens who meet certain eligibility requirements. To qualify, tenants must be: (1) at least 62 years of age before the date of the conversion recording of the condominium or cooperative; or (2) permanently disabled; or (3) honorably discharged from any military service under certain circumstances from any branch of the U.S. Armed Forces and disabled at 60% or higher resulting from said service and, (4) lives in a building being converted to a condominium, cooperative; or fee simple ownership of units at least one (1) year prior to the conversion recording date. Tenants may be protected from eviction for 40 years if their family income is not more than three (3) times the average per person income in their county or $50,000.00, whichever is greater. The date the conversion is recorded is the date on which a master deed or deed to a cooperative corporation, or a subdivision deed or map legally establishing separate lots, is filed. The landlord or converter is required to notify all tenants of their right to file for protected tenancy if they may be eligible. Generally, applications for protected tenancy must be filed with the designated municipal official or the administrative agent within 60 days, although later filings may be accepted if there is good reason for the late filing and the conversion has not yet taken place. Tenants in Hudson County may be eligible for additional protected tenancy established under the Tenant Protection Act of 1992. For copies of the law, regulations or forms, landlords or converters, tenants and local officials may visit our website at: www.nj.gov/dca/divisions/codes/offices/landlord_tenant_information.html. For help in filling out the forms, a tenant should contact the appropriate municipal administrative agent who sent the forms to him or her.

TENANT PROTECTION ACT OF 1992

The Tenant Protection Law of 1992 [106] amendment extends protections to qualified tenants in qualified counties in buildings converted or being converted who were not eligible for Protected Tenancy as either Senior Citizens or Disabled Persons under the "Senior Citizens and Disabled Protected Tenancy Act of 1981."

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At the present time, the only qualified county is Hudson County. Tenants in Hudson County with questions or in need of assistance in filling out the required forms should contact the Administrative Agent of their municipality.

DISCLOSURE STATEMENT TO SENIOR CITIZEN HOUSING RESIDENTS

Every landlord of a senior citizen housing project and every landlord of a unit within a senior citizen housing project that is a planned unit development, shall, upon signing or renewal of a lease, give a copy of the Truth-In-Renting Statement and the Landlord Identity Statement, as well as a Statement that sets forth the telephone numbers of the State and local offices for the municipality designated to receive reports of housing emergencies and complaints. If the project is organized or operated as a planned real estate development, the governing board or body must provide copies of the Public Offering Statement registered with the New Jersey Department of Community Affairs, along with a copy of the current bylaws. The tenant must sign a receipt for these Statements and documents. The Statements and documents must be posted in one (1) or more locations accessible to the tenants. [107]

ENDNOTES FOR TRUTH-IN-RENTING

1. N.J.S.A. 9:17B-1 (1973)	Legal Age Requirement
2. N.J.S.A. 56:12-2 (1980)	Plain Language Review Law
3. N.J.S.A. 46:8-43 thru 50	Truth in Renting Act
4. 155 NJ 212(1998)	Community Realty v. Harris, Impermissible late fees & attorney's fees
5. N.J.S.A. 2A:42-103 thru 113	Pets In Senior Citizen Housing Project Law
6. N.J.S.A. 46:8-48 (1976)	Truth In Renting Act
7. N.J.S.A. 48:5A-49/47 C.F.R. 1.4000	CATV Law/Antennas and Satellite Dishes
8. N.J.S.A. 46:8C-2 thru 21	Mobile Home Park/Private Residential Leasehold Communities
9. N.J.S.A. 46:8C-3	Mobile Home Park/Private Residential Leasehold Communities
10. N.J.S.A. 2A: 18:61.3	Eviction Law
11. N.J.S.A. 46:8-9.2	Lease Termination Due To Disabling Illness or Accident
12. N.J.S.A. 46:8-9.2/N.J.A.C. 5:29-2.1& 2.2	Right to Terminate Lease Due to Disabling Illness or Accident
13. N.J.S.A. 46:8-9.1	Death of Lessee
14. 74 N.J. 446(1977)	Sommer v. Kridel - Mitigate damage court dec.
15. 53 N.J. 444 (1969)	Reste Realty Corp. v. Cooper
16. N.J.S.A. 2A:42-5	Hold Over Tenant Law/ Double Rent
17. NJSA 46:8-9.4	New Jersey Safe Housing Act
18. N.J.S.A. 46:8-21.1	Security Deposit Law
19. 50 U.S.C. APP. 531	Service Members Civil Relief Act
20. N.J.S.A. 46:8-26	Security Deposit Law
21. N.J.S.A. 46:8-21.2	Security Deposit Law
22. 380 N.J. Super. 46(2005), 406 N.J.Super 71(2009)	Chatterjee v. Iero, Pet Security Deposit, Reilly v. Weiss,
121 N.J. Super 401(1972)	Brownstone Arms v. Asher
23. N.J.S.A. 46:8-19-1.(d)	Security Deposit Law
24. & 25. N.J.S.A. 46:8-19-1.(c)	Security Deposit Law

26. & 27. N.J.S.A. 46:8-21.1	Security Deposit Law
28. 287 N.J. Super. 546 (1996)	J.C. Mitchell v. First Real Estate,Determines the termination date of a broken lease, for purposes of the security deposit law
29. N.J.S.A. 46:8- 21	Security Deposit Law
30. Court Rule R. 6:11	Small Claims Section
31. N.J.S.A. 46:8-21.1 & 21.5	Security Deposit Law
32. N.J.S.A. 46:8-25	Security Deposit Law
33. 201 N.J. Super. 1 (A.D. 1985)	Young v. Savinon, Established the reasonableness requirement for changes in the lease regarding pets
34. N.J.S.A. 2A:42-107	Pets In Senior Citizen Housing Project Law
35. N.J.S.A. 10:5-12 (g) (h)	Law Against Discrimination
36. N.J.S.A. 10:5-5n.	Law Against Discrimination
37. 42 U.S.C. 3601 thru 3619	Federal Fair Housing Act
38. N.J.A.C. 13:13-3.4(f)	Regulations for Disability Discrimination
39. N.J.S.A. 56:8-2	Consumer Fraud Act
40. N.J.S.A. 56:8-19	Consumer Fraud Act
41. N.J.S.A. 2A:18-72 et seq.	Disposal of Remaining Personal Property Abandoned by Tenant
42. N.J.S.A. 2A:18-82	Disposal of Remaining Personal Property Abandoned by Tenant
43. 15 U.S.C. s.1681m	Fair Credit Reporting Act, Requirements on users of consumer reports
44. N.J.S.A. 2A:42-5	Hold Over Tenant Law/ Double Rent
45. N.J.S.A. 2A:42-6.1 thru 6.3	Senior Citizen Five Day Grace Period
46. N.J.S.A. 2A:33-1 thru 23	Distrained Property
47. Court Rule R. 4:51-1 thru 4:51.5	Writ of Ne Exeat; Capias
48. 120 N.J. Super. 286 (1973)	Inganamort v. Borough of Fort Lee, also see Helmsley v. Borough of Fort Lee, 78 N.J. 200(1978) Rent Increase Case.
49. N.J.S.A. 2A:42-84.5	Newly Constructed Multiple Dwellings
50. N.J.S.A. 2A:18-61.1(f)	Eviction Law
51. 294 N.J.Super. 601 (App. Div. 1996)	Fromet Properties v. Buel
52. N.J.S.A. 2A:18-61.31	Eviction Law
53. N.J.S.A. 54:4-6.2 thru 6.3	Tenants' Property Tax Rebate Law and
N.J.A.C. 5:33-3.1 thru 3.10	Tenants' Property Tax Rebate Program Regulations
54. & 55. N.J.S.A. 46:8-27 thru 37	Landlord Identity Law
56. 56 N.J. 130 (1970)	Marini v. Ireland, Repair and Deduct Case
57. N.J.A.C. 5:10-5.1 (c)	Regulation for Maintenance of Hotels & Multiple Dwellings Provides Access for Inspection.
58. N.J.A.C. 5:10-27.1 (c) and (d)	Child-Protection Window Guards; When Required
59. N.J.S.A. 52:27D-192	State Uniform Fire Safety Act
60. N.J.A.C. 5:10-28.1	Carbon Monoxide Alarms
61. N.J.A.C. 5:70-2.3, 2.9 & 4.19	Uniform Fire Code
62. N.J.A.C. 5:10-28.1, 5:27-14.1 & 5:70-4.9	Carbon Monoxide Alarms and Fire Alarms
63. N.J.A.C. 5:10-19.2	Regulation for Maintenance of Hotels & Multiple Dwellings
64. N.J.A.C. 14: 3:3A.5 thru 3A:8	State Board of Public Utilities (BPU)
65. N.J.S.A. 2A:42-85 thru 95 (1971)	Rent Receivership
66. N.J.S.A. 2A:42-87	Rent Receivership
67. N.J.A.C. 8:51-6.1	Public Health Regulations
68. N.J.S.A. 26:3-31 to 31.10	Public Health Regulations
69. & 70. 114 N.J.Super.124, (1971), 63 NJ 460 (1973)	Berzito v. Gambino Rent Abatement Case

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71. 146 N.J. Super. 271 (1977)	Park Hill Terrace v. Glennon Air Conditioning Case
72. N.J.S.A. 2A:42-114 thru 142	Multifamily Housing and Preservation and Receivership Act
73. N.J.A.C. 5:10-6.6	Lead-Safe Maintenance Requirements
74. N.J.A.C. 5:10-6.6(h)	Lead-Safe Maintenance Requirements
75. 24 CFR 35.1345	U.S. Dept. of Housing and Urban Development
76. N.J.A.C. 5:48-3.1	Lead Hazard Control Assistance Fund
77. N.J.A.C. 5:48-2.1	Lead Hazard Control Assistance Fund
78. N.J.S.A. 58:12A-3	Safe Drinking Water Act
79. N.J.S.A. 58:12A-12 & 40 CFR.141.154 (a)	Safe Drinking Water Act Amendment of 1996 (DEP)
80. N.J.S.A. 58:12A-32	Private Well Testing Act
81. N.J.S.A. 46:8-50	Flood Plain Notification Requirement
82. N.J.S.A. 2A:39-1	Unlawful Entry or Detainer Law
83. N.J.S.A. 2A:42-10.16e	Warrant for Possession; Execution
84. N.J.S.A. 2C:33-11.1	Disorderly Person's Offense
85. N.J.S.A. 2A:39-8	Unlawful Entry or Detainer Law
86. N.J.S.A. 2A:18-61.1 (1976)	Eviction Law
87. N.J.S.A. 2A:18.61.2	Eviction Law
88. N.J.S.A. 2A:18-61.3	Eviction Law
89. N.J.S.A. 2C:17-3	Criminal Mischief
90. N.J.S.A. 52:31B-1, N.J.S.A. 20:4-1,N.J.A.C. 5:11-2.3	Relocation Assistance
91. 371 N.J.Super 103, 204 N.J.Super 144,113 N.J.485	Ivy Hill Park v. Abutidze, Hawthorne v. Barnes, A.P. Dev. Corp. v. Band
92. N.J.S.A. 2A: 18-61.9 & N.J.A.C. 5:24-1.9	Eviction Law & Regulations for Condo, Fee Simple & Co-op Conv. & Mobile Home Park Retirement
93. N.J.S.A. 2A:18-56	Proof of Notice to Quit Prerequisite to Judgment
94. N.J.S.A. 2A:18-61.2a.	Eviction Law
95. N.J.A.C. 5:27-3.3(c)	Rooming and Boarding House Regulations
96. N.J.A.C. 5:27-3.4(c)	Rooming and Boarding House Regulations
97. N.J.S.A. 55:13B-3	Rooming and Boarding House Act
98. N.J.S.A. 2A:18-61.6	Eviction Law
99. N.J.S.A. 2A:42-10.10	Reprisal Law
100. N.J.S.A. 2A:18-57 & N.J.S.A. 2A:42-10.17	Eviction Law Fair Eviction Notice Act
101. N.J.S.A. 2A:42-10.16 & 17 (1974)	Fair Eviction Notice Act, Summary Dispossess Warrant for Removal
102. 12 USC § 5220 & P.L. 111-22, Div A, Title VII, § 702, 123 Stat. 1660	The Helping Families Save Their Homes Act of 2009
103. & 104. N.J.S.A. 2A:50-69 et seq.	New Jersey Foreclosure Fairness Act
105. N.J.S.A. 2A:18-61.22-61.39	Senior Citizen and Disabled Protected Tenancy Act
106. N.J.S.A. 2A:18-61.40 thru 61.59	Tenant Protection Act of 1992
107. N.J.S.A. 2A:42-113	Disclosure Statement to Senior Citizen Housing Residents

New Jersey Judiciary Ombudsman Offices
www.njcourtsonline.com

The Ombudsman provides assistance to citizens. The services include: helping parties who do not have attorneys, by explaining court procedures, programs and service; confidentially receiving and documenting complaints from the public related to misunderstandings, conflicts, mistreatment or discrimination in the courthouse; and acting as a mediator to resolve conflicts between the public and the courts.

The Ombudsman also serves as a point of contact to citizens who may need assistance in coordinating multiple court services during their visit to the courthouse, makes referrals to other agencies of government, takes customer suggestions, and develops court tours and outreach programs.

VICINAGE	OMBUDSMAN	TELEPHONE AND FAX NUMBERS
Atlantic/Cape May	Kathleen Obringer	609-345-6700 EXT. 3346, FAX: 609 343-2142
Bergen	Jennifer V. Shultis	201-527-2263, FAX: 201-371-1111
Burlington	Heishim J. Thomas	609-518-2510, FAX: 609-518-2539
Camden	Nalo Brown	856-379-2238, FAX: 856-379-2278
Cumberland/Gloucester/Salem	Sandra Lopez-Palmer	856-453-4538, FAX: 856-455-9490
Essex	Shazeeda Samsudeen	973-693-5728, FAX: 973-693-5726
Hudson	Pauline D. Daniels	201-217-5399, FAX: 201-795-6603
Mercer	Gina Goldstein	609-571-4205, FAX: 609-571-4208
Middlesex	Sylvia L. O'Connor	732-981-3098, FAX: 732-981-3233
Monmouth	Theresa Romano	732-677-4209, FAX: 732-677-4363
Morris/Sussex	Janie Rodriguez	973-656-3969, FAX: 973-656-3942
Ocean	Ann Marie Fleury	732-929-2042, FAX: 732-288-7606
Passaic	June Zeider	973-247-8651, FAX: 973-247-8012
Somerset/Hunterdon/Warren	Rachel Morejon	908-203-6135, FAX: 908-231-7632
Union	Linda Wiggins	908-659-4103, FAX: 908-659-3880

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ANTI-DISCRIMINATION OFFICES

STATE OF NEW JERSEY
DEPARTMENT OF LAW AND PUBLIC SAFETY
DIVISION OF CIVIL RIGHTS

www.state.nj.us/lps/dcr/localcontact.html

ATLANTIC CITY SATELLITE OFFICE
26 Pennsylvania Avenue, 3rd floor
Atlantic City, NJ 08401
Telephone: 609-441-3100
TTY: 609-441-7648

CAMDEN REGIONAL OFFICE
2 Riverside Drive, Suite 402
Camden, NJ 08103100
Telephone: 856-614-2550
TTY: 856-614-2574

TRENTON REGIONAL OFFICE
140 East Front Street, 6th floor
PO Box 090
Trenton, NJ 08625-0090
Telephone: 609-292-4605
TTY:609-292-1785

NEWARK REGIONAL OFFICE
31 Clinton Street, 3rd floor
PO Box 46001
Newark, New Jersey 07102
Telephone: 973-648-2700
TTY: 973-648-4678

PATERSON REGIONAL OFFICE
100 Hamilton Plaza, 8th floor
Paterson, NJ 07505
Telephone: 973-977-4500
TTY: 973-977-1955

NEW JERSEY'S LEGAL SERVICES PROGRAMS

LEGAL SERVICES OF NEW JERSEY

100 Metroplex Drive, Suite 402
PO Box 1357
Edison, NJ 08818-1357
(732) 572-9100
www.lsnj.org/directory.htm

ATLANTIC COUNTY
South Jersey Legal Services
26 South Pennsylvania Avenue
Suite 100, 1st Floor
Atlantic City, NJ 08401
(609) 348-4200

BURLINGTON COUNTY
South Jersey Legal Services
107 High Street
Mount Holly, N.J. 08060
(609) 261-1088

BERGEN COUNTY
Northeast New Jersey Legal Services
61 Kansas Street
Hackensack, New Jersey 07601
(201) 487-2166

CAMDEN COUNTY
South Jersey Legal Services
745 Market Street
Camden, N.J. 08102
1(800) 496-4570 • (856) 964-2010

CAPE MAY COUNTY
South Jersey Legal Services
1261 Route 9 South
P.O. Box 785
Cape May Court House, N.J. 08210
(856) 935-8047

ESSEX COUNTY
Essex-Newark Legal Services
5 Commerce Street, 2nd Floor
Newark, N.J. 07102
(973) 824-3000 • (973) 624-4500

HUDSON COUNTY
Northeast New Jersey Legal Services
574 Summit Avenue
Jersey City, N.J. 07306-2797
(201) 792-6363

MERCER COUNTY
Central Jersey Legal Services
198 West State Street
Trenton, NJ 08608
(609) 695-6259

MONMOUTH COUNTY
Ocean-Monmouth Legal Services
303 West Main Street, 3rd Floor
Freehold, N.J. 07728
(732) 866-0020

OCEAN COUNTY
Ocean-Monmouth Legal Services
The Cory Building
599 Route 37 West
Toms River, N.J. 08755
(732) 341-2727

SALEM COUNTY
South Jersey Legal Services
Concorde Professional Building
390 N. Broadway, Suite 1300
Pennsville, NJ 08070
(856) 678-6492 • 1(800) 496-4570

SUSSEX COUNTY
Legal Services of Northwest Jersey
18 Church Street
Newton, N.J. 07860
(973) 383-7400

WARREN COUNTY
Legal Services of Northwest Jersey
91 Front Street, P.O. Box 65
Belvidere, N.J. 07823
(908) 475-2010

CUMBERLAND & SALEM COUNTIES
South Jersey Legal Services
415 W. Landis Avenue, 2nd Floor
Vineland, N.J. 08360
(856) 691-0494 • 1(800) 510-2492

GLOUCESTER COUNTY
South Jersey Legal Services
47 Newton Avenue
Woodbury, N.J. 08096
(856) 848-5360

HUNTERDON COUNTY
Legal Services of Northwest Jersey
82 Park Avenue
Flemington, N.J. 08822-1170
(908) 782-7979

MIDDLESEX COUNTY
Central Jersey Legal Services
317 George Street, Ste. 201
New Brunswick, N.J. 08901-2584
(732) 249-7600

MORRIS COUNTY
Legal Services of Northwest Jersey
30 Schuyler Place, 2nd Floor
P.O. Box 900
Morristown, N.J. 07963
(973) 285-6911

PASSAIC COUNTY
Northeast New Jersey Legal Services
152 Market Street
Paterson, N.J. 07505
(973) 523-2900

SOMERSET COUNTY
Legal Services of Northwest Jersey
34 West Main Street, Ste. 301
Somerville, NJ 08876-2216
(908) 231-0840

UNION COUNTY
Central Jersey Legal Services
60 Prince Street
Elizabeth, N.J. 07208
(908) 354-4340

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APARTMENT HOUSE SAFETY TIPS

1. Safety Devices (deadbolt locks, peepholes, door chains) are required by law for your protection. USE THEM!
2. Do not admit strangers to your apartment. Utility employees, telephone repairers, etc., carry photo identification (I.D.); insist upon seeing identification before opening your door. Do not let strangers come in and look around your apartment to see what you have there.
3. Call the Police if you are suspicious about any person or activity in your building.
4. If you find your apartment has been burglarized while you were away, do not touch anything but your phone. Call the police. DO NOT STRAIGHTEN THINGS UP.
5. Do not leave small valuables lying around where they can be seen. You can rent a safe deposit box at your bank. It is less expensive than a loss of valuables. It is also a good idea to protect your investment in your property, and protect yourself from liability in case someone is injured in your apartment, by having tenant property insurance.
6. Try to organize your building or floor into a CRIME WATCH unit. Watching out for each other works. Your local police department can help you set it up properly.
7. Do not leave your house or apartment keys on your car keys holder.
8. Assigned parking spaces should not bear the same number as the apartment occupied by the car owner, since this can let burglars know when nobody is home. Landlords and tenants should cooperate to develop and follow a safer space identification system.
9. Even if not required in your lease, a spare key can be left with your management office, in a sealed envelope, preferably a personalized one, with your signature across the sealed flap. It could be useful in case of an emergency, system failure or fire.
10. Do not leave your apartment unlocked, even if you are just going to the mailbox, laundry room or pool. It is an invitation to an intruder.

OPERATION IDENTIFICATION

"Operation Identification" is the engraving of your valuables with your New Jersey driver's license number to deter burglars and also to prove ownership should the article be stolen and recovered by the police. Permanently marked valuables are more difficult for a burglar to dispose of and many times he or she won't bother stealing these items.

DO NOT mark valuables with your Social Security number. Federal regulations governing the identity of Social Security registrants make the numbers next to impossible to trace.

Electric engravers are usually available from your Police Department Crime Prevention Unit, or can be purchased inexpensively from a hardware store. You should mark your valuables "NJ" followed by your driver's license number. This number can then be traced back to you in the event that marked or stolen property is recovered by the police.

Valuables that cannot be marked, such as antiques, silver, china, coins, etc, should be photographed in detail with a complete description of the article on the back of the photograph.

After you have marked your valuable property, display an Operation Identification sticker on all exterior doors to advertise the fact. This alone may discourage a potential burglar. Stickers are available from your Police Department.

Make sure you have a record of all marked valuables that includes their serial number, make, model and the location of your marking. To obtain the electric engraver and inventory sheet, contact your Police Crime Prevention Unit.

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ADDITIONAL AGENCIES AND ORGANIZATIONS

The following is a list of public agencies and private organizations that offer informational services to landlords and/or tenants. It is provided solely for reference purposes and no endorsement is expressed or implied. This list is not part of the Truth in Renting Statement and will be updated with each reprint. Organizations interested in being included may contact the Department at the address shown on the back cover of this booklet. The Department reserves the right to determine which organizations or agencies will be included in future reprints.

If you are a tenant and need information, contact:

New Jersey Tenants Organization
389 Main Street
Hackensack, NJ 07601
(201) 342-3775

If you are a landlord or tenant and need assistance, contact: (formerly NJ Council of Multi Housing Industry)

NJ Apartment Association
104 Interchange Plaza, Suite 201
Monroe Twp., NJ 08831
(732) 992-0600

Information for landlords: (costs for service)

Property Owners Association (POA)
1072 Madison Avenue
Lakewood, N.J. 08701
(732) 780-1966 Fax (732) 780-1611

For persons owning a mobile home trailer and renting the land in a mobile home park, contact:

Manufactured Home Owners Association of New Jersey, Inc.
P.O. Box 81
Whiting, N.J. 08759
(732) 350-6122
www.mhoanj.org

For owners of mobile home parks and landlords of rented trailers, contact:

New Jersey Manufactured Housing Association
2741 Nottingham Way
Trenton, NJ 08619
(609) 588-9040
www.njmha.org

For tenants advocacy:

The Tenants Rights and Information Network (T.R.A.I.N.)
Post Office Box 14
Plainsboro, NJ 08536
trainpdg@yahoo.com

For questions concerning mobile home construction, contact:

NJ Department of Community Affairs
Office of Code Services, Industrialized Buildings Unit
Post Office Box 816
Trenton, NJ 08625-0816
(609) 984-7974

For mobile home parks designating themselves as adult parks only, contact:

Office of Fair Housing & Equal Opportunities
New York/New Jersey Regional Office
26 Federal Plaza, Room 3532
New York, NY 10278-0068
(212) 542-7519 *or* 1(800) 496-4294 TTY (212) 264-0927

For additional questions on mobile homes, contact a private attorney of your choice. For a referral to an attorney, contact your County Bar Association listed in your telephone directory or the Legal Services office in your county.

If you are being faced with an eviction action or condominium conversion, you may obtain information concerning the rights you possess under these circumstances by requesting copies of the Eviction Law from:

NJ Department of Community Affairs
Bureau of Homeowner Protection
Landlord-Tenant Information Service
Post Office Box 805
Trenton, NJ 08625-0805
www.nj.gov/dca/divisions/codes/

If Spanish is your primary language and you need assistance, please contact the Center for Hispanic Policy, Research and Development (CHPRD). The CHPRD can provide a list of local resources available to the Hispanic Community. For additional information, the CHPRD can be contacted at:

New Jersey Department of Community Affairs
Center for Hispanic Policy, Research and Development
PO Box 800
Trenton, NJ 08625-0800
Telephone: (609) 984-3223

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For information on housing codes and maintenance requirements for multiple dwellings (apartment buildings with 3 or more dwelling units) or to obtain a copy of the regulations for maintenance of hotels and multiple dwellings you may write or call:

Department of Community Affairs
Bureau of Housing Inspection
PO Box 810
Trenton, NJ 08625-0810
Telephone: (609) 633-6210

If you are a tenant living in public housing subsidized by HUD and you would like to file a complaint regarding maintenance, discrimination, illegal practice or other resident concerns you may contact:

U.S. Department of Housing and Urban Development
One Newark Center
1085 Raymond Blvd., 13th Floor
Newark, New Jersey 07102-5260

Multifamily Housing Complaint Line
1(800) 685-8470, TTY 1(800) 432-2209

ORDER FORM

NEW JERSEY DEPARTMENT OF COMMUNITY AFFAIRS
DIVISION OF CODES AND STANDARDS
LANDLORD-TENANT INFORMATION SERVICE

Revised June 2010

The Truth-in-Renting Act (N.J.S.A. 46:8-43 et seq.) requires the Department of Community Affairs to prepare and publish a statement of the rights and responsibilities of residential tenants and landlords. The Act also requires residential landlords of dwellings with more than two units (or more than three units if the landlord occupies one of the units) to distribute the Truth-in-Renting Statement, now in Booklet format, to each of their tenants at or prior to the tenant's occupancy. Violators of the Act shall be liable for a penalty of up to $100.00 for each violation.

The Truth-in-Renting Booklet is a summary of existing laws, regulations, and court cases. This booklet is for information purposes only, acts as a guide for landlords and tenants, and is neither exhaustive nor detailed. THE BOOKLET MAY NOT BE REPRODUCED FOR DISTRIBUTION. It is available in English and Spanish at a cost of $2.00 each.

Please make checks or money orders payable to:
TREASURER, STATE OF NEW JERSEY. Please do not send cash.

Enclosed is $ _____ for ____ copies of the Truth-in-Renting Booklet, in English.
Enclosed is $ ____ for ____ copies of the Truth-in-Renting Booklet, in Spanish.

MAIL TO:

Name _____

Street Address _____

(A street address is required for purchases over 10 booklets)

Name of the Building _____

City and State _____Zip Code _____

Telephone _____

MAIL THIS FORM, WITH PAYMENT TO:

N.J. Department of Community Affairs
Division of Codes and Standards
Landlord-Tenant Information Service
P.O. Box 805
Trenton, New Jersey 08625-0805

ALLOW 4 TO 6 WEEKS FOR DELIVERY

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Form **W-9**
(Rev. October 2018)
Department of the Treasury Internal Revenue Service

Request for Taxpayer Identification Number and Certification

▸ Go to www.irs.gov/FormW9 for instructions and the latest information.

Give form to the requester. Do not send to the IRS.

Print or type
See Specific Instructions on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.
Andrew Giordano

2 Business name/disregarded entity name, if different from above

3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. check only **one** of the following seven boxes:

☑ Individual/sole proprietor or single-member LLC ☐ C Corporation ☐ S Corporation ☐ Partnership ☐ Trust/estate

☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=partnership) ▶

Note. Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is **not** disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner.

Other (see instructions)▶

4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):

Exempt payee code (if any)
Exemption from FATCA reporting code (if any)
(Applies to accounts maintained outside the U.S.)

5 Address (number, street, and apt. or suite no.)
175 2nd Street 603,

Requester's name and address (optional)

6 City, state and ZIP code
Jersey City, NJ 07302

7 List account number(s) here (optional)

Part I **Taxpayer Identification Number (TIN)**

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN, later.*

Note. If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number to Give the Requester* for guidelines on whose number to enter.

Social security number

1	2	1	–	8	6	–	5	3	1	1

or

Employer identification number

		–							

Part II **Certification**

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II ,later.

Sign Here **Signature of U.S. person ▶** **Date ▶**

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)
- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, *later.*

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By signing the filled-out form, you:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued),

2. Certify that you are not subject to backup withholding, or

3. Claim exemption from backup withholding if you are a U.S. exempt payee. If applicable, you are also certifying that as a U.S. person, your allocable share of any partnership income from a U.S. trade or business is not subject to the withholding tax on foreign partners' share of effectively connected income, and

4. Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting, is correct. See *What is FATCA reporting,* later, for further information.

Note: If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien;
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States;
- An estate (other than a foreign estate); or
- A domestic trust (as defined in Regulations section 301.7701-7).

Special rules for partnerships. Partnerships that conduct a trade or business in the United States are generally required to pay a withholding tax under section 1446 on any foreign partners' share of effectively connected taxable income from such business. Further, in certain cases where a Form W-9 has not been received, the rules under section 1446 require a partnership to presume that a partner is a foreign person, and pay the section 1446 withholding tax. Therefore, if you are a U.S. person that is a partner in a partnership conducting a trade or business in the United States, provide Form W-9 to the partnership to establish your U.S. status and avoid section 1446 withholding on your share of partnership income.

In the cases below, the following person must give Form W-9 to the partnership for purposes of establishing its U.S. status and avoiding withholding on its allocable share of net income from the partnership conducting a trade or business in the United States.

- In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the entity;
- In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the trust; and
- In the case of a U.S. trust (other than a grantor trust), the U.S. trust (other than a grantor trust) and not the beneficiaries of the trust.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person, do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Pub. 515, Withholding of Tax on Nonresident Aliens and Foreign Entities).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a "saving clause." Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items.

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.

2. The treaty article addressing the income.

3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.

4. The type and amount of income that qualifies for the exemption from tax.

5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if his or her stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first protocol) and is relying on this exception to claim an exemption from tax on his or her scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

Backup Withholding

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS 24% of such payments. This is called "backup withholding." Payments that may be subject to backup withholding include interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester,

2. You do not certify your TIN when required (see the instructions for Part II for details),

3. The IRS tells the requester that you furnished an incorrect TIN,

4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only), or

5. You do not certify to the requester that you are not subject to backup withholding under 4 above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code,* later, and the separate Instructions for the Requester of Form W-9 for more information.

Also see *Special rules for partnerships,* earlier.

What is FATCA Reporting?

The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all United States account holders that are specified United States persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code,* later, and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you no longer are tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account; for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of $50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a $500 penalty.

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Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Line 1

You must enter one of the following on this line; **do not** leave this line blank. The name should match the name on your tax return.

If this Form W-9 is for a joint account (other than an account maintained by a foreign financial institution (FFI)), list first, and then circle, the name of the person or entity whose number you entered in Part I of Form W-9. If you are providing Form W-9 to an FFI to document a joint account, each holder of the account that is a U.S. person must provide a Form W-9.

a. **Individual.** Generally, enter the name shown on your tax return. If you have changed your last name without informing the Social Security Administration (SSA) of the name change, enter your first name, the last name as shown on your social security card, and your new last name.

Note: ITIN applicant: Enter your individual name as it was entered on your Form W-7 application, line 1a. This should also be the same as the name you entered on the Form 1040/1040A/1040EZ you filed with your application.

b. **Sole proprietor or single-member LLC.** Enter your individual name as shown on your 1040/1040A/1040EZ on line 1. You may enter your business, trade, or "doing business as" (DBA) name on line 2.

c. **Partnership, LLC that is not a single-member LLC, C corporation, or S corporation.** Enter the entity's name as shown on the entity's tax return on line 1 and any business, trade, or DBA name on line 2.

d. **Other entities.** Enter your name as shown on required U.S. federal tax documents on line 1. This name should match the name shown on the charter or other legal document creating the entity. You may enter any business, trade, or DBA name on line 2.

e. **Disregarded entity.** For U.S. federal tax purposes, an entity that is disregarded as an entity separate from its owner is treated as a "disregarded entity." See Regulations section 301.7701-2(c)(2)(iii). Enter the owner's name on line 1. The name of the entity entered on line 1 should never be a disregarded entity. The name on line 1 should be the name shown on the income tax return on which the income should be reported. For example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner's name is required to be provided on line 1. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity's name on line 2, "Business name/disregarded entity name." If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Line 2

If you have a business name, trade name, DBA name, or disregarded entity name, you may enter it on line 2.

Line 3

Check the appropriate box on line 3 for the U.S. federal tax classification of the person whose name is entered on line 1. Check only one box on line 3.

IF the entity/person on line 1 is a(n) . . .	THEN check the box for . . .
• Corporation	Corporation
• Individual • Sole proprietorship, or • Single-member limited liability company (LLC) owned by an individual and disregarded for U.S. federal tax purposes.	Individual/sole proprietor or single-member LLC
• LLC treated as a partnership for U.S. federal tax purposes, • LLC that has filed Form 8832 or 2553 to be taxed as a corporation, or • LLC that is disregarded as an entity separate from its owner but the owner is another LLC that is not disregarded for U.S. federal tax purposes.	Limited liability company and enter the appropriate tax classification. (P= Partnership; C= C corporation; or S= S corporation)
• Partnership	Partnership
• Trust/estate	Trust/estate

Line 4, Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the appropriate space on line 4 any code(s) that may apply to you.

Exempt payee code.

- Generally, individuals (including sole proprietors) are not exempt from backup withholding.
- Except as provided below, corporations are exempt from backup withholding for certain payments, including interest and dividends.
- Corporations are not exempt from backup withholding for payments made in settlement of payment card or third party network transactions.
- Corporations are not exempt from backup withholding with respect to attorneys' fees or gross proceeds paid to attorneys, and corporations that provide medical or health care services are not exempt with respect to payments reportable on Form 1099-MISC.

The following codes identify payees that are exempt from backup withholding. Enter the appropriate code in the space in line 4.

1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2)

2—The United States or any of its agencies or instrumentalities

3—A state, the District of Columbia, a U.S. commonwealth or possession, or any of their political subdivisions or instrumentalities

4—A foreign government or any of its political subdivisions, agencies, or instrumentalities

5—A corporation

6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a U.S. commonwealth or possession

7—A futures commission merchant registered with the Commodity Futures Trading Commission

8—A real estate investment trust

9—An entity registered at all times during the tax year under the Investment Company Act of 1940

10—A common trust fund operated by a bank under section 584(a)

11—A financial institution

12—A middleman known in the investment community as a nominee or custodian

13—A trust exempt from tax under section 664 or described in section 4947

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The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
Interest and dividend payments	All exempt payees except for 7
Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
Barter exchange transactions and patronage dividends	Exempt payees 1 through 4
Payments over $600 required to be reported and direct sales over $5,000[1]	Generally, exempt payees 1 through 5[2]
Payments made in settlement of payment card or third party network transactions	Exempt payees 1 through 4

[1] See Form 1099-MISC, Miscellaneous Income, and its instructions.

[2] However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney reportable under section 6045(f), and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements. A requester may indicate that a code is not required by providing you with a Form W-9 with "Not Applicable" (or any similar indication) written or printed on the line for a FATCA exemption code.

A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37)

B—The United States or any of its agencies or instrumentalities

C—A state, the District of Columbia, a U.S. commonwealth or possession, or any of their political subdivisions or instrumentalities

D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Regulations section 1.1472-1(c)(1)(i)

E—A corporation that is a member of the same expanded affiliated group as a corporation described in Regulations section 1.1472-1(c)(1)(i)

F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state

G—A real estate investment trust

H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940

I—A common trust fund as defined in section 584(a) J—

A bank as defined in section 581

K—A broker

L—A trust exempt from tax under section 664 or described in section 4947(a)(1)

M—A tax exempt trust under a section 403(b) plan or section 457(g) plan

Note: You may wish to consult with the financial institution requesting this form to determine whether the FATCA code and/or exempt payee code should be completed.

Line 5

Enter your address (number, street, and apartment or suite number). This is where the requester of this Form W-9 will mail your information returns. If this address differs from the one the requester already has on file, write NEW at the top. If a new address is provided, there is still a chance the old address will be used until the payor changes your address in their records.

Line 6

Enter your city, state, and ZIP code.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have and are not eligible to get an SSN, your TIN is your IRS individual taxpayer identification number (ITIN). Enter it in the social security number box. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN.

If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's SSN (or EIN, if the owner has one). Do not enter the disregarded entity's EIN. If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note: See *What Name and Number To Give the Requester,* later, for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local SSA office or get this form online at *www.SSA.gov*. You may also get this form by calling 1-800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at *www.irs.gov/Businesses* and clicking on Employer Identification Number (EIN) under Starting a Business. Go to *www.irs.gov/Forms* to view, download, or print Form W-7 and/or Form SS-4. Or, you can go to *www.irs.gov/OrderForms* to place an order and have Form W-7 and/or SS-4 mailed to you within 10 business days.

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and write "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, generally you will have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note: Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon.

Caution: A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if item 1, 4, or 5 below indicates otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on line 1 must sign. Exempt payees, see *Exempt payee code,* earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

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1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), ABLE accounts (under section 529A), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account) other than an account maintained by an FFI	The actual owner of the account or, if combined funds, the first individual on the account[1]
3. Two or more U.S. persons (joint account maintained by an FFI)	Each holder of the account
4. Custodial account of a minor (Uniform Gift to Minors Act)	The minor[2]
5. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee[1]
b. So-called trust account that is not a legal or valid trust under state law	The actual owner[1]
6. Sole proprietorship or disregarded entity owned by an individual	The owner[3]
7. Grantor trust filing under Optional Form 1099 Filing Method 1 (see Regulations section 1.671-4(b)(2)(i)(A))	The grantor*
For this type of account:	**Give name and EIN of:**
8. Disregarded entity not owned by an individual	The owner
9. A valid trust, estate, or pension trust	Legal entity[4]
10. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
11. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
12. Partnership or multi-member LLC	The partnership
13. A broker or registered nominee	The broker or nominee
14. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
15. Grantor trust filing under the Form 1041 Filing Method or the Optional Form 1099 Filing Method 2 (see Regulations section 1.671-4(b)(2)(i)(B))	The trust

[1] List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

[2] Circle the minor's name and furnish the minor's SSN.

[3] You must show your individual name and you may also enter your business or DBA name on the "Business name/disregarded entity" name line. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

[4] List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.) Also see *Special rules for partnerships,* earlier.

***Note:** The grantor also must provide a Form W-9 to trustee of trust.

Note: If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records From Identity Theft

Identity theft occurs when someone uses your personal information such as your name, SSN, or other identifying information, without your permission, to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity or credit report, contact the IRS Identity Theft Hotline at 1-800-908-4490 or submit Form 14039.

For more information, see Pub. 5027, Identity Theft Information for Taxpayers.

Victims of identity theft who are experiencing economic harm or a systemic problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 1-877-777-4778 or TTY/TDD 1-800-829-4059.

Protect yourself from suspicious emails or phishing schemes. Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

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The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to *phishing@irs.gov.* You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration (TIGTA) at 1-800-366-4484. You can forward suspicious emails to the Federal Trade Commission at *spam@uce.gov* or report them at *www.ftc.gov/complaint.* You can contact the FTC at *www.ftc.gov/idtheft* or 877-IDTHEFT (877-438-4338). If you have been the victim of identity theft, see *www.IdentityTheft.gov* and Pub. 5027.

Visit *www.irs.gov/IdentityTheft* to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and possessions for use in administering their laws. The information also may be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payers must generally withhold a percentage of taxable interest, dividend, and certain other payments to a payee who does not give a TIN to the payer. Certain penalties may also apply for providing false or fraudulent information.

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